West Central School Corporation Table of Contents

1000–School Board Governance

1001: School Corporation Organization and Board Member Qualifications
1002: Powers of the Board of Education
1003: Functions of the Board of Education
1102: Board Member Code of Ethics
1103: Board Member Compensation and Expenses*
1104: New Board Member Orientation
1200: Board Organization-Officers
1204: Board Member Authority
1205: Public Expressions of Board Members
1302: Agenda Preparation and Distribution of Materials
1304: Voting and Abstentions
1305: Public Participation at Board Meetings
1306: Board Meeting Minutes
1307: Exercise of Home Rule Powers*
1310: Electronic Participation by Board Members in Board Meetings*
1400: Policy Development, Review and Evaluation
1450: Board Committees
1502: Travel Expenses for Board Members
1503: Social Media Use by School Board Members
1700: Public Records-Designee/Copy
1800: Legal Expense Tracking

2000–School Administration

2100: Line of Authority
2300: Prohibition of Disclosure of Student Lists*
2500: School Age Child Care Program–Reasonable Care Standards*
2700: Emergency Closing of Schools
2701: Pandemic/Edn-Use of Masks
2720: Prohibition of Smoking on School Property
2730: Possession of Firearms on Property
2740: Stop the Bleed Program
2800: Unmanned Aircraft Vehicles

3000–Personnel

3001: Equal Opportunity Employer
3002: Title IX: Complaint Procedures
3010: Criminal History Information (Applicants)*
3012: Employee Reference Checks
3011: Criminal History Checks (Employees)*
3020: Sexual Harassment Grievance Procedure*
3110: Drug-Free Workplace*

3120: Training and Health Precautions for Communicable Disease*
3225: Employee Travel and Expenses
3230: Suicide Awareness and Prevention*
3300: Social Media Use by Employees
3330: Social Media Use by Employees
3340: Reporting Child Abuse (Immediate Reporting Required)
3350: Staff Participation in Political Activities
3420: Resignation of Employees
3540: Teacher Appreciation Grant*
3615: Adjunct Teachers
3630: Teacher Code of Conduct/Discipline
3700: Reduction in Force
3842: FMLA
3910: Drug/Alcohol Testing Program for CDL Holders (Bus Drivers)*

4000–Students

4001: Equal Educational Opportunities
4002: Title IX Complaint Procedures
4003: Sexual Harassment Grievance Procedure*
4010: Student Residence Verification
4011: Early Entrance Appeal Procedure
4012: Locating Missing Children
4013: Homeless Students*
4014: Foreign Exchange Students
4018: Transfer Students*
4022: Non-Public Student Participation in Public School
4030: Vaccinations and Immunizations-Exclusion Process
4130: Student Fundraising and Solicitation
4200: Student Wellness*
4204: Student Mental and Behavioral Services Records*
4210: Administration of Medication*
4300: Student Discipline Rules/Due Process*
4301: Disciplinary Due Process for Disabled Students*
4304: Bullying Rule*
4305: Criminal Gang Activity*
4340: Acceptable Use of Internet/Use of Filtering Software (Student and Staff Use)*
4400: Locker Searches*
4430: Interviews of Students by Child Protective Services
4520: Student Publications
4550: ExtraCurricular Code of Conduct

5000-Instruction and Student Services

5050: Challenges to Curricular Materials
5051: Challenges to Library, Media and Other Supplemental Materials

5100: Indiana Course Access Program (iCAP)
5120: Post-Secondary Enrollment Program*
5200: Title 1 Parent Involvement*
5210: Educational Surrogate Parent*
5220: Hatch Amendment-Survey of Student/Parent Consent*
5221: Parental Rights to Inspect Material/Consent to Non-Curriculum Analysis, Survey or Eval.*
5320: Educating Minors-CIPA*
5335: Use of Generative Artificial Intelligence Programs
5340: Least Restrictive Environment*
5360: Supervision of Students
5370: Pledge and Display of US Flag*
5371: Moment of Silence*
5372: Animals in Classrooms*
5380: Homework*
5400: Test Security-Assessment
5510: Field Trips-Overnight; Out of State
5520: Red-Shirting/Retention*
5530: Exit Interview Designee*
5541: Credit for Religious Instruction/Release Time

6000-Business Operations
6011: Rainy Day
6012: Extra-Curricular Fund
6020: Investments and Investment Income
6100: Internal Controls/Fiscal Management*
6110: Uniform Guidance-Federal Grants and Awards*
6120: Threshold of Material Loss, Shortage, and Theft
6130: Bad Debt/Collection and Forgiveness of Debt
6210: Small Purchases (under $50,000)*
6240: Use of Corporation Credit Cards
6401: Cafeteria Policy*
6410: Food Services Personnel Code of Conduct*
6430: Free and Reduced Lunch Second Audits

7000-Property Management
7020: Chemical Use in School Buildings*
7021: Pest Control/Pesticide Use/Integrated Pest Management
7100: Vehicle Idling on School Grounds*

8000-School-Community Relations
8002: Tobacco Free Campus
8200: Public Complaints
8300: Gifts and Contributions
8540: Community Use of School Facilities (Rates, Fees, Applications, Access)

8500: Visitors to School Buildings
8513: Political Activities on School Property
8550: Service Animals-Public Events
8600: Community Use of School Equipment

*Required Policy

West Central School Board Policies Tracking

Policy Number	Required Essential Discretionary	Brief Description	Date of First Reading	Date of Second Reading and Adoption
1001	R	Org. and Board Qualifications	8-3-23	9-7-23
1002	R	Powers of Board	8-3-23	9-7-23
1003	R	Functions of Board	8-3-23	9-7-23
1102	E	Board Member Code of Ethics	12-7-23	1-4-24
1103	R	Compens. And Exp.	8-3-23	9-7-23
1104	E	New Board Member Orientation	12-7-23	1-4-24
1200	E	Board Organization-Officers	12-7-23	1-4-24
1204	E	Board Member Authority	12-7-23	1-4-24
1205	E	Public Expressions of Board Members	12-7-23	1-4-24
1302	E	Agenda Prep and Distri. Materials	12-7-23	1-4-24
1304	E	Voting and Abstentions	12-7-23	1-4-24
1305	E	Public Participation at Board Meetings	12-7-23	1-4-24
1306	E	Board Meeting Minutes	12-7-23	1-4-24
1307	R	Home Rule	8-3-23	9-7-23
1310	R	Electronic Participation	8-3-23	9-7-23
1400	E	Policy Dev. Review/Evaluation	12-7-23	1-4-24
1450	E	Board Committees	12-7-23	1-4-24
1502	E	Travel Expenses for Bd. Members	12-7-23	1-4-24
1503	E	Social Media Use by School Board Memb.	12-5-24	1-2-25
1700	E	Public Records-Designee/Copy	12-7-23	1-4-24
1800	E	Legal Expenses Reporting	12-5-24	1-2-25
2100	E	Line of Authority	12-7-23	1-4-24

2300	R	Disclosure of Lists	8-3-23	9-7-23
2500	R	School Age Prog.	8-3-23	9-7-23
2700	E	Emergency Closing of Schools	12-5-24	1-2-25
2701	E	Pandemic/End-Use of Masks	12-7-23	1-4-24
2720	E	Prohibition of Smoking on School Property	12-5-24	1-2-25
2730	E	Possession of Firearms on Prop.	12-7-23	1-4-24
2740	E	Stop the Bleed Program	12-7-23	1-4-24
2800	E	Unmanned Aircraft Vehicles	3-7-24	4-4-24
3001	E	Equal Opportunity Employer	3-7-24	4-4-24
3002	E	Title IX Complaint Procedures	3-7-24	4-4-24
3010	R	Criminal History (applicants)	8-3-23	9-7-23
3011	R	Criminal History (employment)	8-3-23	9-7-23
3012	E	Employee Reference Checks	12-7-23	1-4-24
3020	R	Sexual Harassment	8-3-23	9-7-23
3110	R	Drug Free Workplace	8-3-23	9-7-23
3120	R	Comm. Diseases	8-3-23	9-7-23
3225	E	Employee Travel and Expenses	3-7-24	4-4-24
3230	R	Suicide Awareness	8-3-23	9-7-23
3330	E	Social Media Use by Empl.	3-7-24	4-4-24
3340	E	Reporting Child Abuse/Immed.	3-7-24	4-4-24
3350	E	Staff Participation in Political Activities	3-7-24	4-4-24
3420	E	Resignation of Employees	3-7-24	4-4-24
3540	R	TAG (Teacher Appreciation Grant)	8-3-23	9-7-23
3615	E	Adjunct Teachers	12-7-23	1-4-24
3630	E	Teacher Code of Conduct/Disc	3-7-24	4-4-24
3700	E	Reduction in Force	12-7-23	1-4-24
3842	E	FMLA	12-7-23	1-4-24

3910	R	DOT testing	8-3-23	9-7-23
4001	E	Equal Educational Opportunities	12-5-24	1-2-25
4002	E	Title IX Complaint Procedures	3-7-24	4-4-24
4003	R	Sexual Harassment	8-3-23	9-7-23
4010	E	Student Residence Verification	3-7-24	4-4-24
4011	E	Early Entrance Appeal Process	3-7-24	4-4-24
4012	E	Locating Missing Children	12-5-24	1-2-25
4013	R	Homeless Students	8-3-23	9-7-23
4014	E	Foreign Exchange Students	12-5-24	1-2-25
4018	R	Transfer Students	8-3-23	9-7-23
4022	E	Non-Public (Homeschool)	12-7-23	2-1-24
4030	E	Vaccinations, Immuniz.-Exclusion	3-7-24	4-4-24
4130	E	Student Fundraising and Solicitation	12-5-24	1-2-25
4200	R	Student Wellness	8-3-23	9-7-23
4204	R	Student Mental Health	8-3-23	9-7-23
4210	R	Administration of Medicine	8-3-23	9-7-23
4300	R	Student discipline rules	8-3-23	9-7-23
4301	E	Discipline Due Process	10-5-23	11-2-23
4304	R	Bullying Rule	10-5-23	11-2-23
4305	R	Criminal Gang Activity	10-5-23	11-2-23
4340	R	Acceptable Use Internet	10-5-23	11-2-23
4400	R	Locker Searches	10-5-23	11-2-23
4430	E	Interviews of Students by CPS	3-7-24	4-4-24
4520	E	Student Publications	12-5-24	1-2-25
4550	E	Extra-Curricular Code of Conduct	12-5-24	1-2-25
5050	E	Challenges to Curricular Materials	3-7-24	4-4-24
5051	E	Challenges to Library	12-7-23	1-4-24

5100	E	Indiana Course Access Program	3-7-24	4-4-24
5120	R	Post-Secondary Enrollment	10-5-23	11-2-23
5200	R	Title 1 Parent Involvement.	10-5-23	11-2-23
5210	R	Educational Surrog.	10-5-23	11-2-23
5220	R	Hatch Amendment	10-5-23	11-2-23
5221	R	Parent Rights to Inspect	10-5-23	11-2-23
5320	R	Educating Minors-CIPA	10-5-23	11-2-23
5335	E	Use of Generative AI Program	3-7-24	4-4-24
5340	R	LRE (Least Restrictive Environment)	10-5-23	11-2-23
5360	E	Supervision of Students	12-7-23	1-4-24
5370	R	Pledge Display of Flag	10-5-23	11-2-23
5371	R	Moment of Silence	10-5-23	11-2-23
5372	R	Animals in Classrooms	10-5-23	11-2-23
5380	R	Homework	10-5-23	11-2-23
5400	E	Test Security-Assessment	3-7-24	4-4-24
5510	E	Field Trips-Overnight; Out of State	12-5-24	1-2-25
5520	R	RedShirting/Retention	10-5-23	11-2-23
5530	R	Exit Interview Designation	10-5-23	11-2-23
5541	E	Credit for Religious Instr./Release Time	12-5-24	1-2-25
6011	E	Rainy Day	12-7-23	1-4-24
6012	E	Extra Curricular Fund	12-5-24	1-2-25
6020	E	Investments and Investment Income	12-5-24	1-2-25
6100	R	Internal Controls	10-5-23	11-2-23
6110	R	Uniform Guidance	10-5-23	11-2-23
6120	E	Threshold of Material Loss, Shortage, Theft	12-5-24	1-2-25
6130	E	Bad Debt/Collection of Debt	3-7-24	4-4-24

6210	R	Small Purchases	10-5-23	11-2-23
6240	E	Use of Corporation Credit Cards	12-7-23	1-4-24
6401	R	Cafeteria Policy	12-7-23	1-4-24
6410	R	Food Service Code of Conduct	10-5-23	11-2-23
6420	E	Free and Reduced Lunch Second Audits	12-5-24	1-2-25
7021	E	Pest Control/Pesticide Use/Int. Pest Mgm.	12-5-24	1-2-25
7020	R	Chemical Use in Buildings	10-5-23	11-2-23
7100	R	Vehicle Idling	10-5-23	11-2-23
8002	E	Tobacco Free Campus	3-7-24	4-4-24
8500	E	Visitors to School Buildings	12-7-23	1-4-24
8513	E	Political Activities on School Property	3-7-24	4-4-24
8200	E	Public Complaints	3-7-24	4-4-24
8300	E	Gifts and Contributions	12-5-24	1-2-25
8550	E	Service Animals	12-7-23	1-4-24
8600	E	Community Use of School Equipment	12-5-24	1-2-25

1001: SCHOOL CORPORATION ORGANIZATION AND BOARD MEMBER QUALIFICATIONS

Last Revised: 9-7-23
Prior Revision Dates: 2015

Legal Status
The government of the West Central School Corporation shall be vested in a Board of School Trustees which shall consist of seven (7) members, elected in a manner hereinafter provided.

Board of School Trustees
The following apply to the qualifications, number, officers, method of selection, powers and duties and other requirements and factors relating to the board of school trustees of the West Central School Corporation.

1. The control and administration of the schools of the West Central School Corporation shall be vested in a board of school trustees whose rights, powers, and duties shall be those of the board of school trustees of a fifth class city.

2. The West Central School Corporation shall have an elected board of seven (7) members, each having residence in the school corporation's geographical area. Of the seven (7) members, six (6) will have residence in a different township of the corporation, and one shall be elected as a member-at large.

3. The members of the board of school trustees shall serve until their successors are elected or appointed and qualified.

4. Candidates for membership on the board of school trustees shall compete against one another for election on a school board member residence district basis. They shall be voted upon by the voters residing within the boundaries of the School Corporation.

5. Each member of the board of school trustees shall be elected on a non-partisan ballot, in accordance with the provisions of Act 1959, Chapter 202, summarized as follows:

a. Nominations for members of the board of school trustees shall be made at the time provided by law for the filing of notice of candidacies for the primary election. Nominations shall be made by a petition signed by the candidate and ten (10) registered voters residing within the boundaries of the residence district in which the nominee resides, which shall be filed with the clerk of the circuit court in the county.

b. Voting and tabulations of votes shall be conducted in the same manner as voting and tabulation in general elections are conducted. In the event of a tie vote for any of said

candidates, the judge of the circuit court shall select one (1) of said candidates who shall be declared and certified elected.

c. All board members shall take office and assume their duties on the first day of January after their election. All members shall be elected for four (4) year terms of office, said election to be held at the general election immediately preceding the expiration of the terms of office in question, to take office at the expiration of said term.

d. If at any time there shall occur a vacancy on the board of school trustees for any reason including but not limited to the failure of the sufficient number of petitions for candidates being filed, and whether or not a majority of the board, shall by a majority vote fill such vacancy by appointing a qualified person residing within the boundaries of the district where the vacancy occurred to serve for the term or balance of the unexpired term. In the event of a tie vote among the remaining members of the board of their failure to act within thirty (30) days after such any vacancy occurs, it shall be the duty of the judge of the Pulaski County circuit court to make such an appointment.

6. Candidates for election to the board of school trustees shall be:
a. A U.S. citizen
b. High school graduate
c. Resident of school corporation area two (2) years immediately preceding the election and area of district from which nominated one (1) year immediately preceding the election.

7. Other provisions regarding the board of school trustees shall be in accordance with P.L. 179-2011.

Legal Reference I.C. 3-5-4-11 et seq.

Revised: 2015

1002: POWERS OF THE BOARD OF EDUCATION

Last Revised: September 9, 2023
Prior Revision Dates:

The Board of Education shall act as the general agent of the State in carrying out the will of the people of its corporation in the matter of public education. It shall be responsible for carrying out certain mandatory laws and shall consider and accept or reject the provisions of the permissive laws.

1003: FUNCTIONS OF THE BOARD OF EDUCATION

Last Revised:September 7, 2023
Prior Revision Dates:

1. Three functional activities are recognized in respect to the Board of Education's administering public education within the corporation.

a. Policy Making: Planning is basic to all organized activity. Policy making is that function which determines what shall be done, establishes procedures for accomplishing the tasks, selects an executive officer and delegates to him the placing of plans and policies into operation, and provides the financial means for their achievement.

b. Executive: The executive phase is that function which is concerned with the placing into operation the plans and policies, keeping the Board of Education informed, and furnishing the leadership to the board and the profession.

c. Appraisal: Appraisal is that function which attempts through careful examination and study of facts and conditions to determine:

1. The efficiency of operation of the general activities and
2. The worth and value of the activities in relation to the efficiency and value of instruction.

1102: BOARD MEMBER CODE OF ETHICS

Last Revised: 1-4-24
Prior Revision Dates:

A School Board member should honor the high responsibility which his membership demands by:

- thinking always in terms of "children first."
- understanding that the basic function of the school board member is "policy-making" and not "administrative," and by accepting the responsibility of learning to discriminate intelligently between these two functions.
- accepting the responsibility along with his fellow board members of seeing that the maximum of facilities and resources is provided for the proper functioning of schools.
- refusing to "play politics" in either the traditional partisan, or in any petty sense.
- representing at all times the entire school community.
- accepting the responsibility of becoming well-informed concerning the duties of board members, and the proper function of public schools.
- recognizing responsibility as a State official to seek the improvement of education throughout the State.

A School Board member should respect his relationships with other members of the Board by:

- recognizing that authority rests only with the board in official meetings, and that the individual member has no legal status to bind the board outside of such meetings.
- recognizing the integrity of his predecessor and associates and the merit of their work.
- refusing to make statements or promises as to how he will vote on any matter which should properly come before the board as a whole.
- making decisions only after all facts bearing on a question have been presented and discussed.
- respecting the opinion of others and by graciously conforming to the principle of "majority rule."
- refusing to participate in irregular meetings such as "secret" or "star chamber" meetings, which are not official and which all members do not have the opportunity to attend.

A School Board member should maintain desirable relations with the superintendent of schools and his staff by:

- striving to procure, when the vacancy exists, the best professional leader available for the head administrative post.

- giving the superintendent full administrative authority for properly discharging his professional duties, and also by holding him responsible for acceptable results.
- acting only upon the recommendation of the superintendent in matters of employment or dismissal of school personnel.
- having the superintendent present at all meetings of the Board except when his contract and salary are under consideration.
- referring all complaints to the proper administrative office and by discussing them only at a regular meeting after failure of administrative solution.
- striving to provide adequate safeguards around the superintendent and other staff members to the end that they can live happily and comfortably in the community and discharge their educational functions on a thoroughly professional basis.
- presenting personal criticisms of any employee directly to the superintendent.

A School Board member should meet his responsibilities to his community by:

- attempting to appraise fairly both the present and future educational needs of the community.
- regarding it as a major responsibility of the board to interpret the aims and the methods of the schools to the community.
- insisting that all school business transactions be on an open, ethical and above-board basis.
- vigorously seeking adequate financial support for the schools.
- refusing to use his position on a school board in any way whatsoever for personal gain or personal prestige.
- refusing to discuss personnel matters or any other confidential business of the board in his home, on the street or in his office.
- winning the community's confidence that all is being done in the best interests of school children.

1103: BOARD MEMBER COMPENSATION AND EXPENSES

Last Revised: September 7, 2023
Prior Revision Dates: June 25, 2009

The members of the Board of Education shall receive $2,000.00 per year as compensation. Members of the Board shall be reimbursed for expenses incurred in performance of Board functions. The Board of Education shall approve a regular claim for all such expenses. The members of the Board of School Trustees will be covered by a $30,000 term life insurance policy at the corporation's group rate. This will be deducted from the Board Member's compensation. Compensation will be evenly divided and payable on June 30 and December 31. Board Members may participate in the corporation's medical insurance program by paying their own premiums.

Legal Reference:–IC 20-26-4-7
Revised: June 25, 2009
Revised:

1104: NEW BOARD MEMBER ORIENTATION

Last Revised: 1-4-24
Prior Revision Dates:

Orientation of New Board Members

The superintendent shall prepare materials to introduce new board members to the operating procedures of the corporation.

State, regional, and national workshops, conventions, conferences, and seminars developed by associations such as the Indiana School Boards Association and other school board governance related associations provide unique opportunities for board members to broaden their understanding of their responsibilities and be up to date on educational issues and trends.

The board will, in addition to sending a delegate to the Indiana School Boards Association's Delegate Assembly, send representatives to such educational conferences, workshops, conventions and seminars, as it shall decide upon each year.

The same regulations regarding travel arrangements and reimbursement developed for other corporation-paid attendance at such events shall apply.

The superintendent shall prepare a checklist for board members attending such events to aid them in preparing meaningful reports for the board and the corporation as a whole. The report shall be presented at a regular meeting of the board.

New Board Member Orientation

Incumbent board members and staff shall help new members become fully informed about the board's functions, policies, procedures, and current situations.

Specific phases of the new board member's orientation program shall include:

1. In the interim between election and actual assumption of office, the new board member will be invited to attend all meetings and functions of the board, including executive sessions, and will receive all reports and communications normally sent to board members.

2. In the interim between election and actual assumption of office, the new member will be furnished with materials dealing with information about the corporation, state education laws and regulations, and local policies and regulations. Such materials shall include:

a) Board policy manual

b) ISBA's A School Board Member's Guide to Good Boardmanship

c) Corporation's accountability data

d) Sample board meeting agenda

e) Board meeting minutes for the previous year

f) Financial report

3. An orientation meeting will be convened for the primary purpose of orienting the new member to his or her responsibilities, the board's method of operating, and to the school corporation policies and procedures.

4. A schedule of appointments with selected administrative personnel shall *[may]* be arranged by the superintendent to afford an opportunity for the new member to discuss specific functions and concerns at different levels of operation.

1200: BOARD ORGANIZATION-OFFICERS

Last Revised: 1-4-24
Prior Revision Dates:

The Board of School Trustees shall organize itself within the first fifteen (15) days of January of each year by electing the following officers:

(A) President
(B) Vice President
(C) Secretary

The Board shall also appoint at its organization meeting, Treasurer of the Board and the school corporation who is an employee, other than the superintendent, and who is not a member of the Board.

The Board may appoint at its organization meeting, an Executive Secretary who must be an employee, not a member of the Board, and recommended by the Superintendent.

Legal Reference: IC 20-26-4-1

1204: BOARD MEMBER AUTHORITY

Last Revised: 1-4-24
Prior Revision Dates:

Because all powers of the Board of School Trustees derived from the state statutes are granted in terms of action as a group, individual Board members exercise no authority over corporation affairs. An individual board member acts only in his or her vote at a legal meeting of the Board.

An individual Board member, including the president, will have power only when the Board, by vote in a legal meeting, has delegated authority to him or her.

It is contrary to the spirit of the statutes for any Board member to seek individually to influence the official functions of the school corporation. The Board of School Trustees and its members will deal with administrative services through the superintendent and will not give orders to any school employee either publicly or privately. A Board member may make suggestions and recommendations to the Superintendent. The suggestions of an individual Board member are not to be construed as a directive of the Board as a whole unless the Board so acted in a legal meeting.

With regard to student and employee files, specifically, a Board member may gain access only as any person would under the Access to Public Records Law or as an authorized delegate of the Board having been approved in open session. All school administrators shall treat an individual Board member as any other person who seeks access to student or employee files. If the Board member is not legally entitled to gain access under the Access Law, all administrators involved in an access request shall contact the superintendent's secretary to determine if the Board in official meeting voted to authorize such access as a delegate of the Board of School Trustees.

1205: PUBLIC EXPRESSIONS OF BOARD MEMBERS

Last Revised: 1-4-24
Prior Revision Dates:

The Board President functions as the official spokesperson for the Board.

The Board President may delegate this responsibility to another Board member. A Board member can only represent the Board if they have received official guidance from the Board on the particular matter.

Individual Board members may make public statements on school matters to local media and to local officials and/or State officials.

The statements made by an individual board member may imply that the opinions expressed or statements made are the official positions of the Board. Individual Board members when communicating on school matters to the media, legislators, other officials, the public, or on social media, must make it clear that their views do not reflect the views of the Board or of the other Board members unless the individual Board member has been designated by the Board at a Board meeting to speak on behalf of the Board.

This policy shall apply to all communications by individual Board members not explicitly designated by the Board to speak on its behalf, except correspondence when the Board member has received official guidance from the Board on the matters discussed in the communication and statements by Board members on non-school matters, providing the statements do not identify the author as a member of the Board.

An individual Board member may express an opinion only if it includes a statement to the effect that the content reflects only his/her opinion and is not the opinion of the full Board.

All news releases pertaining to Corporation activities shall be issued in accordance with established procedures by the Superintendent.

1302: AGENDA PREPARATION AND DISTRIBUTION OF MATERIALS

Last Revised: 1-4-24
Prior Revision Dates: November 9, 2000

The superintendent shall prepare all agendas for meetings of the Board. In doing so, the superintendent shall consult with the Board president and appropriate members of the executive staff.

Items of business may be suggested by any Board member, staff member, student, or citizen. The inclusion of items suggested by staff members, students, or citizens shall be at the discretion of the superintendent.

The Board shall follow the order of business set up by the agenda unless the order is altered by a majority vote of the members present at the beginning of the Board meeting. Items of business not on the agenda may be discussed and acted upon if a majority of the Board agrees to consider such items.

The agenda, together with supporting materials, shall be distributed to Board members sufficiently prior to the Board meeting to permit Board members to give items of business careful consideration. The agenda and appropriate agenda materials will also be made available to the press, representatives of community, staff, student organizations, and other members of the public.

1304: VOTING AND ABSTENTIONS

Last Revised: 1-4-24
Prior Revision Dates: April 10, 1986

The rules of Parliamentary Procedure comprised in Robert's "Rules of Order", newly revised, 1981, shall govern the Board in its deliberations.
(April 10, 1986)

It is the duty of every Board member to vote on each action item. All actions requiring a vote can be conducted by voice vote unless a roll-call vote is requested or required. Any member may request that the Board be polled.

Secret ballot and proxy voting are prohibited.

All motions shall be carried by the vote of the majority present except as otherwise required by law.

Each vote and abstention shall be recorded in the meeting minutes.

Abstention Votes

Board members also have a responsibility to avoid the appearance of impropriety by avoiding any conflicts of interest. In such instances when a board member believes a conflict of interest exists, the board member may abstain from voting. Abstentions shall not be counted as votes but shall be recorded and are deemed to acquiesce in the outcome of the vote. In the case of a tie vote in which an abstention is involved, the motion shall fail for lack of a majority.

1305: PUBLIC PARTICIPATION AT BOARD MEETINGS

Last Revised: 1-4-24
Prior Revision Dates:

The Board of Education shall solicit the advice and counsel of Citizens in planning and operating the schools. Meetings of the Board of Education shall be open to the public. All citizens' communications to the Board of Education shall be addressed to the Board of Education. Citizens who wish to present to any matter of concern to the schools shall make written requests to the Secretary of the Board of Education at least 24 hours prior to the meeting. The Board may; in case of emergency, by majority vote, give visitors who have not presented a written request an opportunity to present problems to the Board. The President may limit a visitor to five minutes unless the time is increased by a majority vote of the Board.

The Board of School Trustees of the West Central School Corporation recognizes the value of public comment on educational issues and the importance of allowing members of the public to express themselves on school corporation matters.

Public Comments shall be permitted under the agenda item entitled "Public Comments" and may be restricted to items appearing on the agenda of the Board meeting.

Those persons who wish to address the Board during the agenda item entitled "Public Comments" must sign in at least ten (10) minutes prior to the start of the Board meeting and list the agenda items on which the visitor wishes to speak.

Persons who wish to address the Board may be asked to state the following:

a. name and address;

b. group affiliation, if any; and

c. agenda items to be addressed.

Persons who have residency within the boundaries of the school corporation and/or who have children enrolled in the school corporation will be given first priority to address the school board.

Public comments shall be limited to three (3) minutes or longer based up the number of persons signed up to speak and the length of the agenda, as determined by the Board President.

The provisions in this policy will apply at the collective bargaining public hearing, *the tentative agreement meeting*, and at the time during a meeting when the school board will vote to ratify the tentative collective bargaining agreement. All public comments made at the collective bargaining hearing will be recorded in a manner which will be shared with every member of the school board.

The Board President shall administer the procedures of the Board and shall be guided by the following rules:

1. *A person must be recognized by the presiding officer and must preface their comments by an announcement of their name, address, and group affiliation, if any.*
2. *No person may speak more than once on the same agenda item.*
3. *All statements shall be directed to the Board; no person may address or question Board members individually.*
4. *Persons making comments shall not debate statements made by other persons.*

5. *Boisterous conduct will not be permitted; nor will any defamatory remarks be tolerated.*

The Board President may terminate any person addressing the Board for persistent violations of rules or disruptive conduct.

The Board President may:

1. *Interrupt, warn, or terminate a person's statement when the statement is too lengthy, obscene, or irrelevant;*
2. *Request any individual to leave the meeting when that person does not observe reasonable decorum or engages in disruptive behavior;*
3. *Request the assistance of law enforcement officers in the removal of a disorderly person when that person's conduct interferes with the orderly progress of the meeting; or*
4. *Call for a recess or an adjournment to another time when the lack of public decorum so interferes with the orderly conduct of the meeting as to warrant such action.*

Legal Reference: IC 5-14-2.5-3.5

1306: BOARD MEETING MINUTES

Last Revised: 1-4-24
Prior Revision Dates:

1. Minutes of the proceedings of the Board of the previous meeting shall be prepared and ready for Board review.

2. The minutes of preceding meeting (s) shall be approved and signed by the President and Secretary as its first act of the regular meeting.

3. The Official Minutes shall be bound and kept in the office of the Superintendent of Schools.

The minutes of Board meetings open to the public shall include the following information:

1. The date, time, and place of the meeting.
2. The members of the Board recorded as either present or absent.
3. The general substance of all matters proposed, discussed, or decided.
4. A record of all votes taken by individual members if there is a roll call.
5. Any additional information required by state law authorizing a school board to conduct a meeting using an electronic means of communication.

The superintendent shall review the rough draft of the minutes to ascertain all necessary items have been included and the draft is accurate.

The format and style of the minutes should follow the pattern of the agenda for the meeting. Each item of business should be numbered for easy reference.

Board meeting minutes are to be approved at the following Board meeting. Copies of the minutes shall be sent to the members of the Board before the meeting at which they are to be approved. Corrections in the minutes may be made at the meeting at which they are to be approved. Upon approval, the Board President and the Board Secretary shall sign the Board meeting minutes.

Executive session minutes shall include only the following information:

1. The date, time, and place of the meeting.
2. The members of the Board recorded as either present, absent, or participating electronically.

3. Identify the subject matter considered by specific reference to the enumerated instance or instances for which public notice was given.

The Board shall certify by a statement in the minutes that no subject matter was discussed in the executive session other than the subject matter specified in the public notice of the executive session.

The minutes are to be retained as official Board records and are to be available to the public for copying and/or inspection.

Legal Reference: IC 5-14-1.5-4(b) & (c)

IC 5-14-1.5-6.1(d)

1307: EXERCISE OF HOME RULE POWERS

Last Revised: 9-7-23
Prior Revision Dates:

The Board of Trustees in exercising any power granted to it by the Indiana Home Rule statute, and the exercise of such power is not provided for by any constitutional or statutory provision, shall execute such power in the following manner.

1. Prior to the Board's exercise of its power, all aspects, consequences and results of its action will be reviewed and considered by the Board in an open meeting. Consideration and review by the Board may include opportunity for members of the community and school personnel to provide input to the Board's action.
2. The Board will take action by adoption of a policy at the next regularly scheduled open Board meeting. In the case of an emergency, or in an urgent situation, the Board may act upon the matter in the same open meeting, or call a special meeting to consider its action.

With respect to contracts and the exercise of Home Rule power, contracts entered into by the Board with an individual school employee and/or the exclusive representative of any employee group through a collective bargaining process shall be reviewed by the Board prior to the vote to accept or ratify such contracts. Provisions of such contracts which have been accepted or ratified shall be deemed the policy of the Board of Trustees.

Legal Reference: IC 20-26-3-1 et seq.

1310: ELECTRONIC PARTICIPATION BY BOARD MEMBERS IN BOARD MEETINGS

Last Revised: 9-7-23

Prior Revision Dates:

This policy applies to the Board of School Trustees of the West Central School Corporation and any committee or advisory board appointed directly by the School Board. This policy does not apply when the school corporation is subject to a declared local or state public emergency.

A majority of the entire school board must be physically present at a school board meeting.

The School Board will not conduct any of its meetings where board members will be allowed to participate by electronic means of communication.

LEGAL REFERENCE: IC 5-14-1.5-3.5

1400: POLICY DEVELOPMENT, REVIEW AND EVALUATION

Last Revised: 1-4-24
Prior Revision Dates: December 21, 1993

It is the intent of the Board to develop policies and put them in writing so that they may serve as guidelines for its own operations and the successful and efficient functioning of the public schools.

This policy, while it may be modified to meet needs, is to serve as a general guideline for such tasks as policy research, drafting of preliminary policy proposals, reviewing policy drafts with concerned groups, presenting new and revised policies to the Board for consideration and action, policy evaluation, and the continuous maintenance of the Board policy manual.

The Board considers policy development one of its chief responsibilities. Proposals regarding policies may originate with a member of the Board, the superintendent, staff members, parents, students, consultants, civic groups, or other members of the corporation. A careful and orderly process shall be used in examining such proposals prior to action by the Board. The Board shall act upon the proposals after hearing the recommendations of the superintendent and the viewpoints of persons and groups affected by the policy.

The policies of the Board are meant to be interpreted in terms of laws and regulations of regulatory agencies within state and federal government.

Policy adoption

Adoption of new policies or the revision or repeal of existing policies is solely the responsibility of the Board of Education.

Policies will be adopted and/or amended only by the affirmative vote of the majority of the members of the Board when such action has been scheduled on the agenda of a regular or special meeting.

The Board shall adhere to the following procedure in considering and adopting policy proposals to ensure that they are well examined before final adoption.

1. First meeting--the policy shall be presented as a discussion item.

2. Second meeting--the policy shall be presented for reading, discussion, and vote.

At the first meeting during the discussion of a policy proposal, public comments will be received and considered on each policy being discussed. Amendments may be proposed by Board members. An amendment shall not require the policy to go through an additional reading except as the Board determines that the amendment needs further study and that an additional reading would be desirable or if the amendment substantially changes the intent or meaning of the policy.

The Board may dispense with the above sequence to meet emergency conditions as determined by the Board and/or upon recommendation of the superintendent.

Policies as adopted or amended will be made a part of the minutes of the meeting at which action was taken and will also be included in the Board policy manual. A policy will continue from year to year until the Board changes or repeals the policy.

Policy Repeal

The repeal of a policy shall be accomplished in the same manner as a policy is adopted.

Policy revision and review

In an effort to keep its written policies up to date, the Board shall review its policies on a continuing basis.

The superintendent is given the responsibility of calling to the Board's attention all policies that are out of date or for other reasons appear to need revision. As part of this responsibility, the superintendent is required to have a legal review of such policies and make the necessary revisions. Policy revision shall be accomplished in the same manner as policy adoption.

Limited revisions to policies are defined as updates to legal citations, grammar corrections, typographical errors, and minor, non-substantive changes. If limited revisions to existing policies are necessary, the superintendent will present the proposed changes to the Board with an accompanying rationale. Limited revisions to a policy may be adopted by the board as a regular agenda item without going through the policy adoption process.

Policy communication/feedback

The superintendent is directed to establish and maintain an orderly plan for preserving and making accessible the policies adopted by the Board and the regulations needed to put them into effect. Accessibility is to extend to all

employees of the school corporation, to members of the Board, and members of the public by posting the board policy manual on the school corporation website.

The Board's policy manual is a public record and shall be open for inspection at the administrative offices of the corporation and is available on the school corporation website.

The Board shall evaluate how the policies have been executed by staff and shall consider the results. It shall rely on the staff, students, and the community for providing evidence of the effectiveness of board policies.

1450: BOARD COMMITTEES

Last Revised: 1-4-24
Prior Revision Dates:

The Board shall use standing committees as it deems appropriate. The purpose of a standing committee is to investigate issues relevant to the committee, to deliberate, and to inform and recommend action to the Board. The Board President shall appoint the members and Chair of each standing committee on an annual basis. A standing committee has no authority to act on behalf of the Board unless specifically authorized by the Board.

Open Meetings Law

All committees of the Board are subject to all requirements of the Open Door Law.

Minutes of Standing Committees

The minutes of each meeting of the standing committees shall be recorded, approved, and maintained as records of the school corporation per the requirements of the state public records retention schedule. Following approval of minutes by each standing committee, the minutes shall be sent to all Board Members and shall be made available to interested members of the public in accordance with the Access to Public Records law.

1502: TRAVEL EXPENSES FOR BOARD MEMBERS

Last Revised: 1-4-24
Prior Revision Dates:

Expenses for Board Members at Out-of-Corporation Meetings

Board Members may attend workshops, meetings, and/or conferences at both the state and national levels. The Corporation will pay all legitimate costs for board members to attend out-of-Corporation meetings, at established rates for reimbursement set by the Corporation for all other staff and faculty members:

1. Transportation as approved by the Board;

2. On-site transportation during the course of the meeting, i.e., bus, taxi, or rental car;

3. Hotel or motel costs, as necessary;

4. Food costs as necessary; and/or

5. Incidental expenditures for tips and other necessary costs attributable to the board member's attendance at a meeting.

The Corporation will not reimburse or pay for such items as liquor, expenses of a spouse, separate entertainment, or other unnecessary expenditures.

1503: SOCIAL MEDIA USE BY SCHOOL BOARD MEMBERS

Prior Revision Dates:
Date Adopted: January 2, 2025

Web sites and other social media provide the corporation with unique and ever-changing ways which provide information to the community. Websites allow for current and complete information to be provided to its community at large. Websites for purposes of this policy include all forms of social media used by the school corporation to communicate to the community, parents, and students.

The corporation website provides a resource for obtaining information about the corporation and for informing patrons about School Board activities and serves as a vehicle for communication to parents and patrons.

A school board member has the right to have their own personal social media page as a private citizen. A school board member may publish a website or a webpage individually and/or independently of the corporation website as a school board member.

If a school board member wishes to have a personal social media page, the board member is responsible for the content and links on the webpage and is responsible for maintaining the privacy settings appropriate to the content.

Individual school board members do not have the authority to speak on behalf of the board on their own personal social media pages. The school board member must post a disclaimer that the content of the posts by the board member is the personal opinion(s) of the board member and does not represent the school board.

1700:PUBLIC RECORDS-DESIGNEE AND COPY FEES

Last Revised: 1-4-24
Prior Revision Dates: October 21, 1993

The Superintendent, or designee, shall be the records access officer and shall be responsible for public records requests decisions.

Requests for access to public records shall be made in person received between the hours of 8:00 a.m. and 4:00 p.m. on regular business days or in writing on forms provided by the Corporation or in email messages. Requests must identify with particularity the record for which access or disclosure is sought.

Records may be inspected only at the office or location where they are regularly maintained.

Fees for copies will be the actual cost of copying the records requested or 10 cents per page for black and white whichever is greater. If color copies are requested, the cost for copying will be the actual cost or 25 cents per page whichever is greater. Actual cost means the cost of paper and the per-page cost for the use of copying equipment. The fee does not include labor or overhead costs.

Fees for a search of a requested record that is electronically stored will be accessed on an hourly basis for the actual search time in excess of five hours. Partial hours will be prorated. The search fee will be determined at the time the search for the record is completed. The search fee does not include the computer processing time to copy the record but includes the actual time it takes the school employee to search for the requested record.

Fees are payable to the West Central School Corporation and must be received before any record is duplicated and disclosed.

With respect to records that are determined not to be available, the record access officer will certify upon the request form that the Corporation does not possess the record, it does not exist, or it could not be found after diligent search. A copy of the completed form should be returned to the requestor or the requestor should be informed of the determination by the records access officer.

The records access officer shall be guided by the Indiana Access to Public Records Act and by the state and federal law regarding privacy, confidentiality, and disclosure requirements of certain public records.

LEGAL REFERENCE: I.C. 5-14-3

1800: LEGAL EXPENSES REPORTING

Last Revised: January 2, 2025
Prior Revision Dates:

The superintendent shall report to the Board promptly when legal expenses for the school corporation exceed the amount on an annual basis as set out in this policy. The superintendent shall inform the board by providing a written report to all board members when the legal expenses are reasonably expected to exceed the determined amount in each category as set out in this policy.

The Board president and the superintendent may determine whether the report will be placed on the board meeting agenda for discussion.

The categories and the threshold for legal categories* are:

General/Board:	*$5,000*
Personnel:	*$5,000*
Special Education:	*$10,000*
Real Estate/Construction:	*$10,000*
Litigation:	*$15,000*

Legal Reference: IC 20-26-5-44

2100: LINE OF AUTHORITY

Last Revised: 1-4-24
Prior Revision Dates:

Lines of direct authority will be those approved by the Board and shown on school corporation organization charts.

Lines of authority should not restrict the cooperative working relationship of all staff members in developing the best possible programs and services. The established lines of authority represent the direction of authority and responsibility. When the staff are working together, the lines represent avenues for a two-way flow of ideas to improve the program and operations of the school corporation.

Staff will be expected to refer matters requiring administrative action to the administrator to whom they are responsible. That administrator will refer such matters to the next higher administrative authority, when necessary. Additionally, all staff are expected to keep the person to whom they are immediately responsible informed of their activities by whatever means the person in charge deems appropriate.

The Board expects the superintendent to establish a clear understanding of working relationships in the school corporation with all staff members.

2300: PROHIBITION OF DISCLOSURE OF STUDENT LISTS

Last Revised: 9-7-23

Prior Revision Date:

The Board of School Trustees of the West Central School Corporation in order to maintain the privacy of its students prohibits the disclosure of any student list to any commercial organization that intends to use the list for commercial purposes. "Student list" is defined as a list containing the names, addresses and/or e-mail addresses of any or all students currently or formerly enrolled in the school corporation. "Commercial organization" is defined as any entity that is a for-profit organization. “Commercial organization” does not include any of the “armed forces of the United States” as defined by state law. “Commercial purpose" is defined as any activity that is an attempt to solicit business or profit.

The Board also prohibits the disclosure of student lists to any individual or entity for political purposes. “Political purposes” is defined as influencing the election of a candidate for federal, state, legislative, local, or school board office or the outcome of a public question or attempting to solicit a contribution to influence the election of a candidate for federal, state, legislative, local, or school board office or the outcome of a public question.

The Superintendent shall establish a procedure to be followed by all corporation employees when a request for a student list is made by a commercial organization or by an individual or entity for political purposes.

Under federal law, the school corporation is required to release to military recruiters upon request a secondary student’s name, address, and telephone listing. The parent of the student has the right to request in writing that such information not be released to military recruiters.

LEGAL REFERENCE: I.C. 5-14-3-3(f)

20 U.S.C. 7908

10 U.S.C. 503

2500: SCHOOL AGE CHILD CARE PROGRAM–REASONABLE CARE STANDARDS

Last Revised: 9-7-23
Prior Revision Dates:

The use of school buildings, grounds, equipment and facilities for school purposes shall have precedence over all other uses. The school corporation may contract in writing with a not-for-profit organization or a for-profit organization on an annual basis to provide a school age child care program (latch key program) which utilizes school corporation buildings(s). The school corporation will request proposals for providing latch key programs as required by Indiana law; such proposals must include the organization's fee schedule. Such use is limited to after the school day or when school is not in session An organization eligible to contract with the school corporation for a child care program must meet or exceed the following standards:

1. Provide child care for children enrolled in kindergarten through sixth (6th) grade.

No fee will be assessed for the use of the school buildings under this policy. However, a fee to reimburse the school corporation for providing security, maintenance, utilities, school personnel, or other added costs directly attributed to the use of the buildings for the program(s) will be assessed. The Superintendent shall develop regulations, fee schedules, and forms to implement this policy.

Legal Reference: IC 20-26-5-2
IC 20-26-5-3
IC 5-22-9

2700: EMERGENCY CLOSING OF SCHOOLS

Last Revised: January 2, 2025
Prior Revision Dates:

The Superintendent is authorized to close school, delay the opening of school, or dismiss school early in case of inclement weather or other emergencies.

Emergency Closings

Once the decision to close the school is made by the Superintendent, or in his absence, his/her designee, the school community shall be informed through the school messaging system, radio and television stations, or any other means as determined by the Superintendent.

When the schools are closed, have a delayed starting time, or are dismissed early, the Superintendent through consultation with employee supervisors will determine the duty assignments for staff for the day. Pay for days schools are closed for emergency conditions shall be according to collective bargaining agreements with the association representing the given employee or state law.

If it is necessary to dismiss school early, employees shall remain until their regular dismissal time or a time as determined by the Superintendent.

The Superintendent may consult with building administrators or other supervisory personnel to determine the scheduling of activities on days schools are closed for emergency and the cancellation of activities already scheduled. The ultimate decision is that of the Superintendent.

Members of the school community shall be informed of the methods for the determination of the closing/delay/early dismissal information through the school newsletter prior to the start of school and through other means periodically throughout the school year.

2701: Pandemic/Epidemic-Use of Face Masks

Last Revised: 1-4-24
Prior Revision Dates:

The Board of Trustees of the West Central School Corporation recognizes that a pandemic/epidemic outbreak is a serious threat that stands to affect students, staff, and the community as a whole. With this consideration in mind, the Board establishes this policy in the event the school corporation is affected by a pandemic/epidemic outbreak. At all times the health, safety, and welfare of the students shall be the priority.

Planning and Coordination

The Superintendent shall designate one or more staff members to serve as a liaison between the school corporation and local and state health officials. This designee is responsible for communicating with health officials to identify local hazards, determine what crisis plans exist in the school corporation and community, and to establish procedures to account for student well-being and safety during such a crisis. The designee shall work with local health officials to coordinate their pandemic/epidemic plans with that of the school corporation.

With fiscal concerns in mind, the School Corporation may purchase and store supplies necessary for an epidemic/pandemic outbreak, including but not limited to: disinfectant products, face masks, water, examination gloves, and other supplies as recommended by health officials.

The Superintendent shall develop procedures and plans for the emergency closure or reopening of schools in the event of a pandemic/epidemic outbreak. For the reopening of schools, the plan must address the use of personal protection equipment such as face masks, other face coverings, hand sanitizers, and gloves.

Use of Face Coverings and Masks

When the emergency plan for pandemics or epidemics including provisions for continued or returning instructional activities wherein students and staff will be in school buildings, the plan's provisions concerning the use of face masks by students and staff will be followed. To the extent it can obtain supplies, the School Corporation will provide face coverings or masks to students and employees who do not have their own face covering or mask.

When federal, state, or local officials who have the authority to mandate the wearing of face masks require citizens to wear face masks during a pandemic or epidemic, school officials will follow and enforce such a mandate.

When face masks or face coverings are provided for through state or federal agencies, the students will not be charged a fee for use of the face masks.

2720: PROHIBITION OF SMOKING ON SCHOOL PROPERTY

Status: Updated
Last Revised: January 2, 2025
Prior Revision Dates: April 9, 2009, August 2, 2018

The Board of Education for the West Central School Corporation intends to provide a healthy, comfortable, and productive environment for students, staff, and citizens. The Board remains committed to reducing involuntary exposure to tobacco smoke among students and staff. The Board believes that the use of tobacco products in a school building denies students, staff, and visitors access to clean air, introduces a health hazard to those persons, and interferes with the learning and teaching environment. It is the intent of the Board to create a "tobacco-free" school environment in its buildings and on its grounds.

"Tobacco" includes any lighted or unlighted cigarette, cigar, pipe, bidi, clove cigarette, and any other smoking product; spit tobacco, such as smokeless, dip, chew, and snuff, in any form; and all electronic nicotine delivery systems (ENDS) such as e-cigarettes, vaping devices, and hookah pens.

All persons, including students, employees, and visitors, shall not be permitted to possess or use tobacco products of any kind or in any form while:

1. Inside school corporation-owned buildings.

2. Being transported to or from school events in school corporation-owned, contracted, or other authorized vehicles.

3. On school corporation-owned property outside school corporation-owned buildings.

Any individual who observes a violation of this policy is encouraged to report it under Section B of this policy.

A. Students

Any violation of this policy by students shall be referred to the building principal or assistant principal. Students who violate provisions of this policy shall be subject to the provisions of school board policies and student handbooks regarding student progressive discipline.

B. Visitors

A visitor who is observed using tobacco products inside school corporation-owned buildings shall be asked to refrain from such use.

If a visitor fails to comply with a request to refrain from using tobacco products, he/she shall be referred to a building principal or other school corporation supervisory staff member who is responsible for the building in which the violation occurred. The principal or supervisor shall decide on further action to be taken, which may include a directive to leave school property. Repeated violations may result in a recommendation to the Superintendent to prohibit the violator from entering school corporation property for a specified period of time. If deemed necessary by a school official, an appropriate local law enforcement agency may be contacted to assist with the enforcement of this policy.

C. Employees

Any violation of this Policy by an employee will be referred to his/her immediate supervisor for appropriate disciplinary action.

The superintendent and school principals shall notify students, families, school employees, and visitors of this policy in handbooks and newsletters, on posted notices or signs at every school entrance and other appropriate locations, including the school corporation website.

{Recodified Section 615}

Legal 20 U.S.C. 7973 (a)

IC 7.1-5-12

West Central School Corporation is declared a “Tobacco Free” campus. This includes all buildings, grounds, in vehicles while on school grounds and school owned vehicles at any time. This policy applies to all staff, students and visitors to the West Central campus and is in effect twenty-four hours per day. Tobacco Free includes electronic devices and nicotine delivery devices of any kind. This policy is in keeping with the Pro-Children Act of 1994, revised in 2001.

Legal Reference: IC 16-41-37-1 through 9 IC 16-41-39

2730: POSSESSION OF FIREARMS ON SCHOOL PROPERTY

Last Revised: 1-4-24
Prior Revision Dates: August 4, 2014

This policy applies to persons who may legally possess a firearm under Indiana law.

A firearm under this policy is any weapon that is capable of expelling, designed to expel, or may readily be converted to expel a projectile by means of an explosion and includes ammunition.

No school employee may possess a firearm in a school building or on school property while on duty as a school employee unless the firearm is locked in the trunk of the employee's vehicle, kept in the glove compartment of the employee's locked vehicle or stored out of plain sight in the employee's locked vehicle.

No school employee may possess a firearm in a school building or on school property while on duty as a school employee unless the firearm is locked in the trunk of the employee's vehicle, kept in the glove compartment of the employee's locked vehicle or stored out of plain sight in the employee's locked vehicle, except as otherwise authorized by the school board.

*No person, including school board members, may intentionally or openly display a firearm at any public meeting of the school board.**

LEGAL REFERENCE: I.C. 35-47-2-1

I.C. 35-47-9-1

*I.C. 35-47-11.1-4(6)
[Applies only if public meeting prohibition is used.]

I.C. 34-28-7-2

I.C. 34-28-8-9

I.C. 35-47-1-5 [Definition of Firearm]

2740: STOP THE BLEED PROGRAM

Last Revised: 1-4-24
Prior Revision Dates:

The West Central School Corporation shall have a Stop the Bleed program consisting of the requirements set out in this policy.

Every school building in the school corporation shall have first aid kits including bleeding control kits, provided by donations from individuals or entities, or the state legislature provision of funding for schools to purchase the kits. In addition to the school nurse, each school will have at least five (5) individual staff members trained on the use of the bleeding control kits.

In addition to the above requirements, the Stop the Bleed program must include the following requirements.

(1) The bleeding control kit for each school must be assigned to designated rooms in easily accessible locations to be determined by local first responders or the school safety specialist.

(2) The bleeding control kits must be included in the emergency plan of the school corporation, including the presentation and use of the bleeding control kits in all drills and emergencies.

(3) The training provided to the designated individuals in each school building must include:

(A) the proper application of pressure to stop bleeding;

(B) the application of dressings or bandages;

(C) additional pressure techniques to control bleeding; and

(D) the correct application of tourniquets.

(4) The bleeding control kits in every school are to be inspected annually to ensure that the materials, supplies, and equipment contained in the bleeding control kits are not expired, and any expired materials, supplies, and equipment are replaced as necessary.

(5) A bleeding control kit must be restocked after each use and any materials, supplies, and equipment to be replaced as necessary to ensure the bleeding control kit contains all necessary materials, supplies, and equipment.

The superintendent or designee is responsible for developing rules and regulations to implement the Stop the Bleed program.

LEGAL REFERENCE: IC 20-34-3-24

2800: UNMANNED AIRCRAFT VEHICLES

Last Revised: April 4, 2024
Prior Revision Dates:

The operation of unmanned aircraft systems including drones and model aircraft is regulated by the Federal Aviation Administration (FAA) and relevant Indiana state law. The West Central School Corporation has established the following policy and procedures required to ensure compliance with the federal and state regulations and to reduce risks to safety, security, and privacy.

Any School Corporation employee or student wishing to operate an unmanned aircraft vehicle (UAV) as part of their school employment or as part of a school sponsored activity or certified program must receive written permission from the superintendent or designee and obtain any required certificates issued by the FAA.

The UAV shall not be used to monitor or record areas where there is a reasonable expectation of privacy in accordance with accepted community norms. These areas include, but are not limited to restrooms, locker rooms, changing or dressing rooms, and health treatment rooms.

No third party is permitted to use a UAV over any property owned or leased by the School Corporation without prior written approval of the superintendent.

Use of a UAV by a third party at any program, event, or activity at any property owned or leased by the School Corporation is strictly prohibited. Building administrators shall deny admission to or remove anyone possessing, using, or attempting to use a UAV, and may also confiscate the UAV until the event has been completed.

3001: EQUAL OPPORTUNITY EMPLOYER

Last Revised: April 4, 2024
Prior Revision Dates:

It is the policy of the Board of Trustees to forbid acts of discrimination in all matters dealing with employees and applicants for positions with the school corporation and to further the principle of equal employment opportunity in all actions affecting employees and applicants. This policy covers, but is not limited to, recruiting, hiring, training, and promotion of persons in all job classifications without regard to race, color, religion, sex, national origin, genetic information, age, marital status, or disability, or pregnancy, childbirth, or related medical conditions.

Other actions covered by this policy include employee compensation, benefits, transfers, layoffs, return from layoffs, sponsored training programs, in-service education, work and co-curricular assignments, and other employment actions relating to the job status of the employee.

The superintendent has the overall responsibility for the implementation of this policy and has the responsibility and authority to select qualified applicants for open job positions without regard to the above-mentioned classes. Further implementation of this policy is the responsibility of all school corporation administrators in accordance with the procedures set forth by the superintendent.

3002: Title IX Complaint Procedures

Last Revised:
Prior Revision Dates:

Any person who feels that the school corporation has discriminated against him/her on the basis of sex may use the complaint procedure explained below or may file a complaint directly to the building principal or the Title IX Coordinator of the school corporation. Filing a complaint or otherwise reporting sexual discrimination will not reflect upon the individual's status nor will it affect future educational or employment opportunities for the individual. The school corporation's sexual harassment grievance procedure must be followed for complaints alleging sexual harassment.

Any employee who feels that the school corporation has discriminated against him/her on the basis of race, color, age, religion, national origin, and disability should use the complaint procedure set out in this policy.

The right of confidentiality will be respected consistent with the school corporation's legal obligations and the necessity to investigate allegations of misconduct and to take corrective action when this conduct has occurred.

Reporting Sexual Discrimination

All reports of sexual discrimination will be handled in the following manner:

(a) Reports must be in writing on forms supplied by the Corporation (if a verbal complaint is made, the school official should file a written report);

(b) Reports must name the person(s) charged with sexual discrimination and state the facts;

(c) Reports must be presented to the building principal where the alleged conduct took place. The building principal shall inform the Title IX Coordinator of all filed reports;

(d) The building principal who receives a report shall thoroughly investigate the alleged sexual discrimination and attempt to resolve the matter at the building level;

(e) If the building principal cannot resolve the matter or is one of the persons named in the complaint, the complaint should be referred to the Title IX Coordinator. The Title IX Coordinator should investigate the matter and attempt to resolve the complaint.

(f) The report and the results of the investigation will be presented to the superintendent, and then to the Board of School Trustees in executive session by the superintendent; and

(g) The Board of School Trustees will take whatever action it deems appropriate. The name of the complainant will not be released to the public unless required by law.

3010: CRIMINAL HISTORY INFORMATION (APPLICANTS AND CONTRACTORS)

Last Revised: 9-7-23
Prior Revision Dates:

To help ensure a safe environment and as required by state law, the West Central School Corporation will obtain for each individual hired for employment that is likely to have direct, ongoing contact with children as a result of the individual's position an expanded criminal history check and an Indiana expanded child protection index check. The School Corporation will obtain an expanded criminal history check and an Indiana expanded child protection index check for each individual hired as an adjunct teacher or a driver of an appropriate vehicle, which is a vehicle owned or contracted by the school corporation with a seating capacity of not more than 15 people including the driver; such vehicle includes a car, truck, sport utility vehicle, minivan, or van. The individual will be responsible for the cost to the School Corporation for obtaining the expanded criminal history check and the expanded child protection index check.

The expanded criminal history check should be obtained by the Corporation prior to the individual beginning employment with the school corporation, and must be obtained no later than thirty (30) days after the individual's employment begins.

If more than one type of expanded criminal history check is available to the school corporation, the school administration shall evaluate all expanded criminal history check types to determine the comprehensive expanded criminal history check providing the most protection for students. The expanded criminal history check determined to have better protection for students will be utilized for purposes of this policy.

The Indiana expanded child protection index check must be obtained by the Corporation prior to the individual beginning employment with the school corporation, and must be obtained no later than sixty (60) days after the individual's employment begins. If the applicant lived in a state other than Indiana over the age of 18 years, an expanded child protection index may be obtained for every state where the applicant lived.

The School Corporation is prohibited from hiring or contracting with an individual who has been convicted of an offense which requires the revocation of a license under state law or of an offense listed in state law, unless the conviction has been reversed, vacated, or set aside on appeal.

School officials must communicate with all of the employment references and the most recent employer (if provided) of the applicant recommended for employment prior to the applicant being hired by the School Corporation.

Each individual hired may be questioned about the individual's expanded criminal history check and the expanded child protection index check. Failure to answer honestly any questions related to the expanded criminal history check or the expanded child protection index check may be cause for termination of the applicant.

For any volunteer coach who will be coaching an Indiana High School Athletic Association recognized sport for Grades 9 through 12 the Corporation will obtain an expanded criminal history check on the coach prior to allowing the coach to perform any coaching duties including practices for the Corporation. The volunteer coach will be responsible for the costs for the expanded criminal history check for volunteer coaches.

Any volunteer who may have direct, ongoing contact with children when performing services for the school, must provide to the Corporation a limited criminal history check prior to beginning volunteer work for the Corporation. The volunteer will be responsible for all costs associated with obtaining the limited criminal history check.

Any entity which has a contract to provide services to the Corporation and whose employees have direct, ongoing contact with children when performing those services for the school, must provide to the Corporation limited criminal histories for such employees. The entity and/or the entity's employees are responsible for all costs associated with obtaining the limited criminal histories. An individual who is working for such an entity may also be required to provide the individual's limited criminal history to the school corporation upon its request to do so or to provide consent to the school corporation for it to request a limited criminal history. This provision also applies to an individual who has a contract to provide services to the Corporation.

Any information obtained from any criminal history check and an expanded child protection index check is confidential and shall not be released or disseminated.

All individuals or entities that have contracts for services with the School Corporation are required by state law to **immediately** report convictions of certain crimes enumerated in state law to the School Corporation. The superintendent or designee is responsible for implementing regulations to notify the individuals, including volunteers, and the entities for contracted services of this duty. In addition to the crimes listed in the state law, the notice shall also include the convictions of the "attempted" crimes listed in the law.

LEGAL REFERENCE: I.C. 20-26-5-10

I.C. 20-26-5-10.5

I.C. 20-26-5-11

I.C. 20-28-5-8(c)

I.C. 20-26-14-9(b)

3011: CRIMINAL HISTORY CHECKS (EMPLOYEES)

Last Revised: 9-7-23
Prior Revision Date: 9-7-17

To help-ensure a safe environment and as required by state law, the West Central School Corporation will conduct an expanded criminal history check on each employee once every five (5) years. The superintendent will be responsible for determining the schedule for conducting the expanded criminal history checks on school employees. The cost of an expanded criminal history check will be the responsibility of the employee unless otherwise collectively bargained with the exclusive representative of the employee.

If more than one type of expanded criminal history check is available to the school corporation, the school administration shall evaluate all expanded criminal history check types to determine the comprehensive expanded criminal history check providing the most protection for students. The expanded criminal history check determined to have better protection for students will be utilized for purposes of this policy.

The School Corporation may also conduct an expanded child protection index check on each and every employee every five (5) years. The school corporation will-be responsible for the costs of obtaining the expanded child protection index checks on all employees.

The School Corporation may conduct an expanded criminal history check on an employee when the Corporation has reason to believe the employee has been convicted of or charged with certain crimes enumerated in state law or an expanded child protection index check when the Corporation has reason to believe the employee is the subject of a substantiated report of child abuse or child neglect.

Each employee may be questioned about the individual's expanded criminal history check and the expanded child protection index check. Failure to answer honestly any questions related to the expanded criminal history check or the expanded child protection index check may be cause for termination of the employee.

The School Corporation is prohibited from hiring or contracting with an individual who has been convicted of an offense which requires the revocation of a license under state law or of an offense listed in state law, unless the conviction has been reversed, vacated, or set aside on appeal.
Any information obtained from any criminal history check and an expanded child protection index check is confidential and shall not be released or disseminated.

All school employees are required by state law to report to the School Corporation if they have been convicted during their employment of certain crimes enumerated in state law. In addition, all individuals or entities that have contracts for services with the School Corporation are required by state law to immediately report convictions of certain crimes enumerated in state law to the School Corporation. The superintendent or designee is responsible for implementing regulations to notify the employees, including volunteers, and the entities for contracted services of this duty. In addition to the crimes listed in the state law, the notice shall also include the convictions of the “attempted” crimes listed in the law.

LEGAL REFERENCE:
I.C. 20-26-5-10(f), (h), (i), and (j) and (k)
I.C. 20-26-5-11.2

3012: EMPLOYEE REFERENCE CHECKS-APPLICANTS

Last Revised: 1-4-24
Prior Revision Dates:

To ensure that individuals who are hired by the School Corporation are well-qualified and have a strong potential to be productive and successful, it is the policy of the school corporation to check the employment references of all applicants.

The School Board desires to hire personnel whose background and behavior exemplifies a standard deemed appropriate for individuals working with children. At least three (3) oral or written references from individuals who have direct knowledge of the applicant's job performance and character should be obtained. One reference must be from the most recent supervisor or manager. References from family members are unacceptable.

Reference checks must be documented, including documenting reference checks conducted by telephone. If the school corporation elects to correspond in a written format with former employers or others for reference checks, copies of the responses from such parties shall be maintained by the school corporation.

Questions should relate only to the applicant's suitability for employment work performance, including interpersonal skills.

Prior to any reference checking, the applicant is to be asked to sign a release granting the Corporation permission to contact any person listed as a reference as well as any other person who may be familiar with the applicant's previous job performance or suitability for employment. Should a prospective employee refuse or fail to authorize or sign such a release, the Corporation shall cease processing the application and shall place the application in an inactive status.

Falsification of information during the interview or on the application shall be grounds for immediate removal from consideration for a position or dismissal from a currently held position.

The Superintendent or designee is responsible for implementing and monitoring this regulation.

3020: SEXUAL HARASSMENT GRIEVANCE PROCEDURE

Last Revised: September 7, 2023
Prior Revision Date: April 23, 1992

I. Policy Statement

It is the policy of the West Central School Corporation to maintain a learning and working environment that is free from sexual harassment.

It shall be a violation of this policy for any employee of the School Corporation to harass another employee or student through unwelcome conduct or communications of a sexual nature as defined in Section II. It shall also be a violation of this policy for students to harass other students through unwelcome conduct or communication of a sexual nature as defined in Section II. The use of the term "employee" also includes non-employees and volunteers who work subject to the control of school authorities.

The School Corporation will promptly:

1. investigate all complaints, written or verbal, of sexual harassment taken place at school or any school-sponsored activity within the United States;
2. take appropriate action to stop any harassment;
3. take appropriate action against any student or school employees who violates this policy; and
4. take any other action reasonably calculated to end and prevent further harassment of school employees or students.

The Title IX Coordinator is the person designated by the School Board to receive complaints of harassment and oversee the investigation of those complaints as described in this policy.

The Title IX Coordinator may be contacted at:

Central_Office@wcsc.k12.in.us
219-567-9161
1850 S. US 421
PO Box 578
Francesville, IN 47946

The School Board will prominently display the contact information for the Title IX Coordinator and this policy on its website and in each student and employee handbook.

Applicants for admission and employment, students, parents or legal guardians, employees, and all unions or professional organizations holding collective bargaining or professional agreements with the School Board will be notified of the name or title, office address, electronic mail address, and telephone number of the Title IX

Coordinator. The notification must also include the School Board does not discriminate on the basis of sex in its education program or activity, it is required by Title IX not to discriminate in such a manner, the requirement not to discriminate extends to admission and employment, and inquiries about the application of Title IX may be referred to the Title IX Coordinator, the Assistant Secretary for Civil Rights of the United States Department of Education, or both.

II. Definitions

Prohibited Conduct

Harassment Based on Sex

"Sexual harassment" means conduct on the basis of sex that satisfies one or more of the following:

1. an employee of the School Board conditioning the provision of an aid, benefit, or service of the School Board on an individual's participation in unwelcome sexual conduct;
2. unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the School Board's education program or activity; or
3. "sexual assault" as defined in 20 U.S.C. § 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. § 12291(a)(10), "domestic violence" as defined in 34 U.S.C. § 12291(a)(8), or "stalking" as defined in 34 U.S.C. § 12291(a)(30).

Types of Sexual Harassment

Sexual harassment consists of unwelcome sexual advances, requests for sexual favors, and other inappropriate verbal or physical conduct of a sexual nature when made by any employee to a student, when made by any employee to another employee, or when made by any student to another student when:

1. Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment or education.
2. Submission to or rejection of such conduct by an individual is used as a basis for academic or employment decisions affecting that individual.
3. Such conduct has the purpose or effect of unreasonably interfering with an individual's academic or professional performance or creating an intimidating, hostile, or offensive employment or educational environment.
4. Denial of an employment or educational opportunity of others occurs directly because an employee or a student submits to unwelcome requests for sexual favors made by a supervisor or teacher which results favorably for that employee or student.

5. Such conduct is engaged in by volunteers and/or non-employees over which the school corporation has some degree of control of their behavior while on school property.

Unwelcome Conduct of a Sexual Nature

1. Conduct of a sexual nature may include verbal or physical sexual advances and/or comments regarding physical or personality characteristics of a sexual nature.
2. Verbal or physical conduct of a sexual nature constitutes sexual harassment when the allegedly harassed employee has indicated, by his or her conduct or verbal objection, that it is unwelcome.
3. In the situation involving sexual harassment by an adult of an elementary student, unwelcomeness of the harassment is presumed and is not a factor to be considered.
4. An employee who has initially welcomed such conduct by active participation must give specific notice to the alleged harasser that such conduct is no longer welcome for any such subsequent conduct to be deemed unwelcome.

Examples of Sexual Harassment

Sexual harassment may include but is not limited to the following:

1. Verbal harassment or abuse.
2. Repeated remarks to a person with sexual or demeaning implications.
3. Unwelcome touching.
4. Pressure for sexual activity.
5. Suggesting or demanding sexual involvement accompanied by implied or explicit threats concerning one's grades, job, promotion, and/or salary increase.

III. Complaint Procedures

Report

Any student or school employee who believes he or she has been the victim of sexual harassment prohibited by this policy by a student, a school employee, or a third party should report the alleged harassment to the Title IX Coordinator or any school employee. The alleged harassment should be reported as soon as possible, and the report generally should be made within fifteen (15) school days of the occurrence.

Any student who has knowledge of conduct which may constitute sexual harassment should report such conduct to the Title IX Coordinator or any school employee. Any school employee who has notice that a student or a school employee may have been a victim of sexual harassment shall immediately report the alleged harassment to the Title

IX Coordinator. Any complaint that involves the Title IX Coordinator should be reported to the superintendent. Oral or written reports are acceptable.

The complaint, the identity of the person allegedly harassed, and the alleged harasser will be disclosed only to the extent necessary to fully investigate the complaint and only when such disclosure is required or permitted by law. Additionally, a person allegedly harassed who wishes to remain anonymous shall be advised that such confidentiality may limit the School Corporation's ability to fully respond to the complaint.

After receiving a complaint, the Title IX Coordinator makes an initial determination whether the allegations may be sexual harassment prohibited by this policy. If the allegations are deemed as such, the Title IX Grievance Process below must be followed.

Definitions

"Actual knowledge" means notice of sexual harassment or allegations of sexual harassment prohibited by this policy to the Title IX Coordinator or any school official who has authority to institute corrective measures or to any school employee.

"Complainant" means an individual who is alleged to be the victim of conduct that could constitute sexual harassment prohibited by this policy.

"Formal complaint" means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment prohibited by this policy and requesting the allegation be investigated. A formal complaint may be filed with the Title IX Coordinator in person, by mail, or by electronic mail. When the Title IX Coordinator signs a formal complaint, the Title IX Coordinator is not a party to the formal complaint. The allegations in a formal complaint must be investigated. In response to a formal complaint, the Title IX Grievance Process set out in this policy must be followed.

"Respondent" means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment prohibited by this policy.

"Supportive measures" means non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. Such measures are designed to restore or preserve equal access to the School Board's education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the educational environment or deter sexual harassment. Supportive measures may include counseling, extensions of deadlines or other course-related adjustments, modifications of work or class schedules, mutual restrictions on contact between the parties, changes in work locations, leaves of absence, increased security or monitoring of school property, and other similar measures. Any supportive measures provided are confidential, to the extent that maintaining such confidentiality does not

impair the ability to provide supportive measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

Title IX Grievance Process

Any person may report sexual harassment (whether or not the person reporting is the victim of conduct that could constitute sexual harassment), in person, by mail, by telephone, or by electronic mail, using the contact information listed for the Title IX Coordinator or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report. Such a report may be made at any time, including non-business hours, by using the telephone number or electronic mail address, or by mail to the address listed for the Title IX Coordinator.

The Title IX Coordinator will promptly contact the complainant to discuss the availability of supportive measures, consider the complainant's wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without the filing of a formal complaint, and explain the process for filing a formal complaint.

Complainants and respondents will be treated equitably by offering supportive measures to a complainant and by following this grievance process before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent.

This process does not preclude a respondent from being removed from the education program or activity on an emergency basis, provided that an individualized safety and risk analysis determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal and that the respondent is provided with notice and an opportunity to challenge the decision immediately following the removal.

This process does not preclude an employee who is a respondent from being placed on administrative leave during the grievance process.

This grievance process treats complainants and respondents equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment has been made against the respondent, and by following this process before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent. Remedies are designed to restore or preserve equal access to education programs or activities.

The respondent is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.

All relevant evidence is evaluated objectively. Credibility determinations are not based on a person's status as a complainant, respondent, or witness.

Any Title IX Coordinator, investigator, or decision makers may not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.

Title IX Coordinators, investigators, and decision makers must receive training on the definition of sexual harassment, the scope of the School Board's education program or activity, how to conduct an investigation and grievance process including appeals, and how to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias. Decision makers are required to receive training on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant. Investigators are required to receive training on issues of relevance in order to create investigative reports that fairly summarize relevant evidence.

A finding of responsibility may result in any disciplinary action up to and including expulsion for students or dismissal of employees.

The standard of evidence used to determine responsibility is a preponderance of the evidence.

This grievance process does not allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege unless the person holding such privilege has waived the privilege.

<u>Notice of Allegations</u>

On receipt of a formal complaint, the Title IX coordinator gives the following written notice to the parties:

1. notice of the grievance process, and
2. notice of the allegations of sexual harassment potentially constituting sexual harassment, including sufficient details known at the time. Sufficient details shall include the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident, if known. This notice must be given with sufficient time to prepare a response before any initial interview.

The written notice must also include:

1. a statement the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process;
2. information the parties may have an advisor of their choice, and may inspect and review evidence; and

3. information about any provisions in the School Board's code of conduct or other policies that prohibit knowingly making false statements or knowingly submitting false information during the grievance process.

If, in the course of an investigation, the investigator decides to investigate allegations about the complainant or respondent that are not included in the notice previously provided, notice of the additional allegations must be provided to the parties whose identities are known.

Dismissal of Formal Complaint

A formal complaint or any allegations therein must be dismissed if the conduct alleged in the complaint

1. would not constitute sexual harassment prohibited by this policy even if proved,
2. did not occur in the School Board's education program or activity, or
3. did not occur against a person in the United States.

Such a dismissal does not preclude action under another provision of the School Board's code of conduct or policy.

A formal complaint or any allegations therein may be dismissed if at any time during the investigation:

1. a complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein;
2. the respondent is no longer enrolled or employed by the School Board; or
3. specific circumstances prevent the School Board from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein.

Investigation of Formal Complaint

When investigating a formal complaint and throughout the grievance process, the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility is on the School Corporation and not the parties. A party's records that are made or maintained by a physician, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party will not be accessed, considered, disclosed or otherwise used without the voluntary, written consent of the party's parent, or the party if the party is an eligible student, to do so for this grievance procedure if such records are required as part of the investigation or determination of responsibility.

The parties will have an equal opportunity to present witnesses, including fact and expert witnesses, and any inculpatory and exculpatory evidence.

The ability of the parties to discuss the allegations under investigation or to gather and present relevant evidence is not restricted.

The parties have the same opportunities to have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be an attorney. The choice or presence of advisor for either the complainant or respondent is not limited in any meeting or grievance proceeding.

Any party whose participation is invited or expected is provided written notice of the date, time, location, participants, and purpose of all investigative interviews or other meetings with sufficient time for the party to prepare to participate.

The investigator must provide both parties an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in a formal complaint, including the evidence which will not be relied upon in reaching a determination regarding responsibility and inculpatory or exculpatory evidence whether obtained from a party or other source, so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation.

Prior to the completion of the investigative report, the investigator must send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy, and the parties must have at least 10 days to submit a written response, which the investigator must consider prior to completion of the investigative report.

The investigator shall write an investigative report that fairly summarizes relevant evidence and, at least 10 days prior to the time a determination regarding responsibility is made, send to each party and the party's advisor, if any, the investigative report in an electronic format or a hard copy, for their review and written response.

The investigative report will be provided to the parties and the decision maker within 35 days from the date the formal complaint is filed.

After the investigator has sent the investigative report to the parties and before reaching a determination regarding responsibility, the decision maker must afford each party the opportunity to submit written, relevant questions the party wants to be asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior

sexual behavior with respect to the respondent and are offered to prove consent. The decision maker must explain to the party proposing the question of any decision to exclude a question as not relevant.

Determination Regarding Responsibility

The decision maker, who is not the same person as the Title IX Coordinator or the investigator, must issue a written determination regarding responsibility.

The written determination must include the following:

1. identification of the allegations potentially constituting sexual harassment prohibited by this policy;
2. a description of the procedural steps taken from the receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, and methods used to gather other evidence;
3. findings of fact supporting the determination;
4. conclusions regarding the application of the School Board's code of conduct or other policy provisions to the facts;
5. a statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary actions recommended against the respondent, and whether remedies designed to restore or preserve equal access to the School Board's education program or activity will be provided to the complainant; and
6. the procedures and permissible bases for the complainant and respondent to appeal.

A determination of responsibility decision will be issued within 10 working days from the date the investigative report is submitted to the decision maker.

The decision maker must provide the written determination regarding responsibility to the parties simultaneously.

The Title IX Coordinator is responsible for the effective implementation of any remedies.

Appeals

Either party may appeal within 5 working days from the date the written determination regarding responsibility is given to the parties.

Either party may appeal from a determination regarding responsibility or a dismissal of a formal complaint or any allegations therein, on the following bases:

1. procedural irregularity that affected the outcome of the matter;

2. new evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter; and
3. the Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter.

Notification of appeal must be given in writing to the Title IX Coordinator.

For all appeals, the Title IX Coordinator will

1. notify the other party in writing when an appeal is filed and implement appeal procedures equally for both parties;
2. ensure the decision maker for the appeal is not the same person as the decision maker that reached the determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator; and
3. ensure the decision maker for the appeal complies with the standards outlined in this policy.

The appeal decision maker will

1. give both parties a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome;
2. review the evidence gathered by the investigator, the investigator's report, and the decision maker's written decision;
3. issue a written decision describing the result of the appeal and the rationale for the result; and
4. provide the written decision simultaneously to both parties and the Title IX Coordinator.

Any appeal will be resolved with 15 calendar days from the filing of the appeal.

The determination regarding responsibility becomes final if an appeal is filed on the date the parties are provided with the written determination of the result of the appeal or if an appeal is not filed, the date on which an appeal would no longer be considered timely.

Temporary delays of the grievance process or the limited extension of time frames for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action are permitted. Good cause may include considerations such as the absence of a party, a party's advisor, or a witness; disciplinary processes required by law or School Board policy; or the need for language assistance or an accommodation of disabilities.

<u>Recordkeeping</u>

The School Board will maintain for a period of seven years records of:

1. each investigation of allegations of sexual harassment prohibited by this policy including any determination regarding responsibility and any audio or audiovisual recording or transcript, any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant designed to restore or preserve equal access to School Board's education program or activity;
2. any appeal and the result of the appeal; and
3. all materials used to train Title IX Coordinators, investigators, decision makers, and any person who facilitates an informal resolution process. These materials will also be made available on the School Corporation's website.

For each response required under this policy and federal law, the School Board must create, and maintain for a period of seven years, records of any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment prohibited by this policy. In each instance, the School Board will document the basis for its conclusion that its response was not deliberately indifferent, and document it has taken measures designed to restore or preserve equal access to its education program or activity. If the School Board does not provide a complainant with supportive measures, then it must document the reasons why such a response was not clearly unreasonable in light of the known circumstances.

IV. Retaliation

Retaliation against students or school employees who report harassment or participate in any related proceedings is prohibited. The school corporation shall take appropriate action against students or school employees who retaliate against any student or school employee who reports alleged harassment or participates in related proceedings. The Title IX Coordinator will inform persons who make complaints, who are the subject of complaints, and who participate in investigations of how to report any subsequent retaliatory actions.

V. False Charges

Students or school employees who knowingly make false charges of harassment shall be subject to disciplinary action as well as any civil or criminal legal proceedings.

Legal Refs: 20 U.S.C. §§ 1681-1688.
42 U.S.C. §§ 2000d-2000d-7.
42 U.S.C. §§ 2000e-2000e-17.

42 U.S.C. § 2000ff-1.
34 C.F.R. 106.2, 106.8, 106.9, 106.3, 106.44, 106.45, 106.71

REPORT OF SEXUAL HARASSMENT

This form is to be used by any employee or student who has either observed or been subject to sexual harassment. To ensure full investigation, it should be completed as accurately as possible. It is not, however, critical to be 100 percent precise. An investigation may require the complainant to be interviewed.

Date: _____

PLEASE PRINT

Name of complainant making a Charge of sexual harassment: _____

Address of complainant: _____

Telephone number: _____

Position or Grade: _____

Name of individuals involved In the harassment and indicate Whether they are students or Employees: _____

_____

Please give a description of the sexual harassment in your own words:

_____

_____

Names of any witnesses, Indicating whether they are Employees or students: _____

_____

_____

Complainant's Signature

Please see the West Central School Corporation's policy on Sexual Harassment for more information on the topic. Present this report to your most immediate supervisor not involved in the harassment.

_____

Report Number

INVESTIGATIVE REPORT
OF ALLEGED SEXUAL HARASSMENT

Note: If additional space is needed, please attach separate sheets as references by report number.

Name of complainant: _____

School and/or position _____

Nature of complaint _____ Student _____ Employee

Specific complaint: _____

_____

Date complaint filed _____

Name(s) of Respondent _____ Date notified _____

Respondent's answer _____ Agrees with the facts
_____ Disagrees with the facts

Explanation: _____

_____

Date complainant notified: _____

Complainant's response _____ Agrees with the facts
_____ Disagrees with the facts

Explanation: _____

_____

Complainant's Witnesses _____ _____
(name) (position)
_____ _____

_____ _____

_____ _____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Respondent's Witnesses _____ _____
(name) (position)

_____ _____

_____ _____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Other records/documents reviewed:

1. _____ _____
(name of document) (date reviewed)
2. _____ _____
3. _____ _____
4. _____ _____

Summary of review of above records/documents:

_____

_____

_____

_____

Investigator's Summary:

_____

_____

_____

_____

Suggested Corrective Action:

_____

_____

_____

_____

_____
Investigator's Signature

_____
Date

3110: DRUG-FREE WORKPLACE

Last Revised: September 7, 2023
Prior Revision Dates:February 22, 1990

No employee of the West Central School Corporation shall distribute, dispense, possess, use or be under the influence of or unlawfully manufacture, distribute, dispense, possess, use or be under the influence of any narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, anabolic steroid or any other controlled substance as defined in schedules I through V of section 202 of the Controlled Substances Act (21 U.S.C. Section 812) and as further defined by regulation at 21 C.F.R. 1300.11 through 1300.15, before, during, or after school hours at school or in any other school corporation location as defined below.

"School corporation location" means in any school building and on any school premises; in any school-owned vehicle or in any other school-approved vehicle used to transport students to and from school or school activities; off school property at any school-sponsored or school-approved activity, event or function, such as a field trip or athletic event, where students are under the jurisdiction of the school corporation; or during any period of time such employee is supervising students on behalf of the school corporation or otherwise engaged in school corporation business.

As a condition of employment in any federal grant program, each employee who is engaged either directly or indirectly in performance of a federal grant shall abide by the terms of this policy. Each employee shall notify his or her supervisor in writing of his or her conviction of any criminal drug statute for a violation occurring in any of the places listed above on which work on a school corporation federal grant is performed, no later than five (5) calendar days after such conviction.
Reference: 41 U.S.C. 701 et seq.

<u>Basis for Reasonable Suspicion of Employee Use of Controlled Substance/Alcohol</u>
Reasonable suspicion of employee use of an unlawful controlled substance or alcohol shall be based upon any of the following:

1. Observed abnormal behavior or impairment in mental or physical performance (e.g., slurred speech, difficulty walking);
2. Direct observation of use in the workplace;
3. The opinion of a medical professional;
4. Reliable information concerning use in the workplace, the reliability of any such information shall be determined by employer;
5. A work-related accident in conjunction with a basis for reasonable suspicion as listed above.

Reasonable Suspicion Testing

Employees may be subject to drug and/or alcohol testing when there is reasonable suspicion by the corporation administrator and/or supervisor that indicates the employee may have violated corporation policy and is using or appears to presently be under the influence of drugs and/or alcohol in violation of the policy.

Reasonable suspicion testing shall be based on objective facts and articulable observations that are consistent with the signs and symptoms of drug and alcohol abuse; including, but not limited to, appearance, behavior, motor skills, attendance and/or work performance by the employee. The circumstances, under which drug and alcohol testing shall be considered, as outlined above, are strictly limited to time and place of employee conduct while on duty, during work hours, and/or on school property.

The Corporation shall take steps to ensure that corporation administrators and supervisors receive proper training to recognize the signs and symptoms of drug and alcohol misuse prior to making determinations for reasonable suspicion testing.

The Corporation shall pay all costs of the employee drug and alcohol testing, unless the test is a retest requested by the employee. Corporation employees will be compensated at their regular rate of pay for the time during which they are undergoing any drug or alcohol testing, including transportation time.

Reasonable Suspicion Drug Testing

Trained supervisors have the responsibility to observe and document the cause for reasonable suspicion, and when appropriate, refer the matter to the Director of Schools/designee. It is not the supervisor's responsibility to attempt diagnosis. All information, facts, and circumstances leading to and supporting this suspicion shall be included in a written report detailing the basis for the suspicion. After the report is filed, the employee shall be notified

Any employee may be required to submit to substance screening if the following conditions exist, including but not limited to:

1. Observed manufacture, distribution, possession, use, or appearance of being under the influence of any illegal or unauthorized drugs or any alcohol;

2. Apparent physical state of impairment of motor functions;

3. Marked changes in personal behavior not attributed to other factors; or

4. Employee involvement in or contribution to an accident where the use of alcohol or drugs is reasonably suspected or employee involvement in a pattern of repetitive accidents whether or not they involve actual or potential injury.

DEFINITIONS OF DRUGS

Illicit drugs are defined as any narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, anabolic steroid or any other controlled substance as defined in schedules I through V of section 202 of the Controlled Substances Act (21 U.S.C. Section 812) and as further defined by regulation at 21 C.F.R. 1300.11 through 1300.15.

SAMPLE NOTICE:

NOTICE TO EMPLOYEES WORKING
ON FEDERAL CONTRACT OR GRANT

The West Central School Corporation is committed to providing a drug-free workplace and we expect the cooperation of all employees and a similar commitment from them. Pursuant to the Drug-Free Workplace Act of 1988, the unlawful manufacture, distribution, dispensation, possession, or use of a controlled substance in the workplace is prohibited. Any employee who violates the above rule may be subject to discipline, up to and including termination. As a condition of employment, all employees must abide by this rule. In addition, any employee who is convicted of a drug statute violation arising out of conduct occurring in the workplace must notify the West Central School Corporation of such conviction at least five (5) days after the conviction.

TESTING PROCEDURE FOR REASONABLE SUSPICION

Description of Tests

Alcohol:

Alcohol testing may be required when reasonable suspicion exists. Alcohol testing is performed using an evidential breath testing device (EBT) approved by the National Traffic Safety Administration. All alcohol breath tests shall be conducted on an approved EBT by a trained breath alcohol technician (BAT). EBT's shall be able to distinguish alcohol from acetone at the 0.02% alcohol concentration level and shall be capable of testing an air blank prior to each collection of breath and performing an external calibration check. In order to be used in either screening or confirmation alcohol testing, an EBT shall have a quality assurance plan (QAP) developed by the manufacturer.

Drug testing:

Drug testing may be required when reasonable suspicion exists. Drug testing is conducted by analyzing a urine specimen for the following drugs: marijuana, cocaine, opiates, amphetamines, and phencyclidine. All drug test results are reviewed and interpreted by a medical review officer (MRO) before the results are reported to the Corporation.

When the Corporation reasonably suspects a violation of the corporation's Drug and Alcohol-Free Workplace policy, the Corporation shall proceed as described below:

- The employee's supervisor or corporation administrator shall complete a Record of Observable Behavior form. The supervisor or corporation administrator shall not attempt to make allegations or diagnose behavior beyond observed and reported behavior.
- The employee's supervisor and/or corporation administrator shall solicit an explanation from the employee regarding the employee's observed behavior. All conversations had with the employee shall, whenever possible, involve a witness.
- The corporation administrator may require the employee to undergo a drug and/or alcohol test if the employee can't satisfactorily explain their behavior.
- If an alcohol test is not administered within two hours, or if a drug test is not administered within 32 hours, the Corporation shall prepare and maintain a written record explaining why the test wasn't conducted.
- A written record of observable behavior of the employee shall be made within 24 hours of reasonably suspecting a violation of corporation policy or before test results are released (whichever occurs first).
- Reasonable suspicion tests shall be conducted by a person other than the person who determines reasonable suspicion exists.
- If the employee refuses to undergo the test, they shall be advised that such refusal may subject the employee to disciplinary consequences. If the employee still refuses to undergo testing, they shall be directed to the Superintendent for disciplinary purposes.
- The corporation administrator shall arrange an escort or transport the employee subject to drug and alcohol testing to a designated drug and alcohol testing facility to provide a breath and/or urine specimen.
- The corporation administrator shall schedule a date and time to discuss the results of the test(s). This meeting may include the corporation administrator, human resource officer, union representative (if requested), or others deemed necessary.
- The employee shall return to their position if a positive drug test is not confirmed.
- An employee who tests positive for drugs and/or alcohol shall be given an opportunity to discuss and explain the positive test result(s).
- A formal chemical dependency diagnostic interview (and treatment, if the report of the diagnostician indicates a need for treatment) may be made a condition of continued employment if the employee's job performance is adversely affected.
- The Corporation shall make every effort to provide supportive assistance to those employees who return after completing a therapeutic regime.

<u>Drug and Alcohol Testing Procedures</u>

The following procedures apply when an employee is subject to reasonable suspicion drug and/or alcohol testing:

Alcohol Testing:

Breath alcohol testing shall be conducted at a location that affords visual and aural privacy to the employee being tested sufficient to prevent unauthorized persons from seeing or hearing the test results. In some unusual circumstances, such as when it is essential to conduct a test at the scene of an accident, a test may be conducted at a location that provides visual and aural privacy only to the extent practicable.

All necessary equipment, personnel, and materials for breath testing shall be provided at the location where testing is conducted.

The employee shall complete all required paperwork and be required to properly identify themselves. The test administrator must document refusal to complete required paperwork. The employee shall be directed to blow into a breathalyzer and must be shown the results of the test.

If the test is positive, as defined by federal standards, the employee may be required to submit to a confirmation test. The employee shall be instructed not to eat, drink, or put any object or substance in their mouth until after the confirmation test. The test administrator shall also explain the test may be conducted even if the employee has disregarded these instructions. Confirmation test results are deemed to be the final results upon which any action under the drug and alcohol testing policy or regulations shall be based.

The test administrator shall transmit all results to the Corporation in a confidential manner.

The test administrator shall also inform the Corporation of any refusal to test.

If the employee attempts and fails to provide an adequate amount of breath, the Corporation shall direct the employee to obtain, as soon as practical after the attempted test, an evaluation from a licensed physician acceptable to the Corporation concerning the employee's medical ability or inability to provide an adequate amount of breath. If the physician determines, in their reasonable medical judgment, that a medical condition has, or could have, precluded the employee from providing an adequate amount of breath, the employee's failure to provide an adequate amount of breath shall not be deemed a refusal to take the test. If a licensed physician is unable to make such a determination, the employee's failure to provide an adequate amount of breath shall be regarded as a refusal.

<u>Drug Testing:</u>

To ensure the appropriate chain of custody and specimen control are maintained, the collection of urine specimens shall proceed as follows:

Upon the employee's arrival at the designated collection site, the collector shall request the employee to provide identification and complete required paperwork, including listing prescriptions. The collector shall document refusal to complete paperwork.

The employee shall be required to leave personal belongings including, but not limited to, coats and purses/bags outside the collection area. The employee shall be required to wash and dry their hands before the test is administered. The employee shall then remain in the collection area and not have access to any other material that could be used to adulterate the specimen. Any transfer of the specimen from the collection container to another specimen bottle must be observed by the employee.

If the test result is positive, the employee may request the medical review officer (MRO) direct the split specimen be tested in a different Department of Health and Human Services-certified laboratory. The MRO shall honor such a request if it is made within 72 hours of the employee having been notified of a verified positive test result. The MRO must take all steps necessary to ensure the specimen is clearly identified and document the chain of custody when the specimen is transferred to a different lab. The cost of the split specimen testing shall be paid by the employee.

Upon notification by the collection site that an employee has failed to appear for their scheduled collection, the Corporation shall inquire of the employee the reason(s) for failing to appear. If the employee provides a legitimate reason for failing to report, no disciplinary action shall be taken against the employee. If the employee does not provide a legitimate reason for failing to report, disciplinary action, in accordance with policy, may be taken. The Superintendent shall determine whether legitimate reasons exist.

In the event an employee refuses to provide a specimen, the collection site and/or the Corporation shall advise the employee that refusal to provide a specimen shall result in disciplinary action. In the event the employee still refuses to provide a specimen, the employee shall be subject to disciplinary action in accordance with policy.

In the event an employee fails to provide a sufficient quantity of urine, the collection site and/or the Corporation shall meet with the employee to see if they have a legitimate reason, and they must be required to take the drug test within four hours of the meeting. If the employee does not have a legitimate reason, the failure to provide a sufficient quantity of urine shall be treated as a refusal to provide a specimen.

In the event an employee is unable, or alleges they are unable, to provide a sufficient quantity of urine because of a medical condition, the Corporation shall direct the employee to obtain, as soon as practical after the attempted test, an evaluation from a licensed physician acceptable to the Corporation concerning the employee's medical ability or inability to provide a sufficient quantity of urine. If the physician determines, in their reasonable medical judgment, that a medical condition has, or could have, precluded the employee from providing a sufficient

quantity of urine, the employee's failure to provide a sufficient quantity of urine shall not be deemed a refusal to take the test. If a licensed physician is unable to make such a determination, the employee's failure to provide a sufficient quantity of urine shall be regarded as a refusal.

STEPS TO PERFORMING A REASONABLE SUSPICION TEST

- Identify problem and observe.
- Act on medical concerns immediately. (Consider possible medical conditions such as diabetes, epilepsy, stroke, etc. If this is a possibility, call 911 immediately.)
- Document your findings within 24 hours of reasonably suspecting a violation of district policy.
- Meet with the employee in privately to discuss observations and findings. Whenever possible, involve a witness.
- Tell employee what was observed and felt to be abnormal.
- Ask employee why they appear to be behaving abnormally.
- Inform employee that supervisors are required to act when there is reasonable suspicion to believe the District's drug and/or alcohol prohibitions have been violated.
- Inform employee that District policy permits drug and/or alcohol testing when there is reasonable suspicion that an employee is in violation of the drug and/or alcohol use policy.
- Inform employee of the consequences of refusal to test: An employee who refuses to submit to a drug and/or alcohol test or who violates any aspect of these guidelines may be subject to disciplinary action up to and including termination.
- Have employee agree to be tested and complete the district consent form prior to obtaining drug and/or alcohol test.
- Arrange escort/transport of employee to collection site (Do not let the employee self-transport.)

Under no circumstances shall an employee be required to transport an employee exhibiting violent or threatening behavior. In such cases, the responsible employee shall immediately contact the appropriate law enforcement agency.

- Arrange escort/transport of employee to home. (Do not let the employee self-transport)
- Discuss the positive test results with employee and any resulting disciplinary action.
- Maintain confidentiality as required throughout process.

Supervisor/Administrator Written Summary of Observation and Screening

_____
_____
_____
_____

_____ _____

Signature (Supervisor/Administrator) Date

3120: TRAINING AND HEALTH PRECAUTIONS FOR COMMUNICABLE DISEASES

Last Revised: September 7, 2023
Prior Revision Dates: March 4, 2021

It shall be the policy of the West Central School Corporation to provide simple and effective precautions against the transmission of disease in the school environment and comply with Indiana Statutes. Each employee who has duties that require the employee to have direct contact with blood or body fluids in the scope of his or her employment shall receive training and access to the necessary equipment to prevent transmission of communicable diseases.

Before an employee is given an assignment where contact with blood or body fluids is likely, the employee will be provided the necessary training, including training in the universal precautions and other infection control measures adopted by the State Board of Health, to prevent the transmission of communicable diseases. An attendance record of an employee's participation in the training shall be maintained.

When an employee has direct contact with blood or body fluids, the employee shall use the universal precautions as specified by the State Board of Health.

If an employee fails to use the universal precautions or fails to attend the training sessions, the employee may be subject to sanctions, including discipline and dismissal, if warranted, deemed appropriate by the board.

{Recodified - Section 601}

Legal IC 16-41-11 et seq.

3225: EMPLOYEE TRAVEL AND EXPENSES

Last Revised: April 4, 2024
Prior Revision Dates:

Individual school employees shall be reimbursed for expenses while attending meetings related to their duties or employment or for professional development with prior approval of the building principal and superintendent. Out of state travel requires approval by the School Board. Permission to travel in state does not require School Board approval.

Travel

Food, lodging, and transportation is allowed for each day of travels noted below. Any expense due to extended personal travel shall be at the employee's expense.

Transportation

An employee who is specifically authorized by the administration to use his/her own vehicle in pursuance of an approved school activity, as for example, but not by way of limitation approved transportation of students or equipment or travel to authorized conferences, shall be reimbursed the current IRS rate per mile traveled. As used in this section, "an approved school activity" does not include travel to and from school, athletic events, non all-school events such as parent-teacher nights, graduation ceremonies and similar events.

Employees shall choose their mode of travel. When traveling by automobile a mileage form stating dates of travel, destination and odometer readings must be submitted. Employees shall be allowed to travel from home to point of destination, points within the destination area and return home on dates of authorized travel. Any employee not traveling by automobile, may upon reaching destination, lease/rent an automobile if deemed necessary. Purpose of leasing/renting automobiles is to reduce taxi and related ground transportation costs. Employees are encouraged to share leased/rented vehicles.

Employees being transported by ride-share companies (Uber, Lyft, etc.) may submit receipts for reimbursement on the same grounds as other modes of transportation with a maximum of 20% gratuity.

Food

Reimbursement for food and beverage expenses, including gratuities, shall be allowed as follows. The School Corporation shall pay, or upon receipt of written invoice, reimburse an employee for meals for multi-day events (up to thirty dollars per day $30.00). Gratuities are not to exceed 20% of the total bill. Original

receipts must be submitted for reimbursement. Alcoholic beverages will not be reimbursed.

No food allowance or reimbursement for food is allowed while conducting business within the school corporation boundaries.

Lodging

Lodging shall be reimbursed at single occupancy rate. Lodging at destination is allowed with approval of the Superintendent based on the time of the conference and travel.

The Corporation will not reimburse or pay for such items as liquor, expenses of a spouse, separate entertainment, or other unnecessary expenditures.

3230: SUICIDE AWARENESS AND PREVENTION

Last Revised: September 7, 2023
Prior Revision Dates:

I. Suicide Awareness and Prevention

The purpose of this policy is to protect the health and well-being of all students by having procedures in place to prevent, assess the risk of, intervene in, and respond to suicide. The corporation recognizes that physical, behavioral, and emotional health is an integral component of a student's educational outcomes, and that suicide is a leading cause of death among young people. The corporation has a responsibility to take a proactive approach in preventing deaths by suicide and acknowledges the school's role in providing an environment which is sensitive to the factors that place youth at greater risk for suicide and helps to foster positive youth development.

This policy covers actions that take place in the school, on school property, at school-sponsored functions and activities, on school buses or vehicles, at bus stops, and at school-sponsored out of-school events where school employees are present. This policy applies to the entire school community, including teachers, administrators, corporation staff, students, parents/guardians, and volunteers.

Prevention

Policy Implementation: A corporation suicide prevention coordinator shall be designated by the Superintendent. The corporation suicide prevention coordinator will be responsible for planning and coordinating implementation of this policy for the school corporation.

Each school principal shall designate a school suicide prevention coordinator to act as a point of contact in each school for issues relating to suicide prevention and policy implementation. All staff members shall report students they believe to be at elevated risk for suicide to the school suicide prevention coordinator.

Professional Development

All administrators, teachers, and employees will receive annual training on risk factors, warning signs, response procedures, referrals, postvention, and resources regarding youth suicide prevention. The training programs used will be research-based that are demonstrated to be an effective or promising program and recommended by the Indiana Suicide Prevention Network Advisory Council.

The training will include additional information regarding groups of students at elevated risk for suicide, including those living with mental and/or substance use disorders, those who engage in self-harm or have attempted suicide, those in out-of-home settings, those experiencing homelessness, American Indian students,

LGBTQ (lesbian, gay, bisexual, transgender, and questioning) students, students bereaved by suicide, and those with medical conditions or certain types of disabilities.

Additional training in risk assessment and crisis intervention will be provided to school employed mental health professionals and school nurses.

Suicide Prevention Programming

Developmentally-appropriate, student-centered education materials will be integrated into the curriculum of all K-12 health classes. The content of these age-appropriate materials will include:

1. The importance of safe and healthy choices and coping strategies,
2. How to recognize risk factors and warning signs of mental disorders and suicide in oneself and others,
3. Help seeking strategies for oneself or others, including how to engage school resources and community-based suicide prevention services. In addition, schools may provide supplemental small group suicide prevention programming for students.

The school corporation will work in cooperation with community-based suicide prevention services to provide educational and referral information about crisis intervention to at-risk students, their parents, and school employees. Referral information and the availability of suicide prevention services in the local community will be made available by the school corporation through its employee training and student education programs to its employees, its students, and their parents.

Assessment and Referral

When a student is identified by a staff person as potentially suicidal or a student self-refers, the student will be seen by a school employed mental health professional within the same school day to assess risk and facilitate referral. If there is no mental health professional available, a school nurse or administrator will fill this role until a mental health professional can be brought in.

For students at risk:

1. School staff will continuously supervise the student to ensure their safety.
2. The principal and school suicide prevention coordinator will be made aware of the situation as soon as reasonably possible.
3. The mental health professional or principal will contact the student's parent or guardian and will assist the family with an urgent referral. When appropriate, this may include calling emergency services or bringing the student to the local Emergency Department, but in most cases will involve setting up an outpatient mental health or primary care appointment and communicating the reason for referral to the healthcare provider.

4. Staff will ask the student's parent or guardian for written permission to discuss the student's health with outside care, if appropriate.

Crisis Team

The superintendent or designee will appoint a crisis team, which will be a multidisciplinary team consisting of primarily administrative, mental health, and safety professionals, and support staff whose primary focus is to address crisis preparedness, intervention/response and recovery. Members of the crisis team should be professionals who have been specifically trained in crisis preparedness through recovery. The crisis team will take the leadership role in developing crisis plans, ensuring school staff can effectively execute various crisis protocols, and may provide mental health services for effective crisis interventions and recovery supports.

Publication and Distribution of Policy

This policy and its regulations will be distributed annually to all corporation employees and included in all student handbooks and on the school website.

Legal Reference: IC 20-26-5-34.4
Revised: August 2, 2018

Administrative Regulations

Parental Notification and Involvement

If a staff member becomes aware of a suicide attempt by a student that is in progress, the staff member will:

1. Call the police and/or emergency medical services, such as 911.
2. Inform the student's parent or guardian.
3. Inform the school suicide prevention coordinator and principal.

If a student contacts a staff member and expresses suicidal ideation, the staff member should maintain contact with the student (either in person, online, or on the phone). The staff member should then enlist the assistance of another person to contact the police while maintaining verbal engagement with the student.

In situations where a student is assessed at risk for suicide or has made a suicide attempt, the student's parent or guardian will be informed as soon as practicable by the principal, designee, or mental health professional.

If the student has exhibited any kind of suicidal behavior, the parent or guardian should be counseled on limiting the child's access to mechanisms for carrying out a suicide attempt.

Staff will also seek parental permission to communicate with outside mental health care providers regarding their child.

Through discussion with the student, the principal or mental health professional will assess whether there is a further risk of harm due to parent or guardian notification.

If the principal, designee, or mental health professional believes, in their professional capacity, that contacting the parent or guardian would endanger the health or well-being of the student, they may delay such contact as appropriate. If contact is delayed, the reasons for the delay should be documented.

Postvention

1. Development and Implementation of an Action Plan.
   The crisis team will develop an action plan to guide school response following a death by suicide. A meeting of the crisis team to implement the action plan should take place immediately following news of the suicide death. The action plan may include the following steps:
   a. Verify the death: Staff will confirm the death and determine the cause of death through communication with a coroner's office, local hospital, the student's parent or guardian, or police department. Even when a case is perceived as being an obvious suicide, it should not be labeled as such until after a cause of death ruling has been made. If the cause of death has been confirmed as suicide, but the parent or guardian will not permit the cause of death to be disclosed, the school will not share the cause of death but will use the opportunity to discuss suicide prevention with students.
   b. Assess the situation: The crisis team will meet to prepare the postvention response, to consider how severely the death is likely to affect other students and to determine which students are most likely to be affected. The crisis team will also consider how recently other traumatic events have occurred within the school community and the time of year of the suicide.
   c. Share information: Before the death is officially classified as a suicide, the death should be reported to staff, students, and parents/guardians with an acknowledgment that its cause is unknown. Inform the faculty that a sudden death has occurred. Write a statement for staff members to share with students. The statement should include the basic facts of the death and known funeral arrangements (without providing details of the suicide method), recognition of the sorrow the news will cause, and information about the resources available to help students cope with their grief. The crisis team may prepare a letter with the input and permission from the student's parent or guardian to send home with students that include facts about the death, information about what the school is doing to support students, the warning signs of suicidal behavior, and a list of resources available.
   d. Avoid suicide contagion: It should be explained to staff that one purpose of trying to identify and give services to other high risk students is to prevent another death. The crisis team will work with teachers to identify students who are most likely to be significantly affected by the death. The crisis team will

review suicide warning signs and procedures for reporting students who generate concern with the staff.

e. Initiate support services: Students identified as being more likely to be affected by the death will be assessed by a mental health professional to determine the level of support needed. The crisis team will coordinate support services for students and staff in need of counseling. In concert with parents or guardians, crisis team members will refer to community mental healthcare providers to ensure a smooth transition from the crisis intervention phase to meeting underlying or ongoing mental health needs.

2. External Communication

   The school principal or designee will be the sole media spokesperson. Staff will refer all inquiries from the media directly to the spokesperson. The spokesperson will:

   a) Keep the corporation suicide prevention coordinator and superintendent informed of school actions relating to the death.
   b) Prepare a statement for the media including the facts of the death, postvention plans, and available resources. The statement will not include confidential information, speculation about the victim's motivation, means of suicide, or personal family information.
   c) Answer all media inquiries.

   If a suicide is to be reported by news media, the spokesperson should encourage reporters not to make it a front-page story, not to use pictures of the suicide victim, not to use the word suicide in the caption of the story, and not to describe the method of suicide. They should also be encouraged not to speculate about the reason for suicide. Media should be asked to offer the community information on suicide risk factors, warning signs, and resources available.

In-School Suicide Attempts

In the case of an in-school suicide attempt, the health and safety of the student is paramount. In these situations:

1. First aid will be rendered until professional medical treatment and/or transportation can be received, following district emergency medical procedures.
2. School staff will supervise the student to ensure their safety.
3. Staff will move all other students out of the immediate area as soon as possible.
4. If appropriate, staff will immediately request a mental health assessment for the student.
5. The mental health professional or principal will contact the student's parent or guardian, as described in the Parental Notification and Involvement section.
6. Staff will immediately notify the principal or school suicide prevention coordinator regarding in-school suicide attempts.

7. The school will engage as necessary the crisis team to assess whether additional steps should be taken to ensure student safety and well-being.

Re-Entry Procedure

For students returning to school after a mental health crisis (e.g., suicide attempt or psychiatric hospitalization), a mental health professional, the principal, or designee will meet with the student's parent or guardian, and if appropriate, meet with the student to discuss re-entry and appropriate next steps to ensure the student's readiness for return to school.

1. A mental health professional or another designee will be identified to coordinate with the student, their parent or guardian, and any outside mental health care providers.
2. The parent or guardian will provide documentation from a mental health care provider that the student has undergone examination and that they are no longer a danger to themselves or others.
3. The designated staff person will periodically check in with the student to help the student readjusts to the school community and address any ongoing concerns.

3330: SOCIAL MEDIA USE BY EMPLOYEES

Last Revised: April 4, 2024
Prior Revision Dates:

Electronic media includes text messaging, instant messaging, electronic mail (e-mail), blogs, electronic forums (chat rooms), video-sharing Web sites, editorial comments posted on the Internet, social network sites, and all forms of telecommunication such as landlines, cell phones, and Web-based applications.

As professionals, all West Central employees are expected to support a positive public image of West Central Schools. Any and all references to West Central Schools made on social media should be positive and support our mission and vision statements.

For the purpose of this policy, **social media** is defined as: primarily internet or cellular phone-based applications and tools to share information among people.

Considerations for staff:

1. Any reference to West Central Schools should be made only in a professional manner.
2. Exercise good judgment in on-line conduct.
3. Public airing of grievances or communications of matters that are outside the scope of the employee's professional responsibilities are not professional and may result in disciplinary action.
4. Maintain a strict segregation of personal and school-related accounts.
5. Review the privacy settings on social medial accounts to limit the access of information to pertinent people.

Employee Use of Social Media When Communicating With Students

An employee may communicate through social media with students who are currently enrolled in the corporation; however, the communications must comply with the provisions outlined below. An employee is not subject to these provisions to the extent the employee has a social or family relationship with a student. For example, an employee may have a relationship with a niece or nephew, a student who is the child of an adult friend, a student who is a friend of the employee's child, or a member or participant in the same civic, social, recreational, or religious organization. Any contact with currently enrolled students should be done in a professional and transparent manner. When communicating with students through social media, employees shall observe the following:

1. The employee shall limit communications with students to matters within the scope of the employee's professional responsibilities (e.g., for classroom teachers, matters relating to class work, homework, and tests); for an employee with an extracurricular duty, matters relating to the extracurricular activity.
2. The preferred method of communicating with students is with a group texting app which conceals the sender's number.

3. Improper fraternization with students in any form is strictly prohibited.
4. The employee does not have a right to privacy with respect to communications with students and parents.
5. Employees are prohibited from soliciting or engaging in sexual conduct or a romantic relationship with a student.

6. Upon request from administration, an employee will provide the phone number(s), social network site(s), or other information regarding the method(s) of social media the employee uses to communicate with any currently enrolled student(s).

Upon written request from a parent or student, the employee shall discontinue communicating one-to-one with the student through electronic media.

As role models for the corporation's students, employees are responsible for their public conduct even when they are not acting as school corporation employees. Employees will be held to the same professional standards in their public use of electronic media as they are for any other public conduct. If an employee's use of electronic media interferes with the employee's ability to effectively perform his or her job duties, the employee is subject to disciplinary action, up to and including termination of employment. If an employee wishes to use a social network site or similar media for personal purposes, the employee is responsible for the content on the employee's page, including content added by the employee, the employee's friends, or members of the public who can access the employee's page, and for links on the employee's page. The employee is responsible for maintaining privacy settings appropriate to the content and posting a statement that the content of the posts by the employee are the personal opinions of the employee and the employee is not a representative of their employer.

An employee who uses electronic media for personal purposes shall observe the following:

- The employee may not set up or update the employee's personal social network page(s) using the corporation's computers, network, or equipment.
- The employee shall not use the corporation's logo or other copyrighted material of the corporation without express, written consent or affiliate themselves with the school corporation as an employee.
- The employee continues to be subject to applicable state and federal laws, local policies, and administrative regulations, even when communicating regarding personal and private matters, regardless of whether the employee is using private or public equipment, on or off campus. These restrictions include:
  - Confidentiality of student records.
  - Confidentiality of health or personnel information concerning colleagues, unless disclosure serves lawful professional purposes or is required by law.
  - Confidentiality of corporation records.
  - Copyright law
  - Prohibition against harming others by knowingly making false statements about a colleague or the school system.

Employee Use of Social Media with Students

Any employee designated in writing by the superintendent or a principal may communicate through electronic media with students who are currently enrolled in the corporation. The employee must comply with the provisions outlined in this policy. All other employees are prohibited from communicating with students who are enrolled in the corporation through social media.

An employee is not subject to these provisions to the extent the employee has a social or family relationship with a student. For example, an employee may have a relationship with a niece or nephew, a student who is the child of an adult friend, a student who is a friend of the employee's child, or a member or participant in the same civic, social, recreational, or religious organization.

An employee who uses social media to communicate with students is subject to the following rules:

- The employee may use any form of electronic media with approval of the administrator and parent.. Only a teacher, trainer, or another employee who has an extracurricular duty may use text messaging, and then only to communicate with all students who participate in the extracurricular activity for which the employee has responsibility.
- The employee shall limit communications to matters within the scope of the employee's professional responsibilities e.g., for classroom teachers, matters relating to class, homework, and tests; for an employee with an extracurricular duty, matters relating to the extracurricular activity.
- The employee is prohibited from communicating with students through a personal social network page; the employee must create a separate social network page ("professional page") for the purpose of communicating with students. The employee must be the administrator of this page and allow parents access to the employee's professional page.
- The employee shall not communicate directly with any student between the hours of 11:00 p.m. and 6:00 a.m.
- The employee does not have a right to privacy with respect to communications with students and parents on a professional page.
- The employee is subject to applicable state and federal laws, local policies, and administrative regulations, including:
  - Compliance with the state public access laws and the Family Educational Rights and Privacy Act (FERPA), including retention and confidentiality of student records.
  - Copyright law
- Prohibitions against soliciting or engaging in sexual conduct or a romantic relationship with a student.
- Upon request from administration, an employee will provide the phone number(s), social network site(s), or other information regarding the method(s) of social media the employee uses to communicate with one or more currently enrolled students.

- Upon written request from a parent or student, the employee shall discontinue communicating with the student through e-mail, text messaging, instant messaging, or any other form of one-to-one communication.

Social Networking Websites

All employees, including teachers and administrators, who participate in social networking websites shall not post any data, documents, photos, or inappropriate information on any website that might result in a disruption of classroom activity. This determination will be made by the Superintendent.

Fraternization via the internet between employees and students is prohibited.

Employees should not give social networking website passwords to students.

Access to social networking websites for individual use during school hours is prohibited.

Violation of this policy may result in disciplinary action, up to and including termination.

Nothing in this policy prohibits employees or students from the use of educational websites that are used solely for educational purposes.

3340: REPORTING CHILD ABUSE (IMMEDIATE REPORTING REQUIRED)

Last Revised: April 4, 2024
Prior Revision Dates: September 7, 2017

The Board of Trustees of West Central School Corporation recognizes that school employees may be able to identify abused or neglected children due to their continuous contact with school age children.

Any school employee who has reason to believe that a child is a victim of child abuse or neglect shall immediately make an oral or written report to the Department of Child Services or to local law enforcement. After the report has been made, the school employee shall notify the school building principal a report of suspected child abuse or neglect has been made to the Department of Child Services or to local law enforcement. School personnel will not contact parents to determine the cause of suspected child abuse or neglect, or otherwise investigate the suspected abuse or neglect.

School employees should be made aware they are required by state law to make the reports immediately. Anyone making a report of a child who may be the victim of child abuse or neglect is granted immunity by statute from any civil or criminal liability.

All records of suspected child abuse or neglect will be kept confidential. The identity of a person making a report will not be revealed to the parent, guardian, custodian, or other person who is responsible for the welfare of the child named in a report.

“Reason to believe” as used in this policy means evidence which, if presented to individuals of similar background and training, would cause individuals to believe that a child was abused or neglected.

Legal Reference: I.C. 31-33-5

3350: STAFF PARTICIPATION IN POLITICAL ACTIVITIES

Last Revised: April 4, 2024
Prior Revision Dates:

The Board recognizes the right of its employees, as citizens, to engage in political activity. However, the Board also recognizes that school property and school time paid for by all the people of the school corporation, should not be used for partisan political purposes except as provided for in policies pertaining to the use of school buildings by civic and political organizations.

Staff members shall not use school property or school equipment for the purpose of furthering the interests of any political party, the campaign of any political candidate or the advocacy of any political issue, or support or oppose one or more candidates, issues, or a particular point of view while school is in session, immediately before or after school, and at extracurricular or school-sponsored activities when performing duties as a school employee.

Other prohibited activities by staff members include but are not limited to the following:

1. posting of political circulars, petitions, advertisements, or campaign materials
2. collection or solicitation of campaign funds
3. solicitations for campaign workers
4. the use of students in writing or addressing campaign materials
5. the distribution of campaign materials to students on school corporation property or during school time in any matter which would indicate that a school employee is using a position in the school corporation to further personal partisan views on candidates for public office or questions of public policy.

Political literature or campaign posters supporting one or more candidates, issues or a particular point of view shall not be displayed within the schools or on school-owned property unless done as part of any approved teaching unit.

Nothing in this policy shall be interpreted as prohibiting teachers from conducting appropriate activities that encourage students to become involved in the political processes of the party of the students' choice or as independents; nor does it prohibit the use of political figures as resource persons in the classroom.

3420: RESIGNATION OF EMPLOYEES

Last Revised: April 4, 2024
Prior Revision Dates:

The resignation of any school employee shall be in writing and will be received by the Superintendent or his/her designee, except in the case of the Superintendent, whose written resignation shall be received by the Board President. When the Superintendent has received a written resignation, he/she will inform the Board. The Board will act upon the written resignation at a meeting open to the public. Once the written resignation is tendered, the resignation may not be withdrawn or its terms changed without the consent of the board.

The Superintendent or a designee will notify the employee concerning the action taken on the resignation; except in the case of the Superintendent's resignation, the Board Secretary shall make the notification.

3540: TEACHER APPRECIATION GRANT

Last Revised: September 7, 2023
Prior Revision Dates:September 2, 2021

I. Teacher Appreciation Grants

The West Central School Corporation will distribute its Teacher Appreciation Grant monies received from the Indiana Department of Education to the teachers who meet the following criteria:

1. Employed in the classroom or directly provided education in a virtual classroom setting;
2. Received a Highly Effective or an Effective rating on their most recently completed performance evaluation; and
3. Employed on December 1 of the year the Corporation receives the Teacher Appreciation Grant monies and was employed by West Central the previous year.

The School Corporation will distribute its Teacher Appreciation Grant monies as follows:

1. To all Effective Teachers: A stipend as determined by the superintendent.
2. To all Highly Effective Teachers: A stipend in the amount of 25% more than the stipend given to Effective teachers.

The School Corporation will distribute the stipends within 20 business days of the distribution date by the Indiana Department of Education of the Teacher Appreciation Grant monies to the School Corporation.

Legal Reference: I. C. 20-43-10-3.5

3615: ADJUNCT TEACHERS

Last Revised: 1-4-24
Prior Revision Dates:

State law allows school corporations to hire and issue permits for full- or part-time adjunct teachers who have at least four years of experience in a school subject including a career and technical content area.

The Board will announce any vacant adjunct teacher positions at regular meetings of the Board. The Board will only hire an adjunct teacher for hard-to-fill positions for which no licensed candidates applied and for a position that is essential to the school curriculum.

The Board will issue an adjunct teacher permit and an employment agreement for a period of one school year which can be renewed annually if the need for the adjunct teacher continues and the superintendent makes a recommendation to continue employing the adjunct teacher. The pay for adjunct teachers will be recommended by the superintendent based upon experience and other non-discriminatory factors and approved by the Board.

The adjunct teacher must have four or more years of experience in the content area in which the adjunct teacher will teach.

An applicant for an adjunct teacher will be required to complete the same application process required by a licensed teacher.

The principal or designee will complete the evaluation of the adjunct teacher using the West Central School Corporation teacher evaluation process.

The superintendent may develop administrative procedures to implement this policy.

LEGAL REFERENCE: IC 20-28-5-27

3630: TEACHER CODE OF CONDUCT/DISCIPLINE

Last Revised: April 4, 2024
Prior Revision Dates:

All staff members have a responsibility to make themselves familiar with and abide by federal and state laws as these affect their work, and the policies and regulations of the corporation.

Rules of Conduct

Each staff member shall observe the following rules of conduct:

A school employee shall not:

1. Disclose or use confidential information acquired in the course of employment to substantially further personal financial interests.

2. Accept a gift of substantial value or substantial economic benefit tantamount to a gift of substantial value which would tend to improperly influence a reasonable person in the position, or which the staff member knows or should know is primarily for the purpose of a reward for action taken in which the staff member exercised discretionary authority.

3. Engage in a substantial financial transaction for private business purposes with a person whom the staff member supervises.

4. Perform any action in which the staff member has discretionary authority which directly and substantially confers an economic benefit on a business or other undertaking in which the staff member has a substantial financial interest or is engaged as a counsel, consultant, representative or agent.

The phrase "economic benefit tantamount to a gift of substantial value" includes a loan at a rate of interest substantially lower than the prevailing commercial rate and compensation received for private services rendered at a rate substantially exceeding the fair market value.

It is permissible for an employee to receive:

1. An occasional non pecuniary gift which is insignificant in value.

2. A nonpecuniary award publicly presented by a nonprofit organization in recognition of public service.

3. Payment or reimbursement for actual and necessary expenditures for travel and subsistence for attendance at a convention or other meeting at which he or she is scheduled to participate.

4. Reimbursement for or acceptance of an opportunity to participate in a social function or meeting which is not extraordinary when viewed in light of the position.

5. Items of perishable or nonpermanent value including but not limited to meals, lodging, travel expenses or tickets to sporting, recreational, educational or cultural events.

6. Payment for speeches, appearances or publications reported as honorariums.

All staff members shall be expected to carry out their assigned responsibilities with conscientious concern.

It shall not be considered a breach of conduct for a staff member to:

1. Use school facilities and equipment to communicate or correspond with constituents, family members or business associates on an occasional basis.

2. Accept or receive a benefit as an indirect consequence of transacting school corporation business.

Essential to the success of ongoing school operations and the instructional program are the following specific responsibilities which shall be required of all personnel:

1. Faithfulness and promptness in attendance at work.

2. Support and enforcement of policies of the Board and regulations of the school administration in regard to students.

3. Diligence in submitting required reports promptly at the times specified.

4. Care and protection of school property.

5. Concern and attention toward their own and the school system's legal responsibility for the safety and welfare of students including the need to ensure that students are supervised at all times.

3700: REDUCTION IN FORCE

Last Revised: 1-4-24
Prior Revision Dates:

Recognizing that it is the responsibility of the Board to supply a quality education to all students through employment to the best qualified staff at all times, the following policy shall be in effect should it be necessary to reduce educational programs, curricula, and/or certified staff due to financial difficulties.
Prior to commencing action to terminate teachers' contracts due to a Reduction in Force, the Board of Education will attempt to make needed adjustments through:

1. Voluntary retirement
2. Voluntary resignations
3. Voluntary transfer of existing staff
4. Leaves
5. Cancellation of teachers' contracts for other statutory reason(s)

Should it be necessary to reduce the number of certified personnel, the Board, upon the recommendation of the Superintendent, shall determine the curriculum area(s) to be affected through a reduction of force. The Superintendent has the responsibility to determine the personnel whose services shall be terminated. The Superintendent shall follow the appropriate procedures to contact cancellation of such personnel.

Reduction in Force—Procedure

RIF Criteria

The following guidelines will apply only to the probationary and professional teachers in the content area to be reduced when the teaching content area to be reduced has established teachers and probationary and/or professional teachers assigned to the content area.

The cancellation of a teacher's contract due to a decrease in the number of teaching positions shall be determined on the basis of performance. In the teaching content area to be reduced a teacher certificated in the area who is rated less effective will be subject to cancellation before a teacher rated more effective will be subject to the same. The order of effectiveness from least to greatest is as follows:

1. Ineffective
2. Improvement Necessary
3. Effective
4. Highly Effective

Teacher effectiveness will be considered over a time frame of the past three consecutive years. If three years of evaluative data is not available, two years or one year of data will be used.

All evaluation information and data used in determining whether or not a teacher is reduced will be the information and data collected while a teacher at this school corporation.

In cases where the teachers' effectiveness categories are the same, the administrator will weigh the following factors before making a determination as to which teacher(s) shall be subject to the non-continuance or cancellation:

1. The numerical rating of the teachers' evaluation
2. The academic needs of the students in the school corporation
3. Current instructional leadership roles
4. Degrees earned
5. Credit hours earned
6. Teaching experience
7. Any other relevant factors

   If the teaching content area being reduced has only established teachers assigned to the area, the above guidelines apply to these teachers in the following manner:

   a. Teachers who obtained semi-permanent tenure status as of July 1, 2012 will be considered for reduction prior to the teacher described in number 2 below.
   b. Teachers who obtained permanent status as of July 2, 2012.

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Those established teachers with permanent status who are licensed in another content area cannot be subject to the reduction in force if these established teachers are able to replace a probationary, a professional, or an established, semi-permanent teacher in the licensed area.

3842: FAMILY AND MEDICAL LEAVE ACT (FMLA)/

MILITARY FAMILY LEAVE

Last Revised: 1-4-24
Prior Revision Dates: July 9, 2015

A. Family Medical Leave

1. A number of leaves also qualify as leaves entitled to protection under the Family and Medical Leave Act. All eligible employees will be entitled to the maximum leave allowed, when necessary, under the provisions of either the specific leave section listed above and/or this family leave section.

2. An unpaid leave of absence up to twelve (12) weeks in duration may be granted to eligible employees for certain family or medical reasons. An employee who has been employed for at least twelve (12) months (need not be consecutive) before the leave request and who has worked at least 1,250 hours during the previous year is eligible for a leave of absence pursuant to this policy.

B. Qualifying Events

1. A family or medical leave will be granted should the need arise for any of the following qualifying reasons:

a. Birth of the employee's child, or the placement of a child for adoption or foster care, and first-year care of the child.

b. To care for the employee's spouse, child, or parent who has a serious health condition.

c. For a serious health condition that causes the employee to be unable to perform his/her job.

d. For a qualifying exigency due to the employee’s spouse, child, or parent being on active duty or has been notified of an impending call or order to active duty in the Armed Forces in support of a contingency operation.

2. Leaves may begin before the birth of a child if a medical condition exists that makes the teacher unable to perform the job, or prior to the placement of a child for adoption or foster care if circumstances require absence from work for the placement to proceed. An employee's entitlement to leave for the birth or placement of a child expires at the end of the twelve (12) month period beginning on the date of the birth or placement.

3. Servicemember Family Leave: An eligible employee who is the spouse, son, daughter, parent, or next of kin of a servicemember shall be entitled to a total

of 26 workweeks of leave during a single 12-month period to care for the servicemember. During the single 12-month period to which this leave applies, an eligible employee will be entitled to a combined total of 26 workweeks of leave under this section.

C. Employee Notice Requirement

If the leave is foreseeable, thirty (30) days written notice is required. If the need for the leave is not foreseeable, the employee must give notice to the office of the Superintendent as soon as possible.

D. Certification Requirement

Any employee's request for leave due to a serious health condition or due to the serious health condition of a qualifying family member must be supported by a timely certification issued by a health care provider. The employee must provide the requested medical certification within fifteen (15) calendar days after the request was made. If the Superintendent has reason to doubt the validity of medical certification, the employee may be required to obtain a second opinion at school corporation expense. Should any variance between the two medical certifications exist, a third opinion, at school corporation expense, may be requested. This opinion shall be final and binding. Failure to submit the required medical certification may result in the denial of the leave or denial of the continuation of the leave. Recertifications may be required on a reasonable basis. Medical certification shall be on forms provided by the school corporation.

E. Request Procedure

Requests for leaves of absence and extensions must be requested in writing and on the prescribed form available from the office of the Superintendent unless impossible due to an emergency.

F. Leave Substitution

Employees may elect to substitute accrued vacation, personal, sick or other qualifying leave for all or part of any otherwise unpaid family medical leave. The employee shall make this choice at the time of application of the leave of absence and said choice may not be rescinded thereafter. If the employee chooses to use his/her qualifying paid leave, it will be counted as part of the employee's twelve (12) weeks of family medical leave entitlement. However, the use of paid leave by the employee under circumstances which do not qualify as family medical leave cannot be counted against the twelve (12) weeks of family medical leave to which the employee is entitled.

G. Maintenance of Group Insurance

During the family medical leave, eligible employees may maintain coverage under the employee's group health plan including employee dental and vision coverage, life, accidental death and dismemberment insurance at the same level

and under the same conditions for which coverage would have been provided if the employee had continued in active employment continuously for the duration of such leave. Employees who contribute to such a group health plan must continue to make such contributions during the period of their leave in order to maintain coverage. The employer may recover the premium paid for maintaining a employee's health plan coverage during any period of unpaid leave if the employee fails to return from leave after entitlement has expired, provided the employee fails to return to work for a reason other than the continuation, recurrence or onset of a serious health condition that would entitle the employee to leave, or other circumstances beyond the employee's control.

H. Restoration to Position and Benefits

Eligible employees returning from family or medical leave within twelve (12) weeks will be returned to the position that they held when they went on leave or they may be placed in equivalent positions with equivalent benefits, pay and other terms and conditions of employment.

I. Return to Work

Employees returning from any form of leave of absence must be able to assume all of the essential functions of their jobs upon return. As a condition to restoring an employee whose leave was based on the employee's own serious health condition, such employee must provide certification from the employee's health care provider stating that the employee is able to resume work.

J. Failure to Return from Leave

An employee granted a leave of absence pursuant to this policy who fails to return to work upon expiration of the leave granted shall be classified as "voluntarily terminated."

K. Intermittent or Reduced Schedule Leave

During the first twelve (12) weeks of leave for a serious health condition (either an employee's own or that of a qualifying family member or a servicemember), intermittent or reduced schedule leave may be taken when medically necessary. Employees seeking intermittent or reduced schedule leave must produce medical certification issued by a health care provider. Employees who have requested foreseeable intermittent or reduced schedule leave due to planned medical treatment may be transferred temporarily to an available alternative position at the discretion of the Superintendent if the alternative position better accommodates recurring periods of leave than the employee's regular position, provided the employee is qualified for the alternative position and the position has equivalent pay and benefits.

L. Leave Entitlement Period

The twelve (12) month period in which the twelve (12) weeks of family leave entitlement occurs will consist of the twelve (12) month period measured forward from the date the particular teacher's FMLA leave begins.

M. Status Reports

During the leave, employees may be required to provide periodic reports on his/her status and intent to return to work following the leave. Requested information must be provided within fifteen (15) days of the request.

N. Jointly Employed Spouses

A total of twelve (12) weeks of FMLA leave will be granted to jointly employed spouses regarding birth or adoption of a child or to care for a sick parent. A total of 26 workweeks will be granted to jointly employed spouses for a servicemember family leave.

If the FMLA leave request is for his or her own illness, each spouse would be entitled to twelve (12) weeks FMLA leave.

LEGAL REFERENCE: 29 U.S.C. Section 2601 et seq.

3910: DRUG/ALCOHOL TESTING PROGRAM FOR CDL HOLDERS (BUS DRIVERS)

Last Revised: September 7, 2023
Prior Revision Dates:

The Board of School Trustees for the West Central School Corporation recognizes the critical and growing problem alcohol and controlled substance abuse poses to the transportation of its students. It is the policy of the school corporation to provide and maintain a safe, healthy, and productive work environment for our drivers. This policy applies to all drivers and applicants for driver positions for the school corporation who must have a Commercial Drivers License (CDL) to operate school vehicles.

The use, possession, sale, purchase, or transfer of any controlled substances except medically prescribed drugs on school property, while on school business, or while operating school vehicles and equipment, is prohibited. Drinking alcoholic beverages during working hours, 6 hours before reporting to work or having any measurable amount of alcohol in his/her system during working hours is prohibited, whether on or off school property. Working hours include all breaks. Off-duty use of drugs and alcohol is prohibited to the extent it affects a driver's attendance or performance and his/her ability to pass required DOT alcohol and controlled substance tests. Any violation of this policy is grounds for termination as a driver for the school corporation and possible legal prosecution.

Since physician-directed use of drugs can affect behavior and performance, drivers are encouraged to advise their supervisor whenever they are taking drugs for medical reasons. When such use of drugs adversely affects job performance or safety, it is in the best interest of the driver, co-workers, and the School Corporation that the driver takes sick or vacation days, or, if necessary, unpaid leave, in accordance with the School Corporation's leave policies.

The execution and enforcement of this policy will follow set procedures to screen body fluids, conduct breath testing, and/or search all employee/applicants for alcohol and drug use, and those employees suspected of violating this policy who are involved in a U.S. Department of Transportation (USDOT) reportable accident or who are periodically or randomly selected pursuant to this policy. The procedures are designed not only to detect violations of this policy but also to ensure fairness to each employee. Disciplinary action will be taken as necessary.

The Superintendent is authorized to implement this policy and program, including a periodic review of the program to address any problems, changes, and/or revisions of it, maintenance of all records required by the federal regulations, and determination upon Board approval of how the program will be accomplished, whether in-house, contracted, or by consortium.

The Superintendent is responsible for communicating this policy to all drivers and is accountable for its consistent enforcement. The Superintendent is designated to answer questions about this policy and all other matters involved in alcohol and controlled substance testing of CDL drivers.

Drug and Alcohol Clearinghouse Checks for CDL Drivers

Prior to employment the school corporation will conduct a full query of the Federal Motor Carrier Safety Administration's Drug and Alcohol Clearinghouse (Clearinghouse) to obtain information about the driver's eligibility under federal rules to perform a safety-sensitive function. The school corporation will also contact prior employers where the applicant was a CDL driver for information to determine the driver's eligibility to perform safety-sensitive functions. Prior employers' inquiries will continue until January 2023.

The school corporation will conduct a limited query of the Clearinghouse for current CDL drivers who are employees on at least an annually basis. If information exists in the Clearinghouse about a driver, the school corporation will conduct a full query within 24 hours to determine if the driver is eligible to perform safety-sensitive functions. If the school corporation fails to conduct the full query within 24 hours, the driver will not be allowed to perform any safety-sensitive functions until the full query is conducted and it is determined the driver may perform safety-sensitive functions.

The school corporation will report the following information collected and maintained on each CDL driver to the Clearinghouse:

1. A verified positive, adulterated, or substituted drug test result;
2. An alcohol confirmation test with a concentration of 0.04 or higher;
3. A refusal to submit to any test required by this policy or the CDL drug testing program;
4. An employer's report of actual knowledge of the following:
    a. On duty alcohol use;
    b. Pre-duty alcohol use;
    c. Alcohol use following an accident; and
    d. Controlled substance use.
5. A substance abuse professional (SAP) report of the successful completion of the return-to-duty process;
6. A negative return-to-duty test; and
7. An employer's report of completion of follow-up testing.

SAFETY-SENSITIVE FUNCTION -- DEFINED

Performing a safety-sensitive function means a driver is considered to be performing a safety-sensitive function during any period in which he or she is actually performing, ready to perform, or immediately available to perform any safety-sensitive functions.

A safety-sensitive function is defined as:

1. All time spent at a facility, or other property, or on any public property, waiting to be dispatched, unless the driver has been relieved from duty by the school corporation.

2. All time spent inspecting equipment, otherwise inspecting, servicing, or conditioning any motor vehicle at any time.

3. All driving time spent at the driving controls of a motor vehicle in operation.

4. All time, other than driving time, in or upon any motor vehicle.

5. All time loading or unloading a vehicle, supervising, or assisting in the loading or unloading, attending a vehicle being loaded or unloaded, or remaining in readiness to operate the vehicle.

6. All time spent performing the driver requirements relating to an accident.

7. All time repairing, obtaining assistance, or remaining in attendance upon a disabled vehicle.

PROHIBITED CONDUCT

The following shall be considered prohibited conduct for purposes of this policy:

1. No employee shall report for duty or remain on duty requiring the performance of safety-sensitive functions while having an alcoholic concentration of .04 or greater.

2. No employee shall be on duty or operate a commercial vehicle while the employee possesses alcohol.

3. No employee shall use alcohol while performing safety-sensitive functions.

4. No employee shall perform a safety-sensitive function within 6 (six) hours after using alcohol.

5. No employee required to take a post-accident test shall use alcohol for 8 (eight) hours following the accident or until he or she undergoes a post-accident test, whichever occurs first.

6. No employee shall refuse to submit to a post-accident, random, reasonable suspicion, return-to-duty, or follow-up alcohol or drug test.

7. An employee is prohibited from reporting for duty or remaining on duty when the

employee uses any controlled substance except when the use is pursuant to the written instructions of a physician who has advised the employee that the substance will not adversely affect their ability to safely perform their duties. The employee must provide the school corporation with proof of such medical advice. The superintendent decides if the employee can remain at work or what work restrictions are necessary.

8. Any employee who is using a prescribed drug or other medication which is known or advertised as possibly affecting or impairing judgment, coordination, or other sense, or which may adversely affect the employee's ability to perform work in a safe and productive manner, must notify the transportation director prior to starting work. The superintendent will decide if the employee can remain at work or what work restrictions are necessary.

TESTING OF DRIVERS

All drivers will be tested for alcohol and drugs in accordance with the USDOT-approved procedures when directed by the Superintendent.

Drivers will be tested under the following circumstances:

A. Pre-Employment

Under no circumstances will an individual be placed on the payroll without proof of a successful completion of a drug test. Any individual who refuses to submit to such a test or has a positive controlled substance test result will not be considered for employment with the school corporation.

B. Random

The school corporation will conduct random drug and alcohol tests. The corporation will submit all employees' names to a random selection system. Random selections will be spread throughout the year. The corporation will drug test 50% of the number of employees in each calendar year or at a rate established by the USDOT for the given year. The corporation will alcohol test 10% of the number of employees in each calendar year or at a rate established by the USDOT for the given year.

If an employee is selected at random for either test, the superintendent will notify the employee. Once the employee is notified, he or she must proceed to the designated collection site immediately. If the employee does not go to the collections site as soon as possible after notification, such may be considered a refusal to test.

C. Post-Accident

Drivers are required to submit to drug and alcohol testing as soon as possible following a "DOT" accident that involves

1. A fatality; or

2. The employee receives a citation for a moving violation arising from the accident that involved: a) bodily injury to a person who, as a result of the injury, receives medical treatment away from the scene of the accident; or b) one or more motor vehicles incurring disabling damage as a result of the accident, requiring the vehicle to be transported away from the scene by a tow truck or other vehicle.

A driver who is subject to post-accident testing shall remain readily available for such testing. Nothing in this section shall be construed to require the delay of necessary medical treatment or to prohibit the driver from leaving the scene of an accident for a period necessary to obtain assistance in responding to the accident, or to obtain necessary medical care.

No driver required to take a post-accident alcohol test shall use alcohol for eight hours following the accident, or until he/she undergoes a post-accident alcohol test, whichever occurs first.

If a driver is seriously injured and cannot submit to testing at the time of the accident, he/she shall provide the necessary authorization for obtaining hospital reports and other documents that would indicate whether there were any drugs or alcohol in his/her system.

The results of a breath or blood test for the use of alcohol or a urine test for the use of drugs conducted by Federal, State, or local officials having independent authority for the test shall be considered to meet the requirements for post-accident testing if the results are obtained by the school corporation.

D. Reasonable Suspicion

The School Corporation is required to test for the use of alcohol and controlled substances upon "reasonable suspicion." A reasonable suspicion test is required when based upon specific, contemporaneous, and articulable observation concerning the behavior, speech, body odor, or appearance of a driver while on duty are indicative of the use of alcohol and/or controlled substances. A supervisor who is so trained in accordance with the USDOT regulations must witness the conduct. The mere possession of alcohol does not constitute a need for an alcohol test. The witness must have received training in the detection of

probable alcohol and drug use by observing a person's behavior. The witness shall not conduct the alcohol test of the driver.

Alcohol testing is authorized only if the observations are made during, just before, or just after the period of the workday of the driver. A written record shall be made of the observations leading to an alcohol and/or controlled substance test. This record is to be signed by the supervisor who made the observations.

If a reasonable suspicion alcohol test is not administered within two hours following the observations, the witness shall prepare and maintain on file a record stating the reasons the alcohol test was not administered promptly. In addition, if not administered within eight hours, all attempts to administer the test shall cease. A record shall be prepared and maintained stating why the alcohol test was not administered.

E. Return to Duty Testing

A return to duty test will be required for all employees who have violated this policy and is allowed to return to duty to perform safety-sensitive functions. The employee may not return to duty until he or she passes a drug test and/or tests below a .02 for breath alcohol and the substance abuse professional (SAP) and the school corporation have determined that the employee may return to duty upon completion of the SAP's evaluation recommendations for education and training.

If an employee who has violated this policy and will not be returned to duty to perform safety-sensitive functions, school administrators will provide the driver with the names and addresses of SAPs in the area.

F. Follow-Up Testing

Any employee who has returned to work following a violation of this drug and alcohol policy will be subject to follow-up testing. At a minimum six follow-up tests will be required within the first 12 months following an employee's return to work and less frequently during the next 4 years. Employees will be tested in accordance with USDOT regulations and the recommendations of the SAP.

TESTING PROCEDURES

The following testing procedures are to be strictly observed by any collection facility and/or laboratory contracted with by the school corporation in order to carry out its drug and alcohol testing program.

Controlled substance testing procedures include the following:

1. Chain of Custody

Chain of custody is defined as procedures to account for the integrity of each urine specimen by tracking its handling and storage from point of specimen collection to final disposition of the specimen. These procedures will require an approved chain-of-custody form.

2. Preparation for Testing

   A. Use of tamper proof seal system designed in a manner that a specimen bottle top can be sealed against undetected opening and the bottle has a means for identification of the test subject, either by number or some other confidential manner.

   B. Use of shipping container in which one or more specimens and associated paperwork may be transferred and which can be sealed and initialed to prevent undetected tampering.

3. Specimen Collection

   Specimen collection will be done at collection sites designated by the School Corporation.

4. Laboratory Analysis

   Laboratory analysis of all specimens collected will be done by the approved drug testing vendor under all federal guidelines.

<u>Controlled Substance Testing Protocol</u>

Urine Collection Procedures:

1. The testing procedure starts with the collection of a urine specimen.

2. Collection procedures will follow the specific guidelines set forth by the USDOT as outlined in the published collection procedures guidelines.

3. Employees will be directed to empty their pockets and display the contents to the collector.

4. Employees will be allowed privacy during the collection process except as noted in number 5 below.

5. Observed collections are required by USDOT if:
   a. The specimen is determined invalid and there is no medical explanation.
   b. The collector observes evidence of an employee's attempt to tamper with the

Specimen.
c. The temperature of the specimen is out of range.
d. The specimen appears to have been tampered with.

6. Observed collections are required on return to duty and follow-up tests.

7. As part of the collection process, the specimen provided will be split into two portions: a primary specimen and a secondary (split) specimen.

8. If the employee is unable to provide 45 ml of urine, the DOT "shy bladder" rule will apply.
The employee will have up to 3 hours to provide the required 45 ml and may consume up to 40 ounces of fluids during this time period. The employee will be required to be monitored during the waiting period.

9. After collection, the specimen will be submitted to a SAMHSA certified laboratory for testing.

Laboratory Procedures:

Drug testing will be performed through urinalysis. Urinalysis will test for the presence of the following drugs or classes of drugs:

1. Marijuana metabolites;
2. Cocaine metabolites;
3. Amphetamines;
4. Opioids; and
5. Phencyclidine (PCP).

The SAMHSA certified laboratory will perform initial screenings on all primary specimens. In the event that the primal specimen tests positive, a confirmation test of that specimen will automatically be performed. If the confirmatory test is positive it will be reported to the Medical Review Officer (MRO) as a positive.

Validity Testing:

The laboratory must also perform validity testing on each specimen received. The purpose of validity testing is to determine whether certain adulterants or foreign substances were added to the urine, if the urine was diluted, or if the specimen was substituted. The following will be measured: creatinine level, specific gravity, and pH. In addition, all specimens will be tested for known adulterants. An initial validity test is performed first, followed by a confirmation test as required.

All laboratory results will be reported by the laboratory to a MRO designated by the Company or its agents.

MRO Procedures:

1. All tests results will undergo a review process by the MRO.

2. Negative test results will be reported directly to the school corporation by the MRO.

3. Positive, adulterated or substituted results will be handled in the following manner by the MRO:

   a. Before reporting a positive, adulterated or substituted test result to the school corporation, the MRO will attempt to contact the employee to discuss the test result.

   b. The employee is required to discuss the result with the MRO. The employee will be allowed to explain and present medical documentation to explain any permissible use of a drug.

   c, For adulterated or substituted results, the employee must demonstrate that he or she did produce or could have produced urine, through physiological means, a specimen meeting the creatinine and specific gravity criteria of a substituted or adulterated specimen.

   d. If the MRO is unable to contact the employee directly, the MRO will contact the Superintendent who shall contact the employee and direct the employee to contact the MRO. Upon being so directed, the employee shall contact the MRO immediately or, if the MRO is unavailable, at the start of the MRO's next business day.

   e. If, after failing to contact the MRO within 72 hours after being instructed to do so by the Superintendent, or if the employee cannot be contacted at all within ten (10) days, or the employee expressly declines the opportunity to discuss the test, the MRO may verify the test as positive or a refusal.

   f. In the MRO's sole discretion, a determination will be made as to whether a result is verified as positive, negative, or considered a refusal.

   g. After any verified positive or refusal to test determination, the employee may petition the MRO to reopen the case for reconsideration.

4. Diluted Specimens: If a specimen is reported diluted by the laboratory, the MRO will report this information to the Superintendent]. The school corporation may require an immediate recollect for another test. The result of this test will stand as the final result.

<u>Medical Information Disclosure:</u>

Pursuant to USDOT regulations, if, in the MRO's opinion, any information provided may mean a medical disqualification or represent a safety hazard, such as the use of certain prescription drugs, the MRO must disclose this to the school corporation. Individual test results for applicants and employees will be released to the school corporation and will be kept strictly confidential unless consent for the release of the test result has been obtained.

Split Specimen Testing Protocol

An employee may request that the "split" portion of his/her specimen by tested at a different SAMHSA laboratory if he/she was notified by the MRO that his/her test result was positive, adulterated or substituted. The request must be made to the MRO within 72 hours of being notified of a verified positive, adulterated or substituted result. The MRO will arrange for all procedures to be done in accordance with split specimen testing procedures.

The cost of a split specimen test will be the responsibility of the employee. The school corporation will withhold the amount of the cost of testing the split specimen from the employee's pay unless other arrangements are acceptable to both the employee and the school corporation. If the employee makes a timely request to the MRO for the split portion to be tested, the MRO shall immediately make arrangements with the laboratory to initiate the process.

Alcohol Testing Procedures

1. Testing Devices

Alcohol tests are to be conducted with only evidential breath testing devices (EBT's) approved by the National Highway Traffic Safety Administration (NHTSA) on their Conforming Products List (CPL). The rules allow the use of EBT's for the initial screening test that is on the CPL, that does not meet the additional requirements for the confirmation test (e.g. sequential numbering and print-out capability).

2. Test Administrators

Only a Breath Alcohol Technician (BAT) that has had proper training may administer breath alcohol tests. Reasonable cause tests may not be conducted by the person making the determination that reasonable suspicion exists to conduct an alcohol test.

3. Test Procedures

The BAT will perform an initial alcohol screen. If the initial screen results in a Blood Alcohol Concentration (BAC) of .02% or above, a confirmation test is required. Any tests resulting in a BAC of less than .02% will be considered negative. The BAT will wait a minimum of 15 minutes, before administering the confirmation test.

Confirmation tests must be performed within 30 minutes. If the confirmation test indicates a BAC of .020 to .039, the employee shall be removed from duty for 24 hours or until his/her next scheduled on-duty time, whichever is longer. Employees with tests indicating a BAC of .04 or greater are considered to have engaged in prohibited conduct which may result in disciplinary action up to and including termination. All alcohol tests shall be performed just prior to, during or just after performing a safety sensitive function.

REFUSAL TO TEST

Refusal to submit to the types of drug and alcohol test required by this policy will be grounds to discipline CDL employees. A refusal to test includes any of the following situations:

1. Failing to appear for any test within a reasonable time after being directed to do so.

2. Failing to remain at the testing site until the testing process is completed.

3. Failure to provide a breath sample, saliva sample or urine sample as directed.

4. Failure to permit, if the situation requires, the observation or monitoring of providing a urine specimen.

5. Failure to provide a urine, breath or saliva specimen within required time frames may be considered a refusal. If an employee cannot produce a sufficient quantity of urine or breath, he/she will be directed to be evaluated by a physician of the corporation's choice. If the physician cannot find a legitimate medical explanation for the inability to provide a specimen, it will be considered a refusal to test. In that circumstance the employee has violated one of the prohibitions of the USDOT regulations.

6. Failure to undergo a medical examination or evaluation as directed by the MRO as part of the verification process or as directed by the transportation director as part of the "shy bladder" or "insufficient breath" situation.

7. Failure or declining to take a second test as required by USDOT regulations.

8. Failure to cooperate with any part of the testing process and/or conduct that would obstruct the proper administration of a test. (e.g., refusing to empty pockets when so directed by the collector or behave in a confrontational way that disrupts the collection process.)

9. For an observed collection, fail to follow the observer's instruction to raise

clothing above the waist, lower clothing and underpants, and to turn around to permit the observer to determine if any type of prosthetic or other device that could be used to interfere with the collection process is present

10. Possession or wearing of a prosthetic or other device that could be used to interfere with the collection process.

11. Admission by the employee to the collector or the MRO that the employee adulterated or substituted their specimen.

12. Refusing to sign step two of the alcohol testing form.

13. A report from the MRO that the employee has a verified adulterated or substituted test result.

CONFIDENTIALITY

All information obtained in the course of testing of drivers shall be protected as confidential medical information. No data concerning this information will be made a part of the employee's personnel file or will be provided to any other party without the direct written consent of the driver.

Employees are entitled upon written request to obtain copies of any records pertaining to their use of alcohol or controlled substances, including any records pertaining to his or her alcohol or controlled substance tests.

The school corporation may release information as follows:

1. Copies of the results of alcohol or drug testing to an identified person provided the employee has provided written consent.

2. Copies of information requested by the Secretary of Transportation, an USDOT agency, or any state or local official with regulatory control over the corporation or its employees.

3. The results of post-accident testing when requested by the National Transportation Safety Board as part of an accident investigation.

4. Legal proceedings including lawsuits involving wrongful discharge action, grievances, administrative proceedings brought on by or on behalf of an employee and resulting from a positive DOT drug or alcohol test or a refusal to test, and/or criminal or civil actions.

DISCIPLINARY ACTIONS FOR POLICY VIOLATIONS

Drivers found to commit any conduct prohibited by this policy, including refusal to test, and/or testing positive for alcohol (.04 or greater) or for a controlled substance shall be prohibited from driving or performing a safety-sensitive function for the school corporation. Such employee will be provided with the names, addresses, and telephone numbers of qualified substance abuse professionals (SAPs) who are approved by the school corporation. To be able to return to duty the employee must complete the following steps:

1. Complete an evaluation with a SAP.

2. Complete any rehabilitation and/or evaluation required by the SAP.

3. Be re-evaluated by the SAP and obtain written confirmation of satisfactory completion of all recommendations.

4. Complete a return to duty test that is issued with a negative result.

5. As a condition of continued employment, the employee will be required to submit to a minimum of 6 unannounced follow-up tests in the next 12 months after returning to work.

Follow-up testing is separate from and in addition to the reasonable suspicion, post-accident, and random testing. The schedule of follow-up testing shall be unannounced and in accordance with the instructions of the SAP. The cost of any SAP evaluation, prescribed treatment and follow-up testing shall be paid for by the employee. In addition, the employee will be subject to any school corporation policy dealing with the use of alcohol and controlled substances.

Drivers testing .02 or greater but less than .04 shall not drive or perform safety sensitive functions for the school corporation, nor shall the school corporation permit the driver to perform or continue to perform safety-sensitive functions, until the start of the driver's next regularly scheduled duty period, but not less than 24 hours following administration of the test. The driver also becomes subject to any other school corporation policy dealing with the use of alcohol and controlled substances.

EDUCATIONAL MATERIALS

The school corporation will provide education materials that explain the requirements of Federal Motor Carrier Safety regulations, consequences of violating the regulations, and the corporation’s policies and procedures with respect to meeting these requirements. Materials will also be provided concerning the effects of alcohol and controlled substances use on an individual’s health, work, and personal life. Employees are required to attend an educational meeting to discuss the corporation’s policies and procedures and to review all materials covered by this policy. Each employee is

required to sign a statement certifying that he or she has received a copy of these materials. The corporation will provide these materials to employees prior to the start of the testing required by this policy and to any employee who is hired or transferred into a position requiring a CDL.

TRAINING OF SUPERVISORS AND DRIVERS

Supervisor Training:

Transportation Directors and Supervisors are the key to a drug-free work environment. At a minimum, the Transportation Director and Supervisors will receive basic training and orientation on:

1. The identification of behavioral and physiological signs of alcohol and drug abuse.
2. How to recognize, council and document employees whose performance has deteriorated.
3. How and when to suggest and/or require the services of the Employee Assistance Program (EAP), or any other drug/alcohol assistance program.

Driver Training:

The drivers training program will consist of:

1. Explanation of the effects and consequences of alcohol and controlled substance use on personal health, safety and work environment.
2. The manifestations and behavioral causes that may indicate alcohol and controlled substance use or abuse.
3. Information and materials required by federal regulations.

The training of both supervisors and drivers will be documented.

RETENTION OF RECORDS

The following records relating to the school corporation's drug and alcohol testing program are required to be maintained:

(1) Records related to the collection process:

- Collection logbooks
- Documents related to the random selection process
- Calibration documentation for EBT's
- Documentation of Breath Alcohol Technician (BAT) Training
- Documentation of reasoning for reasonable suspicion testing
- Documentation of reasoning for post-accident testing

- Documents verifying a medical explanation for the inability to provide adequate breath or urine for testing
- Consolidated annual calendar year summaries

(2) Records related to the driver's test results:
- Employer's copy of the alcohol test form, including results
- Employer's copy of the drug test chain of custody and control form
- Documents sent to the employer by the Medical Review Officer
- Documentation of any driver's refusal to submit to a required alcohol or controlled substance test
- Documents provided by a driver to dispute results of test

(3) Documentation of any other violations of controlled substance use or alcohol misuse rules

(4) Records related to evaluations and training:
- Records pertaining to substance abuse professional's (SAP's) determination of driver's need for assistance
- Records concerning a driver’s compliance with SAP's recommendations

(5) Records related to education and training:
- Materials on drug and alcohol awareness, including a copy of the employer's policy on drug use and alcohol misuse
- Documentation of compliance with requirement to provide drivers with educational material, including driver's signed receipt of materials
- Documentation of supervisor training
- Certification that training conducted under this rule complies with all requirements of the rule

(6) Records relating to drug testing:
- Agreements with collection site facilities, laboratories, medical review officers (MRO's), and consortia
- Names and positions of officials and their role in the employer's alcohol and controlled substance testing program
- Monthly statistical summaries of urinalysis
- The employer's drug testing policy and procedures

All required records shall be maintained in a secure location with limited access. Records shall be made available for inspection at the school corporation's central office within two business days after a request has been made by an authorized representative of the Federal Highway Administration.

LEGAL REFERENCE: 49 C.F.R. Part 382

4001: EQUAL EDUCATIONAL OPPORTUNITIES

Last Revised: January 2, 2025
Prior Revision Dates:

Every child, regardless of race, creed, color, sex, religion, national origin, cultural or economic background, or disability, is entitled to equal opportunity for educational development and opportunity.

No student will be excluded from participating in, denied the benefits of, or subjected to discrimination under any educational program or activity conducted by the school corporation. The Board shall treat its students without discrimination as this pertains to, among other things, course offerings, athletics, counseling, employment assistance, and extracurricular activities.

Legal Reference: 20 USC §1681

20 USC §1701 *et seq.*

IC 20-33-1-1

4002: TITLE IX COMPLAINT PROCEDURES

Last Revised: April 4, 2024
Prior Revision Dates:

Any person who feels that the school corporation has discriminated against him/her on the basis of sex may use the complaint procedure explained below or may file a complaint directly to the building principal or the Title IX Coordinator of the school corporation. Filing a complaint or otherwise reporting sexual discrimination will not reflect upon the individual's status nor will it affect future educational or employment opportunities for the individual. The school corporation's sexual harassment grievance procedure must be followed for complaints alleging sexual harassment.

Any student who feels that the school corporation has discriminated against him/her on the basis of race, color, age, religion, national origin, and disability should use the complaint procedure set out in this policy.

The right of confidentiality will be respected consistent with the school corporation's legal obligations and the necessity to investigate allegations of misconduct and to take corrective action when this conduct has occurred.

Reporting Sexual Discrimination

All reports of sexual discrimination will be handled in the following manner:

(a) Reports must be in writing on forms supplied by the Corporation (if a verbal complaint is made, the school official should file a written report);

(b) Reports must name the person(s) charged with sexual discrimination and state the facts;

(c) Reports must be presented to the building principal where the alleged conduct took place. The building principal shall inform the Title IX Coordinator of all filed reports;

(d) The building principal who receives a report shall thoroughly investigate the alleged sexual discrimination and attempt to resolve the matter at the building level;

(e) If the building principal cannot resolve the matter or is one of the persons named in the complaint, the complaint should be referred to the Title IX Coordinator. The Title IX Coordinator should investigate the matter and attempt to resolve the complaint.

(f) The report and the results of the investigation will be presented to the superintendent, and then to the Board of School Trustees in executive session by the superintendent; and

(g) The Board of School Trustees will take whatever action it deems appropriate. The name of the complainant will not be released to the public unless required by law.

4003: SEXUAL HARASSMENT GRIEVANCE PROCEDURE-STUDENT

Last Revised: September 7, 2023
Prior Revision Date:

I. Policy Statement

It is the policy of the West Central School Corporation to maintain a learning and working environment that is free from sexual harassment.

It shall be a violation of this policy for any student of the School Corporation to harass another employee or student through unwelcome conduct or communications of a sexual nature as defined in Section II. It shall also be a violation of this policy for students to harass other students through unwelcome conduct or communication of a sexual nature as defined in Section II. The use of the term "employee" also includes non-employees and volunteers who work subject to the control of school authorities.

The School Corporation will promptly:

1. investigate all complaints, written or verbal, of sexual harassment taken place at school or any school-sponsored activity within the United States;
2. take appropriate action to stop any harassment;
3. take appropriate action against any student or school employees who violates this policy; and
4. take any other action reasonably calculated to end and prevent further harassment of school employees or students.

The Title IX Coordinator is the person designated by the School Board to receive complaints of harassment and oversee the investigation of those complaints as described in this policy.

The Title IX Coordinator may be contacted at:

Central_Office@wcsc.k12.in.us
219-567-9161
1850 S. US 421
PO Box 578
Francesville, IN 47946

The School Board will prominently display the contact information for the Title IX Coordinator and this policy on its website and in each student and employee handbook.

Applicants for admission and employment, students, parents or legal guardians, employees, and all unions or professional organizations holding collective bargaining or professional agreements with the School Board will be notified of the name or title, office address, electronic mail address, and telephone number of the Title IX

Coordinator. The notification must also include the School Board does not discriminate on the basis of sex in its education program or activity, it is required by Title IX not to discriminate in such a manner, the requirement not to discriminate extends to admission and employment, and inquiries about the application of Title IX may be referred to the Title IX Coordinator, the Assistant Secretary for Civil Rights of the United States Department of Education, or both.

II. Definitions

Prohibited Conduct

Harassment Based on Sex

"Sexual harassment" means conduct on the basis of sex that satisfies one or more of the following:

1. an employee of the School Board conditioning the provision of an aid, benefit, or service of the School Board on an individual's participation in unwelcome sexual conduct;
2. unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the School Board's education program or activity; or
3. "sexual assault" as defined in 20 U.S.C. § 1092(f)(6)(A)(v), "dating violence" as defined in 34 U.S.C. § 12291(a)(10), "domestic violence" as defined in 34 U.S.C. § 12291(a)(8), or "stalking" as defined in 34 U.S.C. § 12291(a)(30).

Types of Sexual Harassment

Sexual harassment consists of unwelcome sexual advances, requests for sexual favors, and other inappropriate verbal or physical conduct of a sexual nature when made by any employee to a student, when made by any employee to another employee, or when made by any student to another student when:

1. Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment or education.
2. Submission to or rejection of such conduct by an individual is used as a basis for academic or employment decisions affecting that individual.
3. Such conduct has the purpose or effect of unreasonably interfering with an individual's academic or professional performance or creating an intimidating, hostile, or offensive employment or educational environment.
4. Denial of an employment or educational opportunity of others occurs directly because an employee or a student submits to unwelcome requests for sexual favors made by a supervisor or teacher which results favorably for that employee or student.

5. Such conduct is engaged in by volunteers and/or non-employees over which the school corporation has some degree of control of their behavior while on school property.

Unwelcome Conduct of a Sexual Nature

1. Conduct of a sexual nature may include verbal or physical sexual advances and/or comments regarding physical or personality characteristics of a sexual nature.
2. Verbal or physical conduct of a sexual nature constitutes sexual harassment when the allegedly harassed employee has indicated, by his or her conduct or verbal objection, that it is unwelcome.
3. In the situation involving sexual harassment by an adult of an elementary student, unwelcomeness of the harassment is presumed and is not a factor to be considered.
4. An employee who has initially welcomed such conduct by active participation must give specific notice to the alleged harasser that such conduct is no longer welcome for any such subsequent conduct to be deemed unwelcome.

Examples of Sexual Harassment

Sexual harassment may include but is not limited to the following:

1. Verbal harassment or abuse.
2. Repeated remarks to a person with sexual or demeaning implications.
3. Unwelcome touching.
4. Pressure for sexual activity.
5. Suggesting or demanding sexual involvement accompanied by implied or explicit threats concerning one's grades, job, promotion, and/or salary increase.

III. Complaint Procedures

Report

Any student or school employee who believes he or she has been the victim of sexual harassment prohibited by this policy by a student, a school employee, or a third party should report the alleged harassment to the Title IX Coordinator or any school employee. The alleged harassment should be reported as soon as possible, and the report generally should be made within fifteen (15) school days of the occurrence.

Any student who has knowledge of conduct which may constitute sexual harassment should report such conduct to the Title IX Coordinator or any school employee. Any school employee who has notice that a student or a school employee may have been a victim of sexual harassment shall immediately report the alleged harassment to the Title

IX Coordinator. Any complaint that involves the Title IX Coordinator should be reported to the superintendent. Oral or written reports are acceptable.

The complaint, the identity of the person allegedly harassed, and the alleged harasser will be disclosed only to the extent necessary to fully investigate the complaint and only when such disclosure is required or permitted by law. Additionally, a person allegedly harassed who wishes to remain anonymous shall be advised that such confidentiality may limit the School Corporation's ability to fully respond to the complaint.

After receiving a complaint, the Title IX Coordinator makes an initial determination whether the allegations may be sexual harassment prohibited by this policy. If the allegations are deemed as such, the Title IX Grievance Process below must be followed.

Definitions

"Actual knowledge" means notice of sexual harassment or allegations of sexual harassment prohibited by this policy to the Title IX Coordinator or any school official who has authority to institute corrective measures or to any school employee.

"Complainant" means an individual who is alleged to be the victim of conduct that could constitute sexual harassment prohibited by this policy.

"Formal complaint" means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment prohibited by this policy and requesting the allegation be investigated. A formal complaint may be filed with the Title IX Coordinator in person, by mail, or by electronic mail. When the Title IX Coordinator signs a formal complaint, the Title IX Coordinator is not a party to the formal complaint. The allegations in a formal complaint must be investigated. In response to a formal complaint, the Title IX Grievance Process set out in this policy must be followed.

"Respondent" means an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment prohibited by this policy.

"Supportive measures" means non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. Such measures are designed to restore or preserve equal access to the School Board's education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the educational environment or deter sexual harassment. Supportive measures may include counseling, extensions of deadlines or other course-related adjustments, modifications of work or class schedules, mutual restrictions on contact between the parties, changes in work locations, leaves of absence, increased security or monitoring of school property, and other similar measures. Any supportive measures provided are confidential, to the extent that maintaining such confidentiality does not

impair the ability to provide supportive measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

Title IX Grievance Process

Any person may report sexual harassment (whether or not the person reporting is the victim of conduct that could constitute sexual harassment), in person, by mail, by telephone, or by electronic mail, using the contact information listed for the Title IX Coordinator or by any other means that results in the Title IX Coordinator receiving the person's verbal or written report. Such a report may be made at any time, including non-business hours, by using the telephone number or electronic mail address, or by mail to the address listed for the Title IX Coordinator.

The Title IX Coordinator will promptly contact the complainant to discuss the availability of supportive measures, consider the complainant's wishes with respect to supportive measures, inform the complainant of the availability of supportive measures with or without the filing of a formal complaint, and explain the process for filing a formal complaint.

Complainants and respondents will be treated equitably by offering supportive measures to a complainant and by following this grievance process before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent.

This process does not preclude a respondent from being removed from the education program or activity on an emergency basis, provided that an individualized safety and risk analysis determines that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal and that the respondent is provided with notice and an opportunity to challenge the decision immediately following the removal.

This process does not preclude an employee who is a respondent from being placed on administrative leave during the grievance process.

This grievance process treats complainants and respondents equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment has been made against the respondent, and by following this process before the imposition of any disciplinary sanctions or other actions that are not supportive measures against a respondent. Remedies are designed to restore or preserve equal access to education programs or activities.

The respondent is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.

All relevant evidence is evaluated objectively. Credibility determinations are not based on a person's status as a complainant, respondent, or witness.

Any Title IX Coordinator, investigator, or decision makers may not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.

Title IX Coordinators, investigators, and decision makers must receive training on the definition of sexual harassment, the scope of the School Board's education program or activity, how to conduct an investigation and grievance process including appeals, and how to serve impartially, including by avoiding prejudgment of the facts at issue, conflicts of interest, and bias. Decision makers are required to receive training on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant. Investigators are required to receive training on issues of relevance in order to create investigative reports that fairly summarize relevant evidence.

A finding of responsibility may result in any disciplinary action up to and including expulsion for students or dismissal of employees.

The standard of evidence used to determine responsibility is a preponderance of the evidence.

This grievance process does not allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege unless the person holding such privilege has waived the privilege.

<u>Notice of Allegations</u>

On receipt of a formal complaint, the Title IX coordinator gives the following written notice to the parties:

1. notice of the grievance process, and
2. notice of the allegations of sexual harassment potentially constituting sexual harassment, including sufficient details known at the time. Sufficient details shall include the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual harassment, and the date and location of the alleged incident, if known. This notice must be given with sufficient time to prepare a response before any initial interview.

The written notice must also include:

1. a statement the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process;
2. information the parties may have an advisor of their choice, and may inspect and review evidence; and

3. information about any provisions in the School Board's code of conduct or other policies that prohibit knowingly making false statements or knowingly submitting false information during the grievance process.

If, in the course of an investigation, the investigator decides to investigate allegations about the complainant or respondent that are not included in the notice previously provided, notice of the additional allegations must be provided to the parties whose identities are known.

Dismissal of Formal Complaint

A formal complaint or any allegations therein must be dismissed if the conduct alleged in the complaint

1. would not constitute sexual harassment prohibited by this policy even if proved,
2. did not occur in the School Board's education program or activity, or
3. did not occur against a person in the United States.

Such a dismissal does not preclude action under another provision of the School Board's code of conduct or policy.

A formal complaint or any allegations therein may be dismissed if at any time during the investigation:

1. a complainant notifies the Title IX Coordinator in writing that the complainant would like to withdraw the formal complaint or any allegations therein;
2. the respondent is no longer enrolled or employed by the School Board; or
3. specific circumstances prevent the School Board from gathering evidence sufficient to reach a determination as to the formal complaint or allegations therein.

Investigation of Formal Complaint

When investigating a formal complaint and throughout the grievance process, the burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility is on the School Corporation and not the parties. A party's records that are made or maintained by a physician, psychologist, or other recognized professional or paraprofessional acting in the professional's or paraprofessional's capacity, or assisting in that capacity, and which are made and maintained in connection with the provision of treatment to the party will not be accessed, considered, disclosed or otherwise used without the voluntary, written consent of the party's parent, or the party if the party is an eligible student, to do so for this grievance procedure if such records are required as part of the investigation or determination of responsibility.

The parties will have an equal opportunity to present witnesses, including fact and expert witnesses, and any inculpatory and exculpatory evidence.

The ability of the parties to discuss the allegations under investigation or to gather and present relevant evidence is not restricted.

The parties have the same opportunities to have others present during any grievance proceeding, including the opportunity to be accompanied to any related meeting or proceeding by the advisor of their choice, who may be an attorney. The choice or presence of advisor for either the complainant or respondent is not limited in any meeting or grievance proceeding.

Any party whose participation is invited or expected is provided written notice of the date, time, location, participants, and purpose of all investigative interviews or other meetings with sufficient time for the party to prepare to participate.

The investigator must provide both parties an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations raised in a formal complaint, including the evidence which will not be relied upon in reaching a determination regarding responsibility and inculpatory or exculpatory evidence whether obtained from a party or other source, so that each party can meaningfully respond to the evidence prior to the conclusion of the investigation.

Prior to the completion of the investigative report, the investigator must send to each party and the party's advisor, if any, the evidence subject to inspection and review in an electronic format or a hard copy, and the parties must have at least 10 days to submit a written response, which the investigator must consider prior to completion of the investigative report.

The investigator shall write an investigative report that fairly summarizes relevant evidence and, at least 10 days prior to the time a determination regarding responsibility is made, send to each party and the party's advisor, if any, the investigative report in an electronic format or a hard copy, for their review and written response.

The investigative report will be provided to the parties and the decision maker within 35 days from the date the formal complaint is filed.

After the investigator has sent the investigative report to the parties and before reaching a determination regarding responsibility, the decision maker must afford each party the opportunity to submit written, relevant questions the party wants to be asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions from each party. Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior

sexual behavior with respect to the respondent and are offered to prove consent. The decision maker must explain to the party proposing the question of any decision to exclude a question as not relevant.

Determination Regarding Responsibility

The decision maker, who is not the same person as the Title IX Coordinator or the investigator, must issue a written determination regarding responsibility.

The written determination must include the following:

1. identification of the allegations potentially constituting sexual harassment prohibited by this policy;
2. a description of the procedural steps taken from the receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, and methods used to gather other evidence;
3. findings of fact supporting the determination;
4. conclusions regarding the application of the School Board's code of conduct or other policy provisions to the facts;
5. a statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary actions recommended against the respondent, and whether remedies designed to restore or preserve equal access to the School Board's education program or activity will be provided to the complainant; and
6. the procedures and permissible bases for the complainant and respondent to appeal.

A determination of responsibility decision will be issued within 10 working days from the date the investigative report is submitted to the decision maker.

The decision maker must provide the written determination regarding responsibility to the parties simultaneously.

The Title IX Coordinator is responsible for the effective implementation of any remedies.

Appeals

Either party may appeal within 5 working days from the date the written determination regarding responsibility is given to the parties.

Either party may appeal from a determination regarding responsibility or a dismissal of a formal complaint or any allegations therein, on the following bases:

1. procedural irregularity that affected the outcome of the matter;

2. new evidence that was not reasonably available at the time the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter; and
3. the Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against complainants or respondents generally or the individual complainant or respondent that affected the outcome of the matter.

Notification of appeal must be given in writing to the Title IX Coordinator.

For all appeals, the Title IX Coordinator will

1. notify the other party in writing when an appeal is filed and implement appeal procedures equally for both parties;
2. ensure the decision maker for the appeal is not the same person as the decision maker that reached the determination regarding responsibility or dismissal, the investigator, or the Title IX Coordinator; and
3. ensure the decision maker for the appeal complies with the standards outlined in this policy.

The appeal decision maker will

1. give both parties a reasonable, equal opportunity to submit a written statement in support of, or challenging, the outcome;
2. review the evidence gathered by the investigator, the investigator's report, and the decision maker's written decision;
3. issue a written decision describing the result of the appeal and the rationale for the result; and
4. provide the written decision simultaneously to both parties and the Title IX Coordinator.

Any appeal will be resolved with 15 calendar days from the filing of the appeal.

The determination regarding responsibility becomes final if an appeal is filed on the date the parties are provided with the written determination of the result of the appeal or if an appeal is not filed, the date on which an appeal would no longer be considered timely.

Temporary delays of the grievance process or the limited extension of time frames for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action are permitted. Good cause may include considerations such as the absence of a party, a party's advisor, or a witness; disciplinary processes required by law or School Board policy; or the need for language assistance or an accommodation of disabilities.

<u>Recordkeeping</u>

The School Board will maintain for a period of seven years records of:

1. each investigation of allegations of sexual harassment prohibited by this policy including any determination regarding responsibility and any audio or audiovisual recording or transcript, any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant designed to restore or preserve equal access to School Board's education program or activity;
2. any appeal and the result of the appeal; and
3. all materials used to train Title IX Coordinators, investigators, decision makers, and any person who facilitates an informal resolution process. These materials will also be made available on the School Corporation's website.

For each response required under this policy and federal law, the School Board must create, and maintain for a period of seven years, records of any actions, including any supportive measures, taken in response to a report or formal complaint of sexual harassment prohibited by this policy. In each instance, the School Board will document the basis for its conclusion that its response was not deliberately indifferent, and document it has taken measures designed to restore or preserve equal access to its education program or activity. If the School Board does not provide a complainant with supportive measures, then it must document the reasons why such a response was not clearly unreasonable in light of the known circumstances.

IV. Retaliation

Retaliation against students or school employees who report harassment or participate in any related proceedings is prohibited. The school corporation shall take appropriate action against students or school employees who retaliate against any student or school employee who reports alleged harassment or participates in related proceedings. The Title IX Coordinator will inform persons who make complaints, who are the subject of complaints, and who participate in investigations of how to report any subsequent retaliatory actions.

V. False Charges

Students or school employees who knowingly make false charges of harassment shall be subject to disciplinary action as well as any civil or criminal legal proceedings.

Legal Refs: 20 U.S.C. §§ 1681-1688.
42 U.S.C. §§ 2000d-2000d-7.
42 U.S.C. §§ 2000e-2000e-17.

42 U.S.C. § 2000ff-1.
34 C.F.R. 106.2, 106.8, 106.9, 106.3, 106.44, 106.45, 106.71

REPORT OF SEXUAL HARASSMENT

This form is to be used by any employee or student who has either observed or been subject to sexual harassment. To ensure full investigation, it should be completed as accurately as possible. It is not, however, critical to be 100 percent precise. An investigation may require the complainant to be interviewed.

Date: _____

PLEASE PRINT

Name of complainant making a Charge of sexual harassment: _____

Address of complainant: _____

Telephone number: _____

Position or Grade: _____

Name of individuals involved In the harassment and indicate Whether they are students or Employees: _____

_____

Please give a description of the sexual harassment in your own words:

_____

_____

Names of any witnesses, Indicating whether they are Employees or students: _____

_____

_____

Complainant's Signature

Please see the West Central School Corporation's policy on Sexual Harassment for more information on the topic. Present this report to your most immediate supervisor not involved in the harassment.

_____

Report Number

INVESTIGATIVE REPORT
OF ALLEGED SEXUAL HARASSMENT

Note: If additional space is needed, please attach separate sheets as references by report number.

Name of complainant: _____

School and/or position _____

Nature of complaint _____ Student _____ Employee

Specific complaint: _____

_____

Date complaint filed _____

Name(s) of Respondent _____ Date notified _____

Respondent's answer _____ Agrees with the facts
_____ Disagrees with the facts

Explanation: _____

_____

Date complainant notified: _____

Complainant's response _____ Agrees with the facts
_____ Disagrees with the facts

Explanation: _____

_____

Complainant's Witnesses _____ _____
(name) (position)
_____ _____

_____ _____

_____ _____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Respondent's Witnesses _____ _____
(name) (position)

_____ _____

_____ _____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Date _____ interviewed _____
(name of witness)

_____ response:
(name of witness)

_____

_____

Other records/documents reviewed:

1. _____ _____
(name of document) (date reviewed)
2. _____ _____
3. _____ _____
4. _____ _____

Summary of review of above records/documents:

_____

_____

_____

_____

Investigator's Summary:

_____

_____

_____

_____

Suggested Corrective Action:

_____

_____

_____

_____

_____
Investigator's Signature

_____
Date

(April 23, 1992) updated 2023

4010: STUDENT RESIDENCE VERIFICATION

Last Revised: April 4, 2024
Prior Revision Dates:

"Residence" for purposes of this policy means the place where an individual has his or her principal and permanent home, at which he or she remains when not called elsewhere for labor, studies, or other temporary purposes. It is the place a person has voluntarily fixed as a permanent habitation for himself or herself with an intent to remain in such place for an indefinite period.

The residence of an unemancipated student follows the parents or a legal guardian who has actual custody of such student. In the case of divorce or separation, the custodial parent's residence determines the status of the student unless a court order or written agreement provides otherwise.

If an unemancipated student moves independent of his or her parents, the student shall be considered an Indiana resident upon the basis of a legally appointed guardian's Indiana residence if the student is living with the guardian.

Proof of Indiana residency must be filed at the time of enrollment for every student who is counted for membership purposes and maintained by the school corporation in the student's file.

The following documents will be considered relevant in evaluating whether a student is a resident of the state of Indiana.

a. Bank statements – dated within the last four (4) weeks.

b. Utility bills – dated within the last four (4) weeks.

c. Current property tax statement.

d. Current mortgage statement or lease/rental agreement.

e. Voter registration card – Parent or student if applicable.

f. Federal or state income tax returns – most recent tax year.

g. Medical bill – dated within the last 30 days.

h. Student's tax returns -- when emancipation is claimed.

At the beginning of the school year, the parents of each student must verify the Indiana residency of the student without providing documentation if the residence has not changed. If the residence has changed, parents will be required to provide the appropriate documentation verifying residence within the state of Indiana.

The Superintendent may develop administrative guidelines to implement this policy at the building level.

4011: EARLY ENTRANCE APPEAL PROCEDURE

Last Revised: April 4, 2024
Prior Revision Dates: August 4, 2005, September 5, 2019

Any child who attains the age of five (5) on or before August 1 for the school year will be admitted to the kindergarten program of the West Central School Corporation. If the child is younger than 5 years and the parent/guardian(s) of the child wish to enroll the child in the kindergarten program they may submit an application to the Superintendent for consideration. Such application should be made no later than ten (10) days prior to the first day of school. The Superintendent will make the determination of whether the child will be admitted to the kindergarten program.

In evaluating the early admission application(s), the Superintendent will base his/her decision on the following:

a. Whether or not there is space in the kindergarten program at the school that the child will attend. In determining the availability of space, the Superintendent may consider whether the admittance of the child will cause the school's Prime Time teacher-pupil ratio to be exceeded. If there are more applicants than the number of spaces available and it is determined that an excess number of applicants qualify for early entrance than space available, the determining factor for acceptance shall be the birthdate of the child; children with birthdates closest to the August 1 cutoff date will be admitted to the kindergarten program. If no space is available, or if it is determined that it is not in the best interest of the school or the children to admit additional students, no early entrance application(s) will be accepted.

2. Any and all information submitted by the parent(s)/ guardian(s) of the child with the application. Such information should include age equivalent scores and assessments of the following domains and areas of development: cognitive, motor skills (fine and gross), social/emotional adaptive behavior, academic readiness skills, motor development, perceptual development, and physical development. All measures used to determine readiness for school must be standard, approved by the corporation and administered by a professional qualified to interpret such tests. Each child should be tested prior to the application being submitted. The parent(s) or guardian(s) must assume all costs for the assessment. The Superintendent shall not make his/her determination based upon only one single test score.

3. Whether early entrance is in the best interest of the child. A child coming into the school corporation from an out-of-state kindergarten program (public or private) or an in-state kindergarten program (public or private) and who does not meet the Indiana state age-eligibility requirements, should be admitted to the kindergarten program, unless it can be determined that enrollment in such a program was intended to circumvent Indiana law.

   The Superintendent shall advise the parent(s)/guardian(s) of his/her decision in writing and send it to them by certified mail.

   The Superintendent, or his/her designee, may develop an application form for early entrance to aid him/her in the process of making his/her determination.

Any kindergarten student who is accepted to kindergarten under this policy shall be counted by the superintendent for state tuition support in accordance with state law.

Legal Reference: IC 20-33-2-7

I.C. 20-43-4-5

4012: LOCATING MISSING CHILDREN

Last Revised: January 2, 2025
Prior Revision Dates:

Students initially enrolling in the West Central School Corporation in any grade, must provide the name and address of the school the student last attended, if any, and a certified copy of the student's birth certificate or other reliable proof of the student's date of birth. If the birth certificate or other evidence of the student's date of birth is not provided to the school within thirty (30) days of the student's enrollment or if it appears inaccurate or fraudulent, the school principal or his or her designee shall notify the Indiana Clearinghouse for Information on Missing Children, 1-800-831-8953. Once satisfactory proof of age has been provided, it will be returned to the student or their parents. In addition, the school principal or their designee shall, within fourteen (14) days of a student's enrollment, request the student's records from the last school the student attended, if any.

If any law enforcement agency reports to a school that a present or former student is missing, the principal or their designee shall attach a notice to the student's school records stating that the child has been reported missing. This notice shall be removed whenever the school is notified that the child has been found or the child reaches eighteen (18) years of age.

The principal or their designee, upon receiving a request for records from another school, shall promptly send the records to the requesting school; however, if a notice has been attached to the records that the child has been reported missing, the principal or their designee shall immediately notify the Clearinghouse (1-800-831-8953) and may not send the records without prior authorization from the Clearinghouse. In addition, whenever the principal or their designee receives a request for student records from any individual and a notice has been attached to the student's records that the child has been reported missing, the principal or their designee shall obtain the name, address, and telephone number of the person making the request and the reason the person is making the request, and the principal or their designee shall immediately notify the Clearinghouse (1-800-831-8953). If a request for the school records of a missing child is received, the principal or their designee may not issue a copy of those records without prior authorization from the Clearinghouse.

{Recodified from Section 506}

Legal IC 20-33-2-10

4013: HOMELESS STUDENTS

Last Revised: September 7, 2023
Prior Revision Dates: June 6, 2019

Homeless Students: Enrollment Rights and Services

To the extent practical and as required by law, the corporation will work with homeless students and their families to provide stability in school attendance and other services. Special attention will be given to ensuring the enrollment and attendance of homeless students not currently attending school. Homeless students will be provided corporation services for which they are eligible, including Head Start, Title I, special education, bilingual education, vocational and technical education programs, gifted and talented programs and school nutrition programs.

Homeless students are defined as lacking a fixed, regular and adequate nighttime residence, including:

1. Sharing the housing of other persons due to loss of housing, economic hardship, or a similar reason;
2. Living in motels, hotels, trailer parks or camping grounds due to the lack of alternative adequate accommodations;
3. Living in emergency or transitional shelters;
4. Are abandoned in hospitals;
5. Living in public or private places not designed for or ordinarily used as regular sleeping accommodations for human beings;
6. Living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations or similar settings; or
7. Are migratory children living in conditions described in the previous examples.

An unaccompanied youth is a homeless student who is not in the physical custody of a parent or guardian.

The superintendent shall designate an appropriate staff person to be the corporation's liaison for homeless students and their families.

Homeless students will continue to be enrolled in their school of origin while they remain homeless or until the end of the academic year in which they obtain permanent housing. Instead of remaining in the school of origin, parents or guardians of homeless students may request enrollment in the school in the attendance area the student is actually living. Attendance rights by living in attendance areas, other student assignment or student choice or transfer policies are available to homeless families on the same terms as families who are resident in the school corporation.

If there is an eligibility or enrollment dispute, the student shall be immediately enrolled in the school in which enrollment is sought, pending resolution of the

dispute. The parent, guardian, or unaccompanied youth shall be informed of the corporation's decision and their appeal rights in writing. The corporation's liaison will carry out the dispute resolution as provided by state rule.

Once the enrollment decision is made, the school shall immediately enroll the student, pursuant to corporation policies. If the student does not have immediate access to immunization records, the student shall be admitted under a personal exception. Students and families should be encouraged to obtain current immunization records or immunizations as soon as possible, and the corporation liaison is to assist in this process. Records from the student's previous school shall be requested from the previous school pursuant to corporation policies. Emergency contact information is required at the time of enrollment consistent with corporation policies.

Homeless students are entitled to transportation to their school of origin or the school where they are to be enrolled. If the school of origin is in a different school corporation, or a homeless student is living in another school corporation but will attend his or her school of origin in this corporation, the two school corporations will coordinate to determine the responsibilities and costs of each corporation to provide the transportation services necessary for the student. If the two school corporations do not agree upon an arrangement, the responsibilities and costs for the transportation services will be shared equally by the two school corporations.

The corporation's liaison for homeless students and their families shall coordinate with local social service agencies that provide services to homeless children and youths and their families; other school corporations on issues of transportation and records transfers; and state and local housing agencies responsible for comprehensive housing affordability strategies. This coordination includes providing public notice of the education and appeal rights of homeless students in a manner understandable to the homeless students, their parents or guardians, and unaccompanied youth. The notice shall be disseminated in locations frequented by homeless students, their parents or guardians, and unaccompanied youth.

The corporation's liaison will be responsible to review and recommend amendments to corporation policies that may act as barriers to the enrollment of homeless students.

Legal Reference:
42 U.S.C. Section 1431
42 USC Section 11432(g)
42 USC Section 11434a
IC 20-50-1

4014: FOREIGN EXCHANGE STUDENTS

Last Revised: January 2, 2025
Prior Revision Dates:

Recognizing that the exchange students between countries to attend schools has many educational and cultural values for the exchange student, and the students, school, and community visited, it is the intent of the West Central School Corporation to be actively involved in the exchange student program.

Understanding the educational and cultural values an exchange student program offers, the school must ensure that the exchange student's enrollment does not hamper the educational program for the residential students. Therefore, the following guidelines will be followed when foreign exchange students are considered for admittance into the West Central School Corporation:

1. The principal of the school in which the foreign exchange student is to be enrolled shall be consulted by the exchange agency prior to its informing a host family that admittance of the exchange student will be granted into the respective school.
2. The foreign exchange agency must have the foreign exchange student enrolled with the West Central School Corporation prior to Labor Day of the school year to be considered.
3. The foreign exchange student shall be placed no later than the Indiana Department of Education ADM count day.
4. The foreign exchange student shall be enrolled for the entire school year unless the building principal and superintendent grant a waiver of this policy section.

{Recodified Section 523}

4018: TRANSFER STUDENTS

Last Revised: September 7, 2023
Prior Revision DatesAdopted: September 7, 2017, September 5, 2019

Transfer Students

The Board of School Trustees recognizes that a parent of a child must be a legal resident of the West Central School Corporation in order for the child to attend its schools. The Board recognizes it has the authority to accept transfer students and it is the intent of the Board that all applicable laws in regard to student transfers shall be strictly followed. A transfer student is one whose legal settlement is not within the boundaries of the West Central School Corporation.

School Employee Requests

Requests for transfer made by any school employee who resides in Indiana and whose annual salary is at least $8000 for his or her own child(ren) will be accepted prior to any other requests for student transfer provided there is capacity in the grade level in the building as determined annually by the Board of School Trustees. If there is not adequate capacity in a grade level to accept all of the transfer requests, a publicly verifiable random selection process will be conducted in a public meeting of the school board to determine who will be accepted.

Other Transfer Student Requests

If there is capacity remaining after the acceptance of school corporation employees' transfer requests, parents, guardians, or custodians who are not school corporation employees of Indiana students who do not reside in the West Central School Corporation but who wish to enroll their child in the school corporation may request a transfer and will be considered for enrollment under the following conditions:

1. A student requesting transfer shall complete the Application for Transfer of Non-Resident Student and submit it to the West Central School Corporation Superintendent's Office prior to May 1st of the preceding school year. Transfers will be considered on a yearly basis.
2. The parent, guardian, custodian, or student agrees to provide his/her own transportation to and from the school.
3. Capacity for each grade level in each building as determined annually by the Board of School Trustees will be a consideration as to whether the student will be admitted or a publicly verifiable random selection process will be necessary to determine who will be accepted. The random selection process will take place in a public meeting of the school board when the number of eligible transfer applicants exceeds the capacity of the grade level. When determining capacity, space needed for resident students, current transfer students, siblings of such students, and employees' children will be taken into consideration.

4. When applicable, the parents, guardians, or custodians agree to pay the transfer tuition in a timely manner as established by the Superintendent.

Under no circumstances will a transfer student be accepted for athletic reasons. The building principal and superintendent shall deny a transfer request based on one or more of the following criteria:

a. The student has been suspended or expelled for 10 or more school days in the 12 months preceding the request for transfer.
b. The student was suspended or expelled for possessing a firearm, deadly weapon, or destructive device in the preceding 12 months.
c. The student was suspended or expelled for causing physical injury to a student, school employee, or visitor to the school.
d. The student was suspended or expelled for violating a drug or alcohol rule.
e. The student has a history of unexcused absences and based upon the location of the student's residence, attendance of the student would be a problem if enrolled in the school corporation.

Students transferring to this Corporation from other schools or school corporations shall be placed in those classes or at those grade levels for which their previous educational experiences appear to qualify them. The School Corporation reserves the right to change or modify such placements on the basis of later information, testing, or investigation.

The Superintendent shall develop the operational procedures and forms necessary for the implementation of this policy.

Legal References:
I.C. 20-26-11-2
I.C. 20-26-11-6
I.C. 20-26-11-6.5
I.C. 20-26-11-32

Transfer students will not be charged transfer tuition regardless of the date of enrollment of the transfer student.

Legal Reference: I.C. 20-26-11-2

4022: NON-PUBLIC STUDENT PARTICIPATION IN PUBLIC SCHOOL

Last Revised: February 2, 2024
Prior Revision Date:

The School Board offers tuition free enrollment to all school-age children with legal settlement within the Corporation's legal boundaries. In order to comply with the Indiana Compulsory Attendance law, the parent/guardian of a child between the age of seven (7) and eighteen (18) must be enrolled in an accredited school or be provided with instruction that is equivalent to the instruction made available by the Board.

If a parent/guardian does not enroll a child in an accredited school, the parent/guardian shall inform the Superintendent. The Superintendent shall inform the parents that later enrollment of the child in any of the Corporation's schools will be in accordance with other school board policies related to credits and placement. Enrollment is contingent upon:

a. Courses taken are offered at West Central and are not available at the student's current school
b. Any prerequisite courses have been satisfied
c. Student is placed within their chronological age group
d. Space is available within the requested class

Students enrolled in the curricular program at West Central Schools will be counted as enrolled in ADM. Participation in required state and local testing programs will be in accordance with state regulations based on the student's enrollment.

Homeschooled, private, or parochial school students who enroll in West Central Schools on a full-time or abbreviated schedule will be placed in a grade level or schedule based primarily upon chronological age. If testing or screening is required, the principal will have the authority to reassign the student according to age, progress, and other important variables. The testing/screening may involve a review of the student's home education plan, a list of all persons who conducted the home instruction program, an outline of the curriculum which was followed, and a list of all instructional materials used.

A child that is being educated in a non-accredited or home school may enroll in one or more academic courses with the approval of the Superintendent. Such enrollment will be submitted to the State for funding purposes. The Superintendent may allow a resident student who is being educated at a non-accredited or home school and taking one (1) or more academic courses at the Corporation school to participate in one or more of the Corporation's co-curricular or extracurricular activities provided he/she meets the eligibility criteria established for the activity and school.

Administrative Guideline

4022: Non-Public Student Participation in Public School

To: Administrators, Directors, Principals

From: Cathy Rowe

RE: Non-Public Student Participation in Public School

Date: February 26, 2024

West Central School Board Policy 4022: Non-Public Student Participation in Public School was revised on February 2, 2024. This policy notes that "A child being educated in a non-accredited or home school may enroll in one or more academic courses with the approval of the Superintendent". This administrative guideline seeks to clarify the meaning of 'academic courses' in the context of the student's participation in courses in the West Central School Corporation.

Academic courses are defined, for the purpose of this policy, as all courses completed in school in the areas of mathematics, English, science, foreign language, and the social sciences. These courses also comprise the core, required and elective courses that lead to a degree or certificate at the high school level.

At the elementary level (K-6) science and social studies are taught within the English/Language Arts or Mathematics curriculum and not as separate subjects. Thus an elementary non-public or homeschooled student would be required to enroll in at least the English/Language Arts or Mathematics course to be eligible to participate in extracurricular activities, or if so requesting to enroll in courses at the school.

Additionally, to be eligible for an elementary (K-6) student to enroll in other courses that do not fall into the Academic courses description as noted above, the student must take one academic course (ELA or math) in addition to the other courses sought.

Students in middle school (grade 7 and 8) would be required to enroll in one or more academic courses (Math, English/Language Arts, Science, or Social Studies) as noted in the policy. High school students (grades 9-12) would be required to enroll in one core, required or elective course in satisfaction of a Core 40, Academic Honors or Technical Honors course as a requirement of this board policy. Deadline for enrollment for middle and high school students is the beginning of each semester due to the award of high school credit (when applicable).

4030: VACCINATIONS & IMMUNIZATIONS-EXCLUSION PROCESS

Last Revised: April 4, 2024
Prior Revision Dates:

Each child who is enrolling in the West Central School Corporation for the first time shall meet the immunization requirements under state law. A child's parent or guardian must provide written documentation of the child's immunization records or of medical or religious exceptions.

Immunizations are required for the following diseases:

Diphtheria

Tetanus

Pertussis (Whooping Cough)

Measles

Meningitis

Rubella

Poliomyelitis

Mumps

Hepatitis A

Hepatitis B

Varicella

In addition, the student must meet the requirements for other immunizations and boosters as required by the Indiana Department of Health.

Except as otherwise provided, no student shall be required to undergo any testing, examination, immunization, or treatment required when the parent(s) or guardian(s) have a religious objection. Such objection shall not exempt a child from any medical testing, examination, immunization, or treatment, required unless it is made in writing, signed by the child's parent(s) or guardian(s) and delivered to the child's teacher or to the individual who might order a test, examination,

immunization, or treatment in absence of such objection. The written document, signed by the parent(s) or guardian(s), must state that the objection to immunization is based on religious grounds.

If any physician certifies that a particular required immunization is or may be detrimental to the child's health, the requirement for that particular immunization is inapplicable for that child until it is found no longer detrimental to the child's health.

In no case shall a child be permitted to attend school more than twenty (20) days beyond the date of his/her enrollment without furnishing documentation of the immunization/test or a valid written objection to the immunization requirement. If no documentation is provided, the student will be excluded from attending school until such documentation is provided. Parents(s) or guardian(s) of the student will be informed of the exclusion in writing.

The Superintendent may develop procedures to implement the requirements of this policy.

LEGAL REFERENCE: IC 20-34-4

IC 20-34-3-2 & 3

410 IAC 1-1-1

4130: STUDENT FUNDRAISING AND SOLICITATION

Last Revised: January 2, 2025
Prior Revision Dates:

The School Board acknowledges that the solicitation of funds by or from students must be limited since compulsory attendance laws make the student a captive donor and may also disrupt the program of the schools.

The Board will permit student fundraising by students in school, on school property, or at any school-sponsored event only when the profit there from is to be used for school purposes or for an activity connected with the schools. The Board requires that for any fund- raiser by student clubs and organizations, as well as by School Corporation-support organizations, which involve the sale to students of food items and/or beverages to be consumed on campus, the food and/or beverage items to be sold comply with the current USDA Dietary Guidelines for Americans. Further, if approved, fund-raisers that involve the sale to students of food items or beverages to be consumed on campus are conducted only from thirty (30) minutes following the close of the last lunch period until thirty (30) minutes after the end of the school day.

Fundraising by approved school organizations, that is, those organizations whose funds are managed by the Corporation, may be permitted in school by the principal. Such fundraising off school grounds may be permitted by the Superintendent.

Involvement of students under the age of eighteen (18) in fundraisers involving games of chance is limited as follows:

Use of the name, logo, or any assets of the Corporation, including but not limited to facilities, technology, or communication networks, is prohibited without the specific permission of the Superintendent.

The Board of School Trustees recognizes the importance of various school-sponsored groups (clubs and organizations) to utilize fundraising activities as a means to generate monies in order to have a meaningful club or organization. Fundraising is defined as raising money for a specific cause, above and beyond normal school budget. Fundraising can be broken down into two categories:

1. Non-Gaming Categories: Includes meals and services (examples of meals: Fish Fry, Chili Supper, etc./ examples of services: Car Washes, Dances, Auctions, etc.)
2. Gaming Categories: Includes games of skills and games of chance. (Examples of games of skill: carnival games, basketball shots, etc./ examples of games of chance: cake raffle, chance at shooting free throws, game ball raffle, etc.). Games of chance involve selling tickets or chances to win a prize awarded through a random drawing.

In compliance with I.C. 4-32.2-5-21, no student under the age of eighteen (18) may play or participate in any of the following types of fundraising events - bingo games, charity game nights, raffles, door prizes, fundraising festivals, activities related to pull tabs, punch- boards, tip-boards, and the like. No

student under the age of eighteen (18) may sell tickets for any of the following types of fundraising events - bingo games, charity game nights, raffles, door prizes, fundraising festivals, activities related to pull tabs, punch-boards, tip- boards, and the like. ~~Students, even those under eighteen (18) years of age, may sell tickets or chances for a raffle.~~

This fundraising policy will cover any school-sponsored extra-curricular or co-curricular club or organization, or any community organization or club that either utilizes school facilities or donates proceeds back to the school. Club sponsors and organization officers who wish to hold a fundraising event must utilize the following procedure:

1. Fill out and submit a completed application form to the building-level administrator at least two weeks prior to the scheduled fundraising activity. The building level administrator and district level administrator will review the request. This review will contain a review of the date and time for the scheduled fundraiser.
2. The building-level administrator and district level administrator will either approve or disapprove the application and assure each club and organization is in compliance with the Indiana Department of Revenue charity gaming requirements. It is the responsibility of the sponsor to complete all gaming fundraising approvals from the state gaming commission.

I.C. 4-32.2-4

I.C. 4-32.2-5

I.C. 4-32.2-5-21

42 U.S.C. 1779

7 C.F.R. Parts 210 and 220

4200 STUDENT WELLNESS POLICY

Last Revised: September 7, 2023
Prior Revision Dates:December 1, 2022

I. West Central School Corporation Wellness Policy

Philosophy

The Board of School Trustees of West Central School Corporation supports increased emphasis on nutrition and physical activity at all grade levels to enhance the well-being of the school corporation's students.

Therefore, in accordance with the Child Nutrition Act, it is the policy of the Board to:

Statement of Purpose

Provide students access to nutritious food and beverages; provide opportunities for physical activity and developmentally appropriate exercises; and require that all meals served by the school corporation meet the federal nutritional guidelines issued by the U.S. Department of Agriculture.

Coordinated School Health Advisory Council

West Central School Corporation will engage students, parents/guardians, teachers, food service professionals, health professionals, and other interested community members in developing, implementing, monitoring and reviewing our corporation's nutrition and physical activities policies. A Coordinated School Health Advisory Council will oversee the development, implementation and evaluation of the school corporation's wellness policy.

1. In accordance with Indiana Code 20-26-9-18, the school corporation will form and maintain a corporation level Coordinated School Health Advisory Council that includes some of the following:

a. Parents/guardians.

b. Foodservice director & staff.

c. Students.

d. Health care professionals.

e. School board member.

f. School administrators.

g. Teachers (physical education teachers).

h. School nurse.

i. Members of the general public/community organizations.

2. The Advisory Council shall meet annually to review nutrition and physical activity policies and develop an action plan for the coming year. The council shall meet as needed during the school year to discuss implementation activities and to address barriers and challenges.

3. The Advisory Council shall report annually to the Superintendent and School Board on the implementation of the wellness policy and any changes or revisions that are recommended.

4. The School Board will adopt or revise policies based on the recommendations made by the Advisory Council. The School Wellness Policy shall be made available to students, staff and families by means of school registration, corporation's website, and the student/staff handbook.

Standard for USDA Child Nutrition Programs and School Meals

All schools at West Central will provide and promote breakfast and lunch through the USDA National School Breakfast and Lunch Program.

1. School meal content

    a. Meals served through the National School Breakfast and Lunch Programs will

        1. meet or exceed the USDA Dietary Guidelines for Americans

        2. offer a minimum of 2 fruits and/or vegetables at all meals

        3. offer only 1% fat free milk

        4. include whole grains for at least 50% of the grains served

        5. contain 0 percent trans fats

    b. All cooked foods will be baked or steamed

    c. Fresh fruits and vegetables will be from certified local farmers when practical.

2. School Meal Participation

a. Schools will, to the extent possible, utilize methods to serve school breakfast that encourages participation, including serving breakfast in the classroom and grab and go breakfasts.

b. Morning bus routes will be scheduled to allow students to arrive at school in time to eat breakfast.

c. Schools in which more than 50% of students are eligible for free or reduced priced meals will sponsor the Summer Food Program when feasible.

3. Mealtimes and Scheduling

a. Students will be provided adequate time to eat (at least 20 minutes to eat lunch and 10 Minutes to eat breakfast).

b. School meals will be served in clean and pleasant settings.

c. Students will be able to wash and sanitize their hands before meals.

d. Potable water will be available at all mealtimes.

e. Appropriate supervision will be provided in the cafeteria and rules for safe behavior shall be consistently enforced.

4. Professional development and training will be provided and tracked for the foodservice department according to the CEU's required by the USDA.

Nutrition Standards for Competitive and Other Food and Beverages

All schools at West Central will provide and allow foods and beverages that support proper nutrition and promote healthy choices throughout the school day.

Approved Nutrition Standards

1. K-12 a la carte and competitive foods sold outside the school meals up to 30 minutes after school hours shall be limited to:

a. No more than 35% of total calories from fat

b. Less than 10% of total calories from saturated fats

c. 0% trans fat

d. No more than 35% of calories from total sugars

2. K-12 a la carte and competitive beverages sold outside the school meals up to

30 minutes after school hours shall be limited to:

a. There are to be no caffeinated beverages.

b. Low-fat and nonfat milk (in 8oz. portions).

c. 100% fruit juice in 8 oz. portions as packaged for elementary/middle school and 12 oz. for High school.

d. All beverages other than water, milk, or juice shall be no larger than 8 oz for elementary, 12 oz for middle school and 20 ounces for high school.

3. Availability

a. Vending machines for middle/high school students will have timers allowing their use only after school hours. An exception is for vending machines dispensing 100% healthy snacks and drinks.

b. Elementary students will have no access to vending machines during the school day.

c. Snack carts and the sale of food items by individuals/groups shall be permitted only with prior approval.

d. Students and staff will have free water for consumption available in water fountains throughout the school buildings. .

4. Celebrations and Fundraisers

a. All school sponsored events and celebrations of special occasions shall include healthy beverages and/or food among the choices available to participants.

b. Teachers will send home a healthy snack suggestion guide to parents.

c. Water or school beverages listed above are encouraged to be served for any celebration during school hours.

d. Fundraising activities will strive to support healthy eating and wellness.

Nutrition Education and Promotion

Nutrition, health, and fitness topics shall be integrated within the health education curriculum taught at every grade level, K-12, and coordinated with the school corporation’s food service program. These topics may be integrated with other curriculum areas as deemed appropriate, and will link with the coordinated school healthy program.

1. Nutrition education will be provided in the following ways:

   a. Lessons, using Team Nutrition materials, will be incorporated in all grade levels on nutritional values of meals/foods.

   b. Lessons will be taught on various chronic diseases, such as diabetes, and their symptoms.

   c. One focus for nutrition education will be to reach out to community resources such as Purdue Extension.

   d. Effort will be made to market healthy foods and My Plate will be displayed throughout the school buildings and in every classroom including the cafeteria.

   e. Nutritional tid-bits will be posted in each building's cafeteria.

   f. The food service department will share and publicize information about nutritional content of meals with students, staff, and parents on the school's website.

   g. Periodic taste testing of proposed new healthy foods will be done in the Cafeteria.

   h. Special dietary, religious, and cultural need of students will be considered when planning meals.

   i. Students are prohibited from leaving campus for lunch.

Physical Activity and Physical Education

1. Physical Education K-12

   a. All students in grades K-12 will be scheduled for physical education instruction in accordance with Indiana State Law.

   b. Waivers will not apply toward the physical education courses required for a diploma.

   c. A licensed instructor (when possible) will teach physical education.

   d. All staff involved in physical education will be provided with opportunities for professional development.

2. Daily Physical Activity Breaks

   a. Each school day shall incorporate several minutes of physical activity or

exercise (20 minutes in elementary school) in addition to the physical education curriculum.

b. Other goals for physical activity include recess, classroom physical activity breaks, and before and after school programs.

3. Physical Activity Opportunities Before and After School

a. The school offers intramural teams, clubs, and voluntary activities to increase physical activity opportunities for students after school hours.

b. The corporation is encouraged to promote the use of school facilities (fitness center, weight room, pool, playground, etc.) outside of school hours for physical activity.

4. Education/Activities Punishment

a. Physical education shall not be taken away as a consequence.

Staff Wellness

1. Staff is encouraged to engage in health screenings, follow-ups, and healthy activities to improve and maintain their health

a. MASE annual health screenings

b. Free online monitoring (www.sparkpeople.com) Example activities: walking, running, and biking

2. Staff is encouraged to eat healthy and be positive role models

a. Fresh fruit, vegetables, and salad ~~bar~~ are offered daily and staff is encouraged to partake in the breakfast and lunch program.

b. Staff is encouraged to adhere to and assist in enforcement of the above policies to aid in developing a healthy school and community.

Evaluation and Responsibilities

West Central School Corporation's Superintendent or designee is responsible to prepare rules, regulations, and guidelines to implement and support this policy. Such provisions should address all food and beverages sold and/or served to students, including competitive food sales, vending machine items, fund raising activities, and student rewards. The superintendent should also prepare regulations for staff development, community involvement, and program evaluation.

1. The superintendent and each building principal or designee shall share the operational responsibility for ensuring the provisions of this policy and its regulations are met in each school.

a. The Advisory council will use the WellSAT tool to evaluate the policy.

b. The Advisory council will be responsible to report to the principals and superintendent on an annual basis the results of the evaluation.

c. The superintendent will be responsible for reporting to the school board the progress.

d. This policy shall be reviewed once a year and revised as needed.

4204: STUDENT MENTAL AND BEHAVIORAL SERVICES RECORDS

Last Revised: September 7, 2023
Prior Revision Dates:

Student Mental and Behavioral Services Records

Student Mental and Behavioral Services (SMBS) records are reports, notes, diagnoses, and appointments relating to a student who was referred to by school officials to receive mental or behavioral services as provided by state law or under a school corporation's memorandum of understanding with a mental or behavioral services provider and is receiving or has received mental or behavioral services. SMBS records are the property of and maintained by the school corporation and are confidential medical records.

CUSTODY AND PROTECTION OF SMBS RECORDS

Place SMBS Records are kept

SMBS records are to be maintained in separate student files only and shall not be filed or maintained in the student's permanent, cumulative educational files.

Control of SMBS Records

SMBS records shall be maintained and secured in the school official's office responsible for the referral process and parent conference under the school corporation's procedures for referral of students to mental or behavioral services due to demonstrated repeated patterns of aberrant or abnormal behavior.

Access to Education Records

SMBS records of a student shall not be shared with other school officials who are not maintaining SMBS records of the student.

{Recodified Section 546}

Legal IC 20-34-3-21

4210: ADMINISTRATION OF MEDICATION

Last Revised: September 7, 2023
Prior Revision Dates: June 22, 2006, August 2, 2018

I. Administration of Medication at School

No medication shall be administered to a student without the written and dated consent of the student's parent. The consent of the parent shall be valid only for the period specified on the consent form and in no case longer than the current school or program year.

All nonprescription medicine to be administered to a student must be accompanied by a statement describing the medicine, the dosage, and the time for it to be administered to the student. USDA-approved topical, non-aerosol sunscreen products are exempt from this requirement. A school employee may assist in applying the sunscreen with written permission of the student's parent or guardian. A student may possess and use the above-described sunscreen product while at school and at school events.

All prescription medicine, including injectable medicine and all blood glucose tests by finger prick to be administered to a student must be accompanied by a physician's prescription, a copy of the original prescription, or the pharmacy label. If the medication is to be terminated prior to the date on the prescription, the written and dated consent or withdrawal of consent of the parent is required. The written consent of the parent and the written order of the physician shall be kept on file.

No student shall be allowed to keep medicine at school except as provided by state law. Any medicine to be administered to a student shall be brought to either the principal's or school nurse's office where it will be kept in a secure place. Medication prescription and/or over the counter must be in the original container. The medication will be administered to the student by the school nurse or a person designated by the school nurse or designated by the school principal.

Unused medicine by a student may be sent home through the student's parent or an individual who is at least 18 years old and is designated in writing by the student's parent to receive the medication. Unused medicine may be sent home with the student only with the written permission of the student's parent.

Medication shall be administered in accordance with the parent's statement (in the case of nonprescription medicine) or the physician's order (in the case of prescription medicine) only by a school nurse or other employee(s) designated in writing by the school principal. All administration of medicine shall be documented in writing. Any designated employee who is responsible for administering injectable

insulin or a blood glucose test by finger prick shall receive proper training from a practitioner or a registered nurse and such training shall be documented in writing by the practitioner or registered nurse and kept on file in the school building office.

Low THC Hemp Extract

Low THC Hemp Indiana law defines "low THC hemp extract" as a product:

1. derived from Cannabis sativa L., that meets the definition of industrial hemp;
2. that contains not more than three-tenths percent (0.3%) delta-9-THC (including precursors); and
3. that contains no other controlled substances

Prior to school personnel administering a low THC hemp extract substance, in addition to the above requirements, the following criteria must be met:

1. Parent/Guardian has provided the school with written permission to administer the product to his/her child and has verified that the product was acquired from a retailer that meets the requirements of state law;
2. Product is in the original packaging and is UNOPENED;
3. Student's health care provider has provided the school with a prescription to administer the substance which includes the dose, route and time of administration; and
4. Product has been approved by: (1) the federal Food and Drug administration or the federal Drug Enforcement Agency as a prescription or over the counter drug or (2) meets the packaging requirements of state law.

Low THC hemp extract substance must be in packaging that contains the information required by state law. A school nurse or other trained school personnel will determine if the packaging complies with the law prior to the low THC hemp extract being administered.

Legal Reference:
IC 34-30-14
IC 20-33-8-13
IC 20-34-3-18
IC 24-4-21
IC 20-34-3-22
511 IAC 7-36-9

4300: STUDENT DISCIPLINE RULES/DUE PROCESS

Last Revised: September 7, 2023
Prior Revision Dates:July 13, 1995, December 21, 1993

Student Due Process

The West Central School Corporation administrative staff, the superintendent, the principals of each school, teachers and other personnel having charge of any educational function, shall allow students the due process rights afforded to them under federal and state laws when disciplining students.

Obedience to a properly constituted authority is an important part of citizenship training. Because of the position a teacher holds, every teacher is entitled to the respect of the pupils and obedience to reasonable rules and regulations. The teacher must see that proper respect, courtesy, and obedience are forthcoming from the pupil.

Principals in their schools and teachers in their classrooms are authorized and expected to formulate and enforce reasonable rules and regulations to provide good pupil discipline and obedience.

Most cases of disobedience can be corrected without corporal punishment. However, when other methods of discipline have proven unsuccessful, corporal punishment may be used as a last resort. Corporal punishment must be reasonable and not administered with anger or malice. It shall only be administered by a certified staff member and a second staff member must be present in order to serve as a witness to this form of discipline. Such punishment shall not be administered in the presence of other children. A written report will be filed in the office of the Principal and a copy shall be sent home to the parent and the Superintendent.

Indiana courts consistently have held that a teacher acts in the place of a parent and that reasonable corporal punishment may be used when justified, and the fact that a pupil suffers hurt is not an indication that the teacher is brutal.

To be an effective school there must be a combination of good order and respect for the rights, privileges and safety of others. To attain these objectives, the governing body has established written rules and standards concerning student conduct, which are reasonably necessary to carry out or to prevent interference with carrying out the educational functions of the school. A copy of the discipline policy is distributed to each student and parent or legal guardian of each student.

Any administrator, teacher or other personnel of the school corporation shall be authorized to take action in connection with student behavior, in addition to the actions

specifically provided in the student handbook, when attempting to prevent or correct interference with school purposes. Specific forms of disciplinary action are:

a. Refer to counselor for problem solving;
b. Conference with a parent by phone or in person;
c. Rearranging class schedule;
d. Before or after school detention;
e. Restriction of participating in or attendance at extra-curricular activities;
f. School related work activities as an alternative to other means of discipline
g. Remove from the classroom for a period of time;
h. Attendance at Saturday School, Monday Night School or other after school detention-type event;
i. Contact outside authorities for assistance – welfare department, probation department, law enforcement, etc.
j. Suspension from school attendance;
k. Expulsion from school attendance; and
l. Any other action deemed necessary and appropriate to maintain discipline.

Student Rights and Responsibilities

To run an effective school there must be a combination of good order and respect for the rights and privileges and safety of others. To attain these objectives, the school has a variety of rules regarding keeping appointments, using cars, drinking alcoholic beverages, using tobacco in any form, using illegal drugs and abusing school property. In addition, it is expected that all students will exhibit normal good manners in their personal relationships to encourage an atmosphere in which courtesy and consideration toward others are observed.

When students fail to live up to the standards set forth by the school, they are worked with individually to try to improve their behavior and attitude. Students are sometimes disciplined by restricting their privileges when it is believed this will have the effect of promoting conformity to reasonable routines. If this attempt is unsuccessful and problems continue, parents will be contacted. It has been found that this practice provides a very useful cooling off period both for the students and for those at school whose routine has been disturbed by the actions.

1. Removal from Class or Activity – Teacher: Students are expected to exercise self-discipline and cooperation in the classroom, study hall, extra-curricular activities and all phases of school life. Unacceptable behavior may result in a student being removed from a class or activity. The teacher after consulting with the building principal, or designee, may recommend a student be suspended from that particular class or activity for a period of up to three school days if the student is assigned regular or additional work to be completed in another school setting.
2. Suspension from School – Principal: A school principal (or designee) may deny the student the right to attend school or take part in any school function for a period of up to ten school days.

3. Expulsion: In accordance with the due process procedures defined in this policy, a student may be expelled from school for a period no longer than the remainder of the current semester plus the following semester, with the exception of a violation of the policy regarding possession of a deadly weapon as defined by applicable state laws.

Grounds for Suspension or Expulsion

The grounds for suspension and expulsion apply when a student is:

a. On school grounds immediately before, during, and immediately after school hours and at any other time when the school is being used by a school group (including summer school);
b. Off school grounds at a school activity, function, or event; or
c. Traveling to or from school or a school activity, function or event

A school activity, function, or event includes E-Learning, virtual instruction and remote learning days.

A violation by a student of a rule listed is subject to a range of disciplinary consequences imposed by teachers or administrators intended to be progressive in nature and move to a more serious consequence with each violation of the same or similar rule. In recognizing that violations of certain rules and the resulting consequences will be dependent upon the age of the student, the number of prior violations and the severity of the violation, the principal of each building level shall develop the minimum and maximum consequences for each rule for their building that is to be approved by the board annually and published in the student handbook for each building. The appropriate consequence should be the least severe that will adequately address any danger to the student and other persons, prevent further disruption of activities, and promote student achievement.

In addition to the grounds listed above, a student may be suspended or expelled for engaging in unlawful activity on or off school grounds if the unlawful activity may reasonably be considered to be an interference with school purposes or an educational function, or the student's removal is necessary to restore order or protect persons on school property. This includes any unlawful activity meeting the above criteria which takes place during weekends, holidays, other school breaks, and the summer period when a student may not be attending classes or other school functions.

Grounds for suspension or expulsion are student misconduct or substantial disobedience. The following include examples of student misconduct or substantial disobedience, but are not limited to:

1. Using violence, force, noise, coercion, threat, intimidation, fear, passive resistance, or other comparable conduct constituting an interference with school purposes, or urging other students to engage in such conduct. The following enumeration is only illustrative and not limited to the type of conduct prohibited by this subdivision:

a. Occupying any school building, schools grounds, or part thereof with intent to deprive others of its use.
b. Blocking the entrance or exits of any school building or corridor or room therein with intent to deprive others of lawful access to or from, or use of the building, corridor, or room.
c. Setting fire to or damaging any school building or property.
d. Prevention of or attempting to prevent by physical act the convening or continued functioning of any school or education function, or of any meeting or assembly on school property.
e. Continuously and intentionally making noise or acting in any manner so as to interfere seriously with the ability of any teacher or any of the other school personnel to conduct the education function under their supervision.

2. Causing or attempting to cause damage to school property, stealing or attempting to steal school property.
3. Causing or attempting to cause damage to private property, stealing or attempting to steal private property.
4. Intentionally causing or attempting to cause physical injury or intentionally behaving in such a way as could reasonably cause physical injury to any person. Self-defense or reasonable action undertaken on the reasonable belief that it was necessary to protect some other person does not, however, constitute a violation of this provision.
5. Threatening or intimidating any student for the purpose of, or with the intent of, obtaining money or anything of value from the student.
6. Knowingly possessing, handling, or transmitting a knife or any object that can reasonably be considered a weapon.
7. Knowingly possessing, using, transmitting, or being under the influence of any narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, alcoholic beverage, or intoxicant of any kind. Use of drugs authorized by a medical prescription form a physician is not a violation of this subdivision.
8. Engaging in the unlawful selling of a controlled substance or engaging in a criminal law violation that constitutes a danger to other students or constitutes an interference with school purposes or an educational function.

Exception to Rule 8: a student with a chronic disease or medical condition may possess and self-administer prescribed medication for the disease or condition if the student's parent has filed a written authorization with the building principal. The written authorization must be filed annually. The written authorization must be done by a physician and must include the following information:

1. That the student has an acute or chronic disease or medical condition for which the physician has prescribed medication.
2. The nature of the disease or medical condition requires emergency administration of the prescribed medication.
3. The student has been instructed in how to self-administer the prescribed medication.
4. The student is authorized to possess and self-administer the prescribed medication.

9. Failing in a substantial number of instances to comply with directions of teachers or other school personnel during any period of time when the student is properly under their supervision, where the failure constitutes an interference with school purposes or an educational function.
10. Engaging in any activity forbidden by the laws of Indiana that constitutes an interference with school purposes or an educational function.
11. Violating or repeatedly violating any rules that are reasonably necessary in carrying out school purposes or an educational function and are validly adopted in accordance with Indiana law, including, but not limited to:
    a. engaging in unacceptable sexual behavior on school property;
    b. disobedience of administrative authority;
    c. willful absence or tardiness of students;
    d. knowingly possessing, using, or transmitting any substance which is represented to be or looks like a narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, alcoholic beverage, stimulant, depressant, or intoxicant of any kind;
    e. Possessing, using, transmitting, or being under the influence of caffeine-based substances, substances containing phenylpropanolamine (PPA), or stimulants of any kind, be they available with or without a prescription.
    f. Engaging in speech or conduct, including clothing, jewelry or hairstyle, which is profane, indecent, lewd, vulgar, or offensive to school purposes.
12. Knowingly possessing or using on school grounds during school hours an electronic paging device or a handheld portable telephone in a situation not related to a school purpose or educational function.
13. Students who are habitual discipline offenders may face out of school suspension and/or expulsion.
14. POSSESSION OF A FIREARM
    a. No student shall possess, handle or transmit any firearm on school property.
    b. The following devises are considered to be firearm as defined in Section 921 or Title 18 of the United States Code:
        1. Any weapon which will or is designed to or may readily be converted to expel a projectile by the action of an explosive
        2. The frame or receiver or any weapon described above
        3. Any firearm muffler or firearm silencer
        4. Any destructive devise which is an explosive, incendiary, or poison gas bomb, grenade, rocket having a propellant charge or more than four ounces, missile having an explosive or incendiary charge of more than one-quarter ounce, mine, or any similar device
        5. Any weapon which will, or which may be readily converted to, expel a projectile by the action of any explosive or other propellant, and which has any barrel with a bore of more than one-half inch in diameter
        6. Any combination of parts either designed or intended for use in converting any devise into any destructive devise described in the two immediately preceding examples, and from which a destructive devise may be readily assembled

c. The penalty for possession of a firearm: Ten days suspension and expulsion from school for one calendar year. The superintendent may reduce the length of the expulsion if the circumstances warrant such reduction.
d. The superintendent shall notify the county prosecuting attorney's office which a student is expelled under this rule.

15. Engaging in any kind of aggressive behavior that does physical or psychological harm to another person or urging of other students to engage in such conduct. Prohibited conduct includes coercion, harassment, hazing, or other comparable conduct.

16. Engaging in violence and/or threat of violence against any student, staff member, and/or other persons. Prohibited violden or threatened conduct includes threatening, planning, and conspiring with others to engage in a violent activity.

17. Threatening (whether specific or general in nature) injury to persons or damage to property, regardless of whether there is a present ability to commit the act.

18. Failing to report the actions or plans of another person to a teacher or administrator where those actions or plans, if carried out, could result in harm to another person or persons or damage to property when the student has information about such actions or plans.

19. Possessing, using, or transmitting any substance which is represented to be or looks like a narcotic drug, hallucinogenic drug, amphetamine, barbiturate, marijuana, alcoholic beverage, stimulant, depressant or intoxicant of any kind.

20. Possessing, using, distributing, purchasing, or selling tobacco or nicotine-containing products of any kind or in any form. These products include e-cigarettes, vaping devices, any type of look-alike products or other related products or devices associated with tobacco or nicotine use or electronic nicotine delivery systems.

21. Offering to sell or agreeing to purchase a controlled substance or alcoholic beverage(s).

22. Engaging in academic dishonesty, including cheating, intentionally plagiarizing, wrongfully giving or receiving help during an academic examination, and wrongfully obtaining test copies or scores.

23.22. Taking, recording, displaying and/or distributing pictures (digital or otherwise), video or audio recordings without the consent of the student or staff member in a situation not related to a school purpose or educational function.

23. Possessing sexually related materials which include images displaying uncovered breasts, genitals, or buttocks.

24. “Sexting” or using a cell phone or other personal communication device to possess or send text or email messages containing images reasonably interpreted as indecent or sexual in nature. In addition to taking any disciplinary action, phones will be confiscated and any images suspected to violate criminal laws will be referred to law enforcement authorities.

25. Engaging in pranks or other similar activity that could result in harm to another person.

26. Using or possessing gunpowder, ammunition, or an inflammable substance.

27. Violating any board policy or administrative rules that are reasonably necessary in carrying out school purposes or an educational function, including, but not limited to:

a. engaging in sexual behavior on school property;

b. engaging in sexual harassment of a student or staff member;

c. disobedience of administrative authority;

d. willful absence or tardiness of students;

e. engaging in speech or conduct, including clothing, jewelry or hair style, that is profane, indecent, lewd, vulgar, or refers to drugs, tobacco, alcohol, sex, or illegal activity;

f. violation of the school corporation’s acceptable use of technology policy or rules;

g. violation of the school corporation’s administration of medication policy or rules;

h. possessing or using a laser pointer or similar device.

28. Possessing or using an electronic device (e.g. cellular phone, tablet computer, pager, digital camera, electronic equipment) in a manner which constitutes an interference with a school purpose or educational function, an invasion of privacy, or an act of academic dishonesty, or is profane, indecent, or obscene. In addition to being disciplined, students who use an electronic device in a manner which is inconsistent with this rule may have the device confiscated by school administration. Such devices will be returned to the parent.

29. Possessing or using on school grounds during school hours an electronic device, a cellular telephone, or any other telecommunication device, including a look-a-like device, in a situation not related to a school purpose or educational function or using such device to engage in an activity that violates school rules. This rule is not violated

when the student has been given clear permission from a school administrator or a designated staff member to possess or use one of the devices listed in this rule. In addition to being disciplined, students who use an electronic device in a manner which is inconsistent with this rule may have the device confiscated by school administration. Such devices will be returned to the parent.

Suspension Procedures

When a principal (or designee) determines that a student should be suspended, the following procedures will be followed:

1. A meeting will be held prior to the suspension of any student. At this meeting the student will be entitled to:
   a. A written or oral statement of the charges;
   b. If the student denies the charges, a summary of the evidence against the student will be presented; and,
   c. The student will be provided an opportunity to explain his or her conduct.
2. The meeting shall precede suspension of the student except where the nature of the misconduct requires immediate removal. In such situations, the meeting will follow the suspension as soon as reasonably possible following the date of the suspension.
3. Following the suspension, the parents or guardians of suspended students will be notified in writing. The notification will include the dates of the suspension; describe the student's misconduct, and the action taken by the principal.
4. During the suspension, the student is required to complete all school work assigned during the suspension. The principal or designee will ensure the student receives notice of all assignments due during the suspension and will provide teacher contact information to the student so the student may contact the teacher if the student has any questions about the assignments. For any assignments and/or school work completed by the student during the student's suspension period, credit will be given to the student to the same extent and in the same manner as students who are not suspended receive.

Expulsion Procedures

When a principal (or designee) recommends to the superintendent (or designee) that a student be expelled from school, the following procedures will be followed:

1. The superintendent (or designee) may conduct an expulsion meeting, or may appoint one of the following persons to conduct the expulsion meeting:
   a. Legal counsel
   b. A member of the administrative staff who did not expel the student and was not involved in the events giving rise to the expulsion.
2. An expulsion will not take place until the student and the student's parents are asked to appear at an expulsion meeting conducted by the superintendent or the person designated above. Failure by a student or a student's parent to appear at this meeting will be deemed a waiver of rights administratively to contest the expulsion or to appeal it to the school board.
3. The request to appear at the expulsion meeting will be in writing, delivered by certified mail or by personal delivery, and contain the reasons for the expulsion and the date, time, place, and purpose of the meeting.

4. At the expulsion meeting, the principal (or designee), will present evidence to support the charges against the student. The student or parent will have the opportunity to answer the charges against the student, and to present evidence to support the student's position.
5. If an expulsion meeting is held, the person conducting the expulsion meeting will make a written summary of the evidence heard at the meeting, take any action found to be appropriate, and give notice of the action.
   The student or parent has the right to appeal the decision of the person conducting the expulsion meeting to the school board within 10 days of the receipt of notice of the action taken. The student or parent's appeal to the school board must be in writing. If an appeal is properly made, the board must consider the appeal unless the board votes not to hear the appeal. If the board hears the appeal, it will consider the written summary of the expulsion meeting and the arguments of the school administration and the student and/or the student's parent(s). The board will then take any action deemed appropriate.
6. The expulsion examiner shall provide to the student and parent the school corporation list of alternative education programs located in the county or in an adjacent county and of virtual charter schools in which the student may enroll during the student's expulsion at the expulsion meeting. If no expulsion meeting is held or the student or parent do not attend the expulsion meeting, the expulsion examiner shall mail the list to the student and parent to the student's residence.

Bullying

1. Bullying committed by students toward other students is strictly prohibited. Engaging in bullying conduct described in this rule by use of data or computer software that is accessed through any computer, computer system, computer network, or cellular telephone or other wireless or cellular communication device, is also prohibited.

2. For purposes of this rule, bullying is defined as overt, unwanted, repeated acts or gestures, including verbal or written communications or images transmitted in any manner including electronically or digitally, physical acts committed, aggression, or any other similar behaviors that are committed by a student or group of students against another student with the intent to harass, ridicule, humiliate, intimidate, or harm the targeted student and create for the targeted student an objectively hostile school environment that:

- places the targeted student in reasonable fear of harm to the targeted student's person or property;

- has a substantially detrimental effect on the targeted student's physical or mental health;

- has the effect of substantially interfering with the targeted student's academic performance; or

- has the effect of substantially interfering with the targeted student's ability to participate in or benefit from the services, activities, and privileges provided by the school.

3. This rule may be applied regardless of the physical location of the bullying behavior when a student committing bullying behavior and the targeted student attend a school within the school corporation and disciplinary action is reasonably necessary to avoid substantial interference with school discipline or prevent an unreasonable threat to the rights of other students to a safe and peaceful learning environment.

4. Any student or parent who has knowledge of conduct in violation of this rule or any student who feels he/she has been bullied in violation of this rule should immediately report the conduct to the [school administrator] who has responsibility for all investigations of student misconduct including bullying. A student or parent may also report the conduct to a teacher or counselor who will be responsible for notifying the [school administrator]. This report may be made anonymously.

5. The principal or their designee shall immediately investigate all reports of bullying made pursuant to the provisions of this rule. Such investigation must include any action or appropriate responses that may be taken immediately to address the bullying conduct wherever it takes place. The parents of the bully and the targeted student(s) shall be notified on a regular, periodic basis of the progress and the findings of the investigation and of any remedial action that has been taken.

6. The principal or their designee will be responsible for working with the school counselors and other community resources to provide information and/or follow-up services to support the targeted student and to educate the student engaging in bullying behavior on the effects of bullying and the prevention of bullying. In addition, the school administrator and school counselors will be responsible for determining if the bullying behavior is a violation of law required to be reported to law enforcement under Indiana law based upon their reasonable belief. Such determination should be made as soon as possible and once this determination is made, the report should be made immediately to law enforcement.

7. False reporting of bullying conduct as defined in this rule by a student shall be considered a violation of this rule and will result in any appropriate disciplinary action or sanctions if the investigation of the report finds it to be false.

8. A violation of this rule prohibiting bullying may result in any appropriate disciplinary action or sanction, including suspension and/or expulsion.

9. Failure by a school employee who has a responsibility to report bullying or investigate bullying or any other duty under this rule to carry out such responsibility or duty will be subject to appropriate disciplinary action, up to and including dismissal from employment with the school corporation.

10. Counseling, corrective discipline, and/or referral to law enforcement will be used to change the behavior of the perpetrator. This includes appropriate intervention(s), restoration of a positive climate, and support for victims and others impacted by the bullying.

11. Educational outreach and training will be provided to school personnel, parents, and students concerning the identification, prevention, and intervention in bullying.

12. All schools in the corporation are encouraged to engage students, staff and parents in meaningful discussions about the negative aspects of bullying. The parent involvement may be through parent organizations already in place in each school.

13. The superintendent or designee will be responsible for developing detailed administrative procedures consistent with the Indiana Department of Education guidelines for the implementation of the provisions of this rule.

C. Possessing A Firearm or A Destructive Device

1. No student shall possess, handle, or transmit any firearm or a destructive device on school property.

2. The following devices are considered to be a firearm under this rule: any weapon that is capable of expelling, designed to expel, or may readily be converted to expel a projectile by means of an explosion.

3. For purposes of this rule, a destructive device is:

an explosive, incendiary, or overpressure device that is configured as a bomb, a grenade, a rocket with a propellant charge of more than four ounces, a missile having an explosive or incendiary charge of more than one-quarter

ounce, a mine, a Molotov cocktail, or a device that is substantially similar to an item described above,

a type of weapon that may be readily converted to expel a projectile by the action of an explosive or other propellant through a barrel that has a bore diameter of more than one-half inch, or

a combination of parts designed or intended for use in the conversion of a device into a destructive device.

a destructive device is NOT a device that although originally designed for use as a weapon, is redesigned for use as a signaling, pyrotechnic, line throwing, safety, or similar device.

4. The penalty for possession of a firearm or a destructive device: suspension up to 10 days and expulsion from school for at least one calendar year with the return of the student to be at the beginning of the first semester after the one year period. The superintendent may reduce the length of the expulsion if the circumstances warrant such reduction.

5. The superintendent shall immediately notify the appropriate law enforcement agency when a student engages in behavior described in this rule.

D. Possessing A Deadly Weapon

1. No student shall possess, handle, or transmit any deadly weapon on school property.

2. The following devices are considered to be deadly weapons for purposes of this rule:

. a weapon, taser or electronic stun weapon, equipment, chemical substance, or other material that in the manner it is used, or could ordinarily be used, or is intended to be used, is readily capable of causing serious bodily injury;

an animal readily capable of causing serious bodily injury and used in the commission or attempted commission of a crime; or

a biological disease, virus, or organism that is capable of causing serious bodily injury.

3. The penalty for possession of a deadly weapon: up to 10 days suspension and expulsion from school for a period of up to one calendar year.

4. The superintendent (shall immediately)(may) notify the appropriate law enforcement agency when a student engages in behavior described in this rule.

E. Unlawful Activity

A student may be suspended or expelled for engaging in unlawful activity on or off school grounds if 1) the unlawful activity may reasonably be considered to be an interference with school purposes or an educational function, or 2) the student's removal is necessary to restore order or protect persons on school property. This includes any unlawful activity meeting the above criteria that takes place during weekends, holidays, other school breaks, and the summer period when a student may not be attending classes or other school functions.

LEGAL REFERENCES:
I.C. 20-33-8
I.C. 35-31.5-2-86
I.C. 35-47.5-2-4
I.C. 35-47-1-5
IC 20-33-8-18
IC 20-33-8-19

4301: DISCIPLINARY DUE PROCESS FOR DISABLED STUDENTS

Last Revised: November 2, 2023
Prior Revision Dates:

Students with disabilities are subject to the discipline rules adopted by the board of school trustees and, therefore, may be suspended or expelled for any violation(s) of the rules for which non-disabled students could also be suspended or expelled.
These procedures are limited to the discipline of students with disabilities as identified under 511 IAC 7-40. The procedures are not intended to be used as a substitute for the discipline rules set forth in 511 IAC 7-44.
In accordance with Indiana law and State Board of Education rules, administrators may take the following discipline actions:

Suspension
A suspension is defined as a unilateral, temporary removal of a student from the student's current placement. A short-term removal of a student pursuant to the student's individualized education program is not a suspension. In addition, an in-school suspension is not considered a suspension as long as the student is provided both general education and special education services consistent with the student's individualized education program and the student is allowed to participate with non-disabled students as the student would have in the student's current placement.
A student with a disability may be suspended for up to ten (10) consecutive school days for a violation of school rules. Additional suspensions of up to ten (10) consecutive school days for each separate act of misconduct are permissible in the same school year as long as the suspensions do not constitute a pattern of removals from the student's current placement. Before a student with a disability can be suspended, the student must be afforded the same due process procedures provided to a non-disabled student.
Educational services do not have to be provided to a student with a disability during any of the first ten (10) cumulative days of suspension if educational services are not provided to non-disabled students who have been similarly suspended. However, beginning on the 11th cumulative day of suspension in a school year, a student with a disability shall be provided educational services. The principal and the student's special education teacher shall determine the services provided to the student.

Whenever a student with a disability has been suspended for more than ten (10) cumulative days in a school year, a case conference committee meeting must be convened for the purpose of reviewing the student's behavior and developing a behavioral intervention plan. If a behavioral intervention plan already exists, the plan and its implementation must be reviewed.

Expulsion

Expulsion is defined as the temporary removal of a student from the student's current placement for more than ten (10) consecutive school days. An expulsion also includes a series of suspensions totaling more than ten (10) cumulative days that constitute a pattern of removal from the student's current placement.

Before a student with a disability can be expelled from school, the case conference committee must meet to review the student's behavior and develop a behavioral intervention plan or review an existing plan and its implementation. The case conference committee must also review the relationship between the student's disability and the misconduct. If the case conference committee determines the student's behavior was a manifestation of the student's disability, the student may not be expelled. If, however, the committee determines the behavior of the student was not a manifestation of the student's disability, the superintendent may appoint an expulsion examiner who will conduct the same expulsion proceedings afforded to non-disabled students. The parent of the student with a disability may also request a due process hearing, mediation, or both in accordance with Article 7 to challenge the manifestation determination of the case conference committee.

While expulsion (or a challenge to the manifestation determination) proceedings are pending, a student with a disability must remain in the student's current placement unless the parent of the student agrees to the removal of the student from the current placement.

If a student with a disability is expelled, the student must be provided educational services during the period of expulsion. The case conference committee determines the extent of the educational services provided during the expulsion period and where the services will be provided.

Expulsion for Weapons or Illegal Drugs

If a student with a disability either carries a weapon (including a firearm) to school or a school function or knowingly possesses or uses illegal drugs or sells or solicits the sale of a controlled substance while at school or a school function, the student may be placed in an interim alternative educational setting for no more than forty-five (45) calendar days. A case conference committee must determine the appropriate alternative educational setting for the student and the educational services the student will receive in the alternative educational setting. A parent of a student with a disability may request a due process hearing, mediation, or both under Article 7 to challenge the interim alternative educational setting, but pending the determination of the hearing officer, the student must remain in the alternative setting. A student may not be placed in an alternative setting for longer than forty-five (45) instructional days unless the parents and the school agree to a shorter or longer period of the alternative placement.

The case conference committee must review the student's behavior and develop a behavioral intervention plan or review an existing plan and its implementation. The committee must also review the relationship between the student's disability and the misconduct. If the case conference committee determines the student's behavior was a manifestation of the student's disability, the student may not be expelled. If, however, the committee determines the behavior of the student was not a manifestation of the student's disability, the superintendent may appoint an expulsion examiner who will conduct the same expulsion proceedings afforded to

non-disabled students. The parent of the student with a disability may also request a due process hearing, mediation, or both in accordance with Article 7 to challenge the manifestation determination of the case conference committee.
If a student with a disability is expelled, the student must be provided educational services during the period of expulsion. The case conference committee determines the extent of the educational services provided during the expulsion period and where the services will be provided.

Removal From Placement Because of Likely Injury

If a student with a disability has been suspended or expelled and the school believes returning the student to the educational placement the student was in prior to the suspension or expulsion is substantially likely to result in injury to the student or others, the school may request a hearing under Article 7 to determine an appropriate placement for the student. An independent hearing officer may order a change in the student's current placement to an interim alternative educational setting for up to forty-five (45) calendar days.
Injunctive Relief

School Officials may seek injunctive relief from a court to remove a student with a disability from school or to change a student's placement if the school believes that maintaining the student in the student's current placement is substantially likely to result in injury to the student or others.
{Recodified Section 501}

Legal 511 IAC 7-44-1 et seq.
IC 20-33-8

4204: STUDENT MENTAL AND BEHAVIORAL SERVICES RECORDS

Last Revised: September 7, 2023
Prior Revision Dates:

Student Mental and Behavioral Services Records

Student Mental and Behavioral Services (SMBS) records are reports, notes, diagnoses, and appointments relating to a student who was referred to by school officials to receive mental or behavioral services as provided by state law or under a school corporation's memorandum of understanding with a mental or behavioral services provider and is receiving or has received mental or behavioral services. SMBS records are the property of and maintained by the school corporation and are confidential medical records.

CUSTODY AND PROTECTION OF SMBS RECORDS

Place SMBS Records are kept

SMBS records are to be maintained in separate student files only and shall not be filed or maintained in the student's permanent, cumulative educational files.

Control of SMBS Records

SMBS records shall be maintained and secured in the school official's office responsible for the referral process and parent conference under the school corporation's procedures for referral of students to mental or behavioral services due to demonstrated repeated patterns of aberrant or abnormal behavior.

Access to Education Records

SMBS records of a student shall not be shared with other school officials who are not maintaining SMBS records of the student.

{Recodified Section 546}

Legal IC 20-34-3-21

4304: BULLYING RULE

Last Revised: November 2, 2023
Prior Revision Dates:

The West Central School Corporation is committed to providing an educational setting that is safe, secure, and free from harassment and bullying for all of its students and school employees. The WCSC will not tolerate unlawful bullying and harassment of any type.

WCSC in consultation with school district students, parents, teachers, administrators, school staff, school volunteers, community representatives, and local law enforcement agencies have developed a district policy as part of a comprehensive plan intended to prevent bullying and harassment.

Bullying committed by students toward other students is strictly prohibited. Engaging in bullying conduct described in this rule by use of data or computer software that is accessed through any computer, computer system, computer network, or cellular telephone or other wireless or cellular communication device, is also prohibited.

For purposes of this rule, bullying is defined as overt, unwanted, repeated acts or gestures, including verbal or written communications or images transmitted in any manner including electronically or digitally, physical acts committed, aggression, or any other similar behaviors that are committed by a student or group of students against another student with the intent to harass, ridicule, humiliate, intimidate, or harm the targeted student and create for the targeted student an objectively hostile school environment that:

- places the targeted student in reasonable fear of harm to the targeted student's person or property;

- has a substantially detrimental effect on the targeted student's physical or mental health;

- has the effect of substantially interfering with the targeted student's academic performance; or

- has the effect of substantially interfering with the targeted student's ability to participate in or benefit from the services, activities, and privileges provided by the school.

This rule may be applied regardless of the physical location of the bullying behavior when a student committing bullying behavior and the targeted student attend a school within the school corporation and disciplinary action is reasonably necessary to avoid

substantial interference with school discipline or prevent an unreasonable threat to the rights of other students to a safe and peaceful learning environment.

Any student or parent who has knowledge of conduct in violation of this rule or any student who feels he/she has been bullied in violation of this rule should immediately report the conduct to the principal or designee who has responsibility for all investigations of student misconduct including bullying. A student or parent may also report the conduct to a teacher or counselor who will be responsible for notifying the principal or designee. This report may be made anonymously.

The principal or designee shall investigate immediately all reports of bullying made pursuant to the provisions of this rule. Such investigation must include any action or appropriate responses that may be taken immediately to address the bullying conduct wherever it takes place. The parents of the alleged perpetrator and the targeted student(s) shall be notified of the reported bullying incidents within five business days of the report of such incidents and on a regular, periodic basis of the progress and the findings of the investigation and of any remedial action that has been taken. During the investigation, the school's priority will be the safety of the victim. The investigation may include a determination of the severity of the bullying incident(s) and whether the transfer of the alleged perpetrator or victim to another school within the school corporation is warranted.

The principal or designee will be responsible for working with the school counselors and other community resources to provide information and/or follow-up services to support the targeted student and to educate the student engaging in bullying behavior on the effects of bullying and the prevention of bullying. In addition, the school administrator and school counselors will be responsible for determining if the bullying behavior is a violation of law required to be reported to law enforcement under Indiana law based upon their reasonable belief. Such determination should be made as soon as possible and once this determination is made, the report should be made immediately to law enforcement.

False reporting of bullying conduct as defined in this rule by a student shall be considered a violation of this rule and will result in any appropriate disciplinary action or sanctions if the investigation of the report finds it to be false.

A violation of this rule prohibiting bullying may result in any appropriate disciplinary action or sanction, including suspension and/or expulsion.

Failure by a school employee who has a responsibility to report bullying or investigate bullying or any other duty under this rule to carry out such responsibility or duty will be subject to appropriate disciplinary action, up to and including dismissal from employment with the school corporation.

Counseling, corrective discipline, and/or referral to law enforcement will be used to change the behavior of the perpetrator. This includes appropriate intervention(s),

restoration of a positive climate, and support for victims and others impacted by the bullying.

Educational outreach and training will be provided to school personnel, parents, and students concerning the identification, prevention, and intervention in bullying. Parents will be allowed to review any or all materials used in the school corporation's bullying and/or suicide prevention programs.

All schools in the corporation are encouraged to engage students, staff and parents in meaningful discussions about the negative aspects of bullying. The parent involvement may be through parent organizations already in place in each school.

The superintendent or designee will be responsible for developing detailed administrative procedures consistent with the Indiana Department of Education guidelines for the implementation of the provisions of this rule.

Bullying fosters a climate of fear and disrespect that can seriously impair the physical and psychological health of its victims and create conditions that negatively affect learning. Bullying includes unwanted, aggressive behavior that involves a real or perceived power imbalance. The behavior is repeated, or has the potential to be repeated, over time. The imbalance of power involves the use of physical strength, or popularity to access embarrassing information to control or harm others. Bullying can occur anywhere (in-school or outside of school) and at any time - both during and after school hours. Bullying can include physical bullying, verbal bullying, social/relational bullying, and electronic/written communication.

- Physical bullying involves hurting a person's body or possessions. It includes hitting/kicking/punching, spitting, tripping or pushing, taking or breaking someone's things, and making mean or rude hand gestures.
- Verbal bullying involves saying mean things. It can include teasing, name-calling, inappropriate sexual comments, taunting, or threatening to cause harm.
- Social/relational bullying involves hurting someone's reputation or relationships. Social bullying involves telling other children not to be friends with someone, leaving someone out on purpose, spreading rumors about someone, or embarrassing someone in public.
- Electronic/written communication involves cyber-bullying, collective or group note writing, any bullying undertaken through the use of electronic devices (computer, cell phones, etc).

Considerations in determining if the behavior meets the definition of bullying:
- The history between the individuals. Have there been past conflicts? Have these individuals had a dating relationship? (This may not be considered bullying).
- Power differential. Is there an imbalance of power? (Power imbalance is not limited to physical strength.)
- Repetition. Has this or a similar incident happened before? Is the individual worried that it may happen again?

- Are any of the individuals involved with a gang? (This may result in interventions different from bullying.)

Consequences for Bullying
The consequences of bullying will apply when a student is on school grounds immediately before or during school hours, immediately after school hours, or at any other time when a school group is using the school. It also applies when our students are off school grounds at another school activity, function or event; traveling to or from school; attending a school-related activity, function, or event; or using property or equipment that has been provided by the school.

Level I: Conference/Parent Contact
- School personnel and parent
- Conference with student

Level 2: Intervention Options
- Student is provided materials/counseling intended to increase empathy, communication skills, social skills, and understand the impact of bullying.
- Referral: Administration, school counselor, social worker, or support staff.
- Time-out: The removal of a student from classes for one-half day or less.
- School Behavior Agreement with student/parent: A written statement listing steps to be taken to improve behavior or attendance. The statement also describes the support to be provided by school staff and/or parent as well as the date when the contract will be reviewed.
- Intervention Assistance Team: A meeting of school personnel, parents, and other individuals to consider the behavior and/or progress of the student and make recommendations.
- Restricted activity: The denial of participation in school activities.
- Other options as discussed among parent, teachers, and administrators.

Level 3: In-School Alternatives
- Placement of student in an in-school suspension program for one-half day or more with a parent contacted.
- Placement of a student in-school suspension program for one or more days with a parent contacted.
- Placement of a student in a specially designed in-school class or program.

- Placement as outlined above and in combination with levels 1 and 2 consequences. Additional empathy and social skill training
- Suspension from class by the teacher - A teacher may exclude a student from participation in any educational function under that teacher's charge and supervision for a period not to exceed one school day when a student interferes with the educational function of which the teacher is then in charge.

Level 4: Out-of-School Suspension (1-5 days)

- Suspension with parent conference or the parent may attend school with the student for one school day.
- Suspension with parent conference and contractual agreement.
- May be in combination with Levels I, 2, and 3 consequences.

Level 5: Alternative Consequences/Programs
- Modified schedule.
- Alternative to Expulsion (ATE) with referral to social worker. ATE is a probationary period of time (to be determined on an individual basis by the administrator) in which the student must exhibit behavior free from trouble. Failure to do so will result in more severe consequences.
- School probation with referral to a community agency such as juvenile court
- School probation may be in combination with Levels 2, 3, and 4 consequences.
- Conditional school (able to attend school based upon set conditions).

A reporting system has been created to appropriately identify, report, investigate, and respond to situations of bullying and harassment.

LEGAL REFERENCE: I.C. 20-33-8-0.2
I.C. 20-33-8-13.5

4305: CRIMINAL GANG ACTIVITY

Last Revised: November 2, 2023
Prior Revision Dates:June 2, 2016

The Board of School Trustees of the West Central School Corporation prohibits gang activity and similar destructive or illegal group behavior on school property, on school buses, and/or at school-sponsored functions and prohibits reprisal or retaliation against individuals who report gang activity and similar destructive or illegal group behavior or who are victims, witnesses, bystanders, or other people with reliable information about an act of gang activity and similar destruction or illegal group behavior.

The following definitions apply to this policy:

Criminal Gang means a group with at least three (3) members that specifically:

1. Either:
   (A) Promotes, sponsors, or assists in; or
   (B) Participates in; or
2. Requires as a condition of membership or continued membership; the commission of a felony or an act that would be a felony if committed by an adult or the offense of battery.

Organization or Gang Activity means a student who knowingly or intentionally actively participates in a criminal gang, or a student who knowingly or intentionally solicits, recruits, entices, or intimidates another individual to join a criminal organization.

Per state law, a school employee shall report any incidence of suspected criminal gang activity, criminal gang intimidation, or criminal gang recruitment to the principal and the school safety specialist. The principal and the school safety specialist may take appropriate intervention services. Appropriate consequences and remedial actions are those that take into consideration the severity of the offenses and consider both the development ages of the student offenders and the students' histories of inappropriate behaviors per the code of conduct.

Any corporation and school employee who promptly reports an incident of suspected gang activity and who makes this report in compliance with the school corporation procedures is immune from a cause of action for damage arising from any failure to remedy the reported incident.

The principal or designee shall conduct a thorough and complete investigation for each report of suspected gang activity. The investigation shall be initiated by the principal or the principal's designee within one school day of the report of the incident. The principal may appoint additional personnel and request the assistance of law enforcement to assist in the investigation. The investigation shall be completed and written findings submitted to the principal as soon as possible, but not later than five school days from the date of the report of the alleged incident of criminal gang activity.

The principal shall take any appropriate disciplinary actions based upon the findings of the investigation, in accordance with the code of conduct. The superintendent of the school corporation is authorized to define the range of ways in which school staff and the principal or the principal's designee shall respond once an incident or criminal gang activity is confirmed, according to the code of conduct. Consequences for a student who engages in gang activity may range from positive behavioral interventions up to and including suspension or expulsion.

The principal shall provide the parents of the students who were investigated with information about the investigation. The information to be provided to parents includes the nature of the investigation, whether the corporation found evidence of criminal gang activity, and whether consequences were imposed or services provided to address the activity. This information is to be provided in an expedited manner.

As appropriate to the investigation findings, the principal also shall provide intervention and/or relevant support services. The principal shall inform the parents of all students involved in alleged incidents and discuss the availability of counseling and other intervention services.

Support services may include one or more of the following:

a. Gang awareness education that shows promise of effectiveness based on research. The gang awareness education information should be revised and updated regularly to reflect current trends in gang and gang-like activity.
b. Culturally and/or linguistically appropriate services/supports for parents and families.
c. Counseling coupled with mentoring for students and their families.
d. Community and faith-based organizations and civic groups.
e. Viable, sustainable after-school programs developed in collaboration with other stakeholders.
f. Job training and employment opportunities as both a deterrent to gang involvement and an incentive to leave gang involvement.
g. School sanctioned/facilitated extra-curricular activities.

The principal shall submit the report to the superintendent of the school corporation within ten (10) school days of the completion of the investigation. The superintendent or his/her designee shall report the results of each investigation to the school board on a quarterly basis during regularly scheduled board meetings.

Each school within the school corporation shall record the number of investigations disposed of internally and the number of cases referred to local law enforcement, disaggregated by race, ethnicity, age, and gender. Each school shall report this information to the school corporation superintendent who shall submit a written report to the Indiana Department of Education by June 2 of each year.

This policy shall be annually disseminated to all parents who have children enrolled in a school within the school corporation. Notice of this policy must be published in student handbooks and

all other publications of the school corporation that set forth the rules and procedures for schools within the school corporation.

School officials are encouraged to collaborate with stakeholders to provide gang prevention and intervention services and programs, including but not limited to:

1. Provide training for staff and teachers on gang prevention and intervention resources within a jurisdiction on a periodic basis. The gang awareness information should be revised and updated regularly to reflect current trends in gang activity.
2. Create formalized collaboration plans between local school administration and community based prevention and intervention providers (possibly using the existing County Safe School Commissions as points of contact.) The formalized collaborations should make effective, coordinated, and maximized use of federal funding a priority.
3. Coordinate resources and funding opportunities to support gang prevention and intervention activities.
4. Consider integrating the Gang Resistance Education and Training (G.R.E.A.T.) Program into curricula.

Legal Reference: IC 20-26-18
IC 20-33-9-10.5
IC 35-45-9-1

4340: ACCEPTABLE USE OF INTERNET/USE OF FILTERING SOFTWARE (STUDENT AND STAFF USE)

Last Revised: November 2, 2023
Prior Revision Dates:

The Board of School Trustees of the West Central School Corporation believes that providing Internet access to the faculty and students promotes educational excellence and enhances sharing, innovation, and communication. The use of technology including Internet access in the school corporation must be in support of education and research, and consistent with the purposes and the mission statement of the school corporation.

All users have the responsibility of complying to a strict, ethical, and legal standard of conduct. Instances of abuse will be subject to administrative review. Abuse or violation of this policy by a student or staff member may result in suspension of Internet access privileges. Further disciplinary action for student violations may include but not necessarily be limited to removal from a class or an activity, after-school detention, in-school or out-of-school suspension, or expulsion. Any employee found to violate this policy will be subject to disciplinary action up to and including termination of employment.

The educational value of student Internet access is the joint responsibility of students, parents, and employees of the school corporation. Students will be supervised by a faculty or staff member and must have faculty or staff permission to use a school account or resource to access the Internet. Parents must sign the school corporation Acceptable Use Policy (AUP) Agreement to indicate parental permission for student use of the Internet at school. The signed AUP agreement must be on file with the school corporation before the student may use the Internet at school or with school corporation-owned technology devices.

Operation of the Corporation's Network relies upon users adhering to the following guidelines. The guidelines outlined below are posted on the WCSC website and provided so that users are aware of their responsibilities. Network is defined as the WCSC internal data network that includes the Internet and all resources derived from either internal or external connection.

A. Users are responsible for their behavior and communication on the Network.
B. Users may only access the Network by using their assigned network user account. Use of another person's account/address/password is prohibited. Users may not allow others to use their accounts.
C. Users may not intentionally seek information on, obtain copies of, or modify files, data, or passwords belonging to other users, or misrepresent other users on the network.
D. Users may not use the Network to engage in "hacking" or other unlawful activities. Harassment or "bullying" is strictly prohibited.
E. Transmission of any material in violation of any State or Federal law or regulation, or Board policy is prohibited.

F. Any use of the Network for commercial purposes, advertising, or political lobbying is prohibited.

G. Users may have the opportunity to publish documents on the Network. Published works will not contain user information or location and will conform to Board policies and guidelines.

H. Users are expected to abide by the following generally-accepted rules of network etiquette:

1. Be polite, courteous, and respectful in your messages to others. Use language appropriate to school situations in any communications made through the Corporation's computers/network. Do not use obscene, profane, vulgar, sexually explicit, defamatory, or abusive language in your messages.
2. Never reveal names, addresses, phone numbers, or passwords of yourself or other users, family members, teachers, administrators, or other staff members while communicating on the Network.
3. Do not transmit pictures or other information that could be used to establish your identity without prior approval of a teacher.
4. Never agree to get together with someone you "meet" on-line without prior parent approval.
5. Never respond to unsolicited on-line contacts or advertisements.

I. Use of the Network to access, process, distribute, display, or print child pornography and other material that is obscene, objectionable, inappropriate, or harmful to minors is prohibited. As such, the following material is prohibited: material that appeals to a prurient interest in nudity, sex, and excretion; material that depicts, describes, or represents in a patently offensive way with respect to what is suitable for minors an actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals, and material that lacks serious literacy, artistic, political, or scientific value as to minors. Offensive messages and pictures, inappropriate text files, or files dangerous to the integrity of the Corporation's devices and network are also prohibited.

J. Network filtering and monitoring systems have been implemented and shall be maintained in place on all corporation workstations connected to the Network.

K. Intentional use of the Corporation's devices and network to develop programs that harass or bully other users or infiltrate a computer or computer system and/or damage the software components of a computer or computing system are prohibited. Users may not use the Corporation's device and network in such a way that would disrupt their use by others.

L. All communications and information accessible via the Network should be assumed to be private property (i.e., copyrighted and/or trademarked). All copyright issues regarding software, information, and attributions of authorship must be respected.

M. Users are prohibited from accessing or participating in external online "chat rooms" or other forms of direct electronic communication without prior approval from a teacher, administrator, or IT personnel. All such authorized communications must comply with this AUP and users should adhere to all school and corporation policies and guidelines when participating in direct electronic communication with other students and school staff.

N. Privacy in communication over the Internet and the network is not guaranteed. To ensure compliance with this AUP, the Corporation reserves the right to monitor, review, and inspect any directories, files, and/or messages residing on or sent/received using the Corporation's devices

and network. Messages relating to or in support of illegal activities will be reported to the proper authorities.

O. Use of the Internet and any information procured from the Internet is at the user's own risk. The Corporation is not responsible for any damage a user suffers, including loss of data resulting from delays, non-deliveries, mis-deliveries, or service interruptions. The Corporation is not responsible for the accuracy or quality of information obtained through its services. Information (including text, graphics, audio, video, etc.) from Internet sources, must be cited the same as references in printed material.

P. The Corporation is not responsible for unauthorized financial obligations resulting from WCSC provided Network access.

Q. Proprietary rights in the design of web sites and any applications hosted on the Corporation's servers or developed on Corporation's time or with Corporation's resources, remain at all times with the corporation.

R. This policy and all of its provisions are subordinate to local, state, and federal statutes.

S. Users shall not deliberately or willingly cause damage to computer equipment or to software or help others to do the same.

T. Users shall not cause or attempt to harm, modify, or destroy another user's data, information, or materials.

U. Users shall not share, exchange, or use other user's account log-in, password, or other access codes.

V. Users shall not upload or create a computer virus.

W. Users shall not access or view other user's files without the owner's clearly stated permission.

X. Users shall not respond to unsolicited online contact.

Y. Users shall not engage in harassment, discriminatory remarks, and other antisocial behaviors.

Z. Users shall not subscribe to listservs.

AA. Users shall not transmit obscene, abusive, sexually explicit, or other inappropriate language.

AB. Users shall not use the Internet to access, upload, download, distribute, or process pornographic, obscene, sexually explicit material, or any materials that may be harmful to minors.

AC. Users shall not share personal information such as addresses, phone numbers, credit card numbers, etc. on Internet websites that are unrelated to school-related activities.

AD. Users shall not reveal personal addresses or phone numbers of other students, friends, parents, school staff members, etc. on Internet websites.

AE. Users shall not make purchases through the Internet.

AF. Users shall not violate any local, state, or federal law including copyright laws.

<u>Filtering:</u>

Student Internet activities will be monitored by the school corporation to ensure students are not accessing inappropriate sites.

Each school corporation-owned computer and other technology-related device with Internet access shall have a filtering device or software that blocks access to obscene, pornographic, sexually explicit, and other inappropriate materials for students, or materials otherwise harmful to minors.

Staff members shall not allow students to use any computer or device with Internet capability that does not have Internet filtering software or hardware installed. This includes any computer, or other technology-related devices in the corporation's libraries, media centers, classrooms, laboratories, or offices where students are allowed to use a computer, or any other such device, with Internet access.

LEGAL RESOURCES: IC 20-26-5-40.5
IC 35-49-2-2

**Contract, Violation Chart, and School-Issued Device Fee Schedule for the Device, Network, and Internet Acceptable Use and Safety Policy are located in the Student Handbooks.

4400: LOCKER SEARCHES

Last Revised: November 2, 2023
Prior Revision Dates:

All lockers made available for student use on the school premises, including lockers located in the hallways, physical education and athletic dressing rooms, industrial education classrooms and art classrooms, are the property of the school corporation. These lockers are made available for student use in storing school supplies and personal items necessary for use at school but the lockers are not to be used to store items that cause, or can reasonably be foreseen to cause, an interference with school purposes or an educational function, or that are forbidden by state law or school rules. A student should not expect to have privacy in a locker or its contents.

The student's use of the locker does not diminish the school corporation's ownership or control of the locker. The school corporation retains the right to inspect the locker and its contents to ensure that the locker is being used in accordance with its intended purpose, and to eliminate fire and other hazards, maintain sanitary conditions, attempt to locate lost or stolen material and to prevent use of the locker to store prohibited or dangerous materials such as weapons, illegal drugs, paraphernalia, or alcohol.

Legal Reference: I.C. 20-33-8-32

4430: INTERVIEWS OF STUDENTS BY CHILD PROTECTIVE SERVICES

Last Revised: April 4, 2024
Prior Revision Dates:

If the Department of Child Protective Services (CPS) requests to interview a student alone at school, school administrators must allow the investigation without contacting the parents. Before the interview takes place, the CPS employee making the request upon arriving at the school is required to provide to school administrators the following information:

1. their credentials as a CPS case worker, or other proof of employment with CPS; and

2. a written statement CPS has parental consent, a court order, or exigent circumstances exist as defined by state law to interview the student. This written statement may be transmitted to the school electronically.

The written statement and any information related to the interview shall be confidential. The written statement shall not be kept in the student's file but maintained separately in order to keep the confidentiality of the student and the student's family.

When possible, prior to visiting the school, CPS employees should notify either the school administrator or designee of the date and time of the intended visit.

Parents of the students to be interviewed shall not be notified by the school.

Upon entering the school building, the C.P.S. employee should immediately contact either the school administrator, or designee.

If the CPS employee decides the protection of the student requires the immediate taking of the student into custody, this decision and the reasons for this decision shall be promptly communicated to the school representative.

If a parent inquires of the school demanding an explanation of the action taken by the CPS employee, the parent shall be referred directly to CPS. No other information shall be given to the parent by the school.

Legal Reference: IC 31-33-8-7(f)

IC 31-9-2-44.1

4520: STUDENT PUBLICATIONS

Last Revised: January 2, 2025
Prior Revision Dates:

The Board of Education of the West Central School Corporation authorizes the sponsorship of student publications as a means by which students may learn, under adult supervision and directions, the rights and responsibilities of public expression in a free society.

School sponsored publications exist to provide students with the opportunity to gather and report facts under teacher supervision and prepare for careers in which these skills are utilized. School sponsored publications also provide an opportunity for instruction and communication of the values incorporated into the curriculum of the West Central Schools.

All school-sponsored publications shall be administered as nonpublic forums. Administrators and faculty are authorized to exercise broad editorial discretion, which is based upon reasonable educational concerns when evaluating material submitted for inclusion in school-sponsored publications.

For purposes of this policy, the term “school sponsored publication” includes school sponsored newspapers, yearbooks, audio and video materials, pamphlets, and any other like materials produced or distributed by a West Central student using school facilities. The term also includes paperless publications such as information included on an Internet site maintained by the West Central Schools.

The superintendent shall develop ADMINISTRATIVE GUIDELINES for the implementation of this policy.

4550: EXTRA-CURRICULAR CODE OF CONDUCT

Last Revised:
Prior Revision Dates: January 2, 2025

CODE OF CONDUCT FOR EXTRACURRICULAR ACTIVITIES

I. PURPOSE:

This Code of Conduct applies to all school-sponsored activities that are neither part of an academic class nor otherwise carry credit or a grade. Sponsors shall create a roster of students who are members or participants in an extracurricular activity and maintain attendance records.

The goal of the extracurricular program is to provide opportunities for students to pursue interests and develop life skills beyond the classroom. An additional goal of the athletic program is to develop the physical skills of student-athletes, which will allow them to compete to the best of their ability within the School Board policies and the by-laws of any association of which the school is a member.

Members must conduct themselves at all times, including after school and on days school is not in session, as good citizens and exemplars of their school - they must behave in ways that are consistent with good sportsmanship, leadership, and appropriate moral conduct. They are expected to demonstrate good citizenship and exemplary conduct in the classroom, in the community, and during all facets of the activity.

The Code of Conduct below describes the expectations and goals of the extracurricular and athletic programs. This Code does not contain a complete list of inappropriate behaviors for students in extracurricular activities and athletics. This Code of Conduct will be enforced 365 days a year, 24 hours a day. A student may be excluded from activities or competition while the school is investigating that student's conduct.

Students and their parents/guardians are encouraged to seek assistance from the student assistance program regarding alcohol or other drug problems. Family-referrals or self-referrals will be taken into consideration in determining consequences for Code of Conduct violations.

II. REGULATION:

Code of Conduct

A student participating in an activity or athletic program will be subject to disciplinary action if he or she violates this Code of Conduct for Extracurricular Activities. Violations will be treated cumulatively with disciplinary penalties increasing with subsequent violations.

The student shall not:

1. Violate the Corporation's policies or procedures on student discipline;
2. Use a beverage containing alcohol (except for religious purposes);
3. Use tobacco or related products, such as vapors, in any form;
4. Use, possess, buy, sell, barter, or distribute any illegal substance or paraphernalia;
5. Use, possess, buy, sell, barter, or distribute any object that is or could be considered a weapon or any item that is a "look-alike" weapon. This prohibition does not prohibit legal use of weapons in cooking and sports, such as archery, martial arts practice, target shooting, hunting, and skeet;
6. Attend a party or other gathering and/or ride in a vehicle where alcoholic beverages and/or controlled substances are being consumed by minors;
7. Act in an unsportsmanlike manner;
8. Vandalize or steal;
9. Haze other students;
10. Violate the written rules for the activity or sport;
11. Behave in a manner that is detrimental to the good of the group or school;
12. Be insubordinate or disrespectful toward the activity's sponsors or team's coaching staff;
13. Falsify any information contained on any permit or permission form required by the activity or sport.

Procedures

Students who are accused of violating the Code of Conduct for Extracurricular Activities are entitled to the following due process:

1. The student will be of the disciplinary infraction with which he or she is being charged.
2. The student shall be entitled to a hearing before an appropriate administrator.
3. The student will be able to respond to any charges leveled against him or her.
4. The student may provide any additional information he or she wishes for the administrator to consider.
5. The administrator, with the help of other staff members if needed, may interview material witnesses or others with evidence concerning the case.
6. If the administrator finds, after reviewing the evidence, that the violation occurred, he or she will impose sanctions on the student, as follows:
a. Sanctions for violations other than drug and alcohol will be based on the nature of the offense and the number of offenses, and may include suspension from all activities or sports:

- A specified period of time or percentage of events, competitions, or practices
- The remainder of the season or for the next season
- The remainder of the student's high school career

b. Sanctions for alcohol and other drug violations will be based on the following:
- A specified period of time or percentage of events, competitions, or practices
- The remainder of the season or for the next season
- The remainder of the student's high school career

7. The administrator will make a written report of his or her decision and rationale. The student may appeal the decision to the Athletic Council and Building Principal. All students remain subject to the School Board's student discipline policy and/or the school's student handbook and the disciplinary measures listed in them.

CODE OF CONDUCT FOR EXTRA-CURRICULAR ACTIVITIES

Students participating in school extracurricular programs are expected to be positive role models. Beyond the activity itself, the various extracurricular programs in the Corporation are intended to promote growth, development, citizenship and social skills.

Extracurricular activities shall include the following:

1. School-sponsored activities requiring supervision of students beyond the regular school day
2. School-sponsored activities occurring on school time but away from the school premises
3. Intramural activities of the school corporation except its athletic program

All policies on student conduct and discipline shall apply to extracurricular activities.

A student's eligibility for participation in various extracurricular school activities may be affected by the student's conduct. Students who violate school behavior expectations are subject to various disciplinary measures by their coach, sponsor, the athletic director, and the principal. The athletic director and/or the principal make the final determination whether a student is dismissed from a team for inappropriate conduct.

The following may affect the eligibility of extracurricular participants:

1. A student referral, depending on the nature of the infraction, may result in suspension from extracurricular activities. The coach/activity sponsor, in conjunction with the athletic director, will determine the appropriate action when notified of the referral.

2. An established pattern of misconduct, whether or not suspensions were involved, may subject the student to dismissal from extracurricular activities by the athletic director, activities director or principal.

3. During an in-school suspension, the student may practice at the discretion of the athletic director, activities director or principal, but the student will not compete during the term of the suspension.

During an out-of-school suspension period, the student will not be allowed to participate in any Corporation functions or be on any Corporation property.

A student who is out-of-school suspended for the second time may be dismissed from the team/club by the athletic director, activities director or principal.

After school student conduct that reflects negatively on the school may have a bearing on the student's ability to participate in extracurricular activities. Any after school incident involving drugs, alcohol, theft, violence, or other serious violations may be disciplined and include dismissal from extracurricular activities.

5050: CHALLENGES TO CURRICULAR MATERIALS

Last Revised: April 4, 2024
Prior Revision Dates: Unknown

Right to Inspect Certain Non-Academic Materials

The parent or guardian of a child enrolled in a school within the West Central School Corporation shall be entitled to inspect any instructional materials which will be used in connection with a survey, a personal analysis, or an evaluation which is not a direct part of the academic instruction. Instructional materials include teachers' manuals, student texts, films, other video materials, or tapes **or in connection with instruction on human sexuality**.

Any complaints arising under this policy may be submitted in accordance with the policy for parental [public] complaints.

It is the policy of the West Central School Board of School Trustees that any resident of the school corporation may raise objection to curriculum materials used in the corporation educational program, despite the fact that the individuals selecting such materials were duly qualified to make the selection, followed proper procedure, and observed the criteria for selecting such material. The school administrator or staff member receiving such a complaint shall try to resolve the issue informally. In the event that the person making an objection is not satisfied with the initial explanation, he/she should be referred to someone designated by the principal for further explanation. If after further explanation the complainant desires to file a formal complaint, the complainant must file in writing a signed "Reconsideration Request Form" with the superintendent.

The final decision as to whether the materials in question will enjoy continued use in the school corporation rests with the Board of School Trustees. The Board will not make a final determination until such time as a recommendation by a corporation review committee has been considered. The superintendent is responsible for developing procedures for the operation of an instructional materials review committee.

Access to the materials shall not be restricted during the reconsideration process. However, in unusual circumstances, the materials may be removed temporarily.

Procedures For Challenges to Curriculum Materials

The procedure of challenging curriculum materials is for the purpose of considering the opinions of persons in the schools and community who are not directly involved in the selection process.

The Superintendent shall organize a Reconsideration Committee as follows:

1. one teacher
2. one media specialist
3. one member of the Central Office staff
4. five members from the community
5. one high school student

The chairperson of the committee shall not be an employee of the district. The secretary shall be an employee of the district. The chairperson and the secretary shall be selected at the first meeting.

The committee shall review the information on the Reconsideration Request Form; review respectable, professionally prepared reviews of the material when available; complete and review checklists found in these procedures; review copies of the challenged materials; and hear the views of the complainant. The committee may request individuals with special knowledge to share information.

After due deliberation, the committee will develop a recommendation for the Board of School Trustees. The recommendation will be:

1) to remove the challenged materials from the total school environment,
2) to take no removal action, or
3) to recommend a limitation on the educational use of the materials.

The committee secretary will convey the committee's recommendation to the Superintendent for presentation to the Board.

RECONSIDERATION REQUEST FORM

School _____ Date _____

Name _____ Phone_____

Address _____

Do you represent: self _____ Organization (name) _____

Material challenged: check type of material

( ) Book	( ) Film	( ) Record
( ) Periodical	( ) Video	( ) Digital Content
( ) Pamphlet	( ) Computer Software	( ) Other

Title _____ Author _____

Publisher or Producer _____

The following questions are to be answered after the complainant has read, viewed, or listened to the school instructional material in its entirety. If sufficient space is not provided, please attach additional sheets. (Please sign or initial each additional sheet.)

To what in the material do you object: (Please be specific, cite pages, film sequence, etc.)

What do you feel might be the result of exposing a student to this material?

What are the positive values to be gained in reading/listening/viewing the entire selection?

For what age group would you recommend this material?

What do you believe is the major theme or purpose of this material?

What are the evaluations of this title by professional critics?

Names of Critics:

Titles or sources of review:

In its place, what material of equal literary quality, of similar format would you recommend?

What would you like your school to do about this work?

_____ Do not use it with my child.

_____ Do not lend it to my child

_____ Put on closed reserve for upper grades.

_____ Put on reserve for pupil and faculty requests.

Signature _____

5051: CHALLENGES TO LIBRARY, MEDIA, AND OTHER SUPPLEMENTAL MATERIALS

Last Revised: 1-4-24
Prior Revision Dates:

The Board recognizes the right of teachers, librarians, and administrators to select books and other materials in accordance with the current trends in education and to make them available in schools.

Therefore, books and other reading material will be chosen for value of interest and enlightenment of all students in the community. A book will not be excluded because of the race, nationality, political, or religious values of the writer or of its style and language. Every effort will be made to provide materials that present all points of view concerning the current international, national, and local problems and issues. Books and other reading material of sound factual authority will not be prescribed or removed from library shelves because of partisan doctrinal approval or disapproval.

The final decision on controversial reading material rests with the Board after careful examination and discussion of the instructional materials with school officials and/or other individuals the Board may wish to consult. No parent or group of parents has the right to determine the reading matter for students other than their own children. The Board recognizes the right of an individual parent to request that his or her child not have to read given instructional materials, provided a written request is made to the appropriate building principal.

Procedures For Removal of Library, Media, and/or Other Supplemental Materials

Parents or guardians, having custody of any student enrolled in the school corporation or a community member who lives within the school corporation boundaries may request that the removal of library, media, and other supplemental instructional materials on the basis the materials are obscene or harmful to minors as defined in Indiana law according to the following procedures:

1. A person having a concern about the use of library, media, and/or other instructional materials should first discuss the concern with the school librarian.

2. If the individual is not satisfied after the discussion with the school librarian, the individual should contact the building principal to discuss the matter.

3. If the individual is not satisfied after talking with the building principal, the individual may further the inquiry for a removal of the material in question by completing a Request for Removal of Library, Media, and/or Other Supplemental Materials form available in any school office and submitting it to the building principal.

4. Upon receipt of the completed form, the building principal shall request a review of the challenged material by a review committee within fifteen working days. The challenged material shall remain in use during the review process.

5. The building principal shall appoint the review committee and shall include but is not limited to a media professional, a classroom teacher, and a parent. For materials at the middle or high school level, a student representative may also be appointed.

6. The review committee shall take the following steps after receiving the challenged materials:

a. Read, view, or listen to the material in its entirety.

b. Review the definition of obscene and harmful to minors as defined in the Indiana criminal code.

c. Judge the material as a whole and not in part in determining whether the material meets the definition of obscene and/or harmful to minors.

8. The review committee shall make a written determination as to whether the material is obscene and/or harmful to minors and should be removed from the school library. The review committee's written determination shall be given to the building principal, the superintendent, and the person who made the request to remove the materials.

9. The person requesting the removal of the materials has the right to appeal the review committee's decision to the school board. The appeal must be in writing to the superintendent within ten days of the receipt of the review committee's determination.

10. The Board shall determine based upon the findings of the review committee whether to retain or remove the challenged material at its next public meeting after receiving the appeal. The board may also consider other resources in making its determination.

LEGAL REFERENCE: IC 20-26-5.5-1(a)
IC 35-49-2-1
IC 35-49-2-2

5100: INDIANA COURSE ACCESS PROGRAM (iCAP)

Last Revised: April 4, 2024
Prior Revision Dates:

The Board of School Trustees of the West Central School Corporation supports providing its students with opportunities to meet individual academic needs by expanding learning and curriculum options and diversifying its curricula. Participation in the Indiana Course Access Program provides these opportunities to the students enrolled in the schools of the school corporation. This program provides for online courses students of the corporation may enroll in for credit toward graduation or completion of an approved industry certification. The Indiana Department of Education (IDOE) administers the program on the state level by approving the providers and courses available to the students and provides guidance for the local administration of the Program.

Indiana Course Access Program Support Team (iCAP)

The Superintendent or designee shall appoint the following positions, whose duties will be those as set out in the IDOE guidance for iCAP.

1. iCAP Point of Contact

2. iCAP Mentor(s)

3. iCAP Support Team – members include the Point of Contact and the iCAP mentors and may include guidance counselor(s), technology director, technology coordinators, and building administrators.

The Superintendent [iCAP Support Team] must identify one person who will serve as the Lead Contact for IDOE whose duties and responsibilities are those set out in the IDOE guidance for this position.

The iCAP Point of Contact has the authority to make decisions on the selection of courses offered to students, identification and selection of online students, application process and criteria for approval to enroll in iCAP courses, support for and of online students, and monitoring and implementing the school corporation's online learning policies and procedures. The application process should [may] include parental permission, teacher's recommendations, minimum academic standards, or commitment to complete the course. Procedures for the iCAP program, including guidelines for teachers, parents, and students concerning participation in the program should [may] be developed and distributed to parents and students eligible for the program.

The superintendent has the responsibility to inform school employees of the duties and responsibilities of the iCAP team, the iCAP Point of Contact, and the iCAP Mentors. Members of the iCAP Support Team should be provided flexibility in their schedules in order to carry out their roles and responsibilities.

Students who complete iCAP courses will be given appropriate credit toward graduation or completion of an approved industry certification. The completed iCAP courses will be included on the student's transcript.

Students will be allowed to enroll in iCAP courses that are not otherwise available in the school corporation curriculum or when the student's schedule prohibits enrollment in the school corporation course and non-enrollment in the iCAP course would delay the on-time completion of the student's diploma requirements or the student's industry certification.

Students can be disapproved only for one of the following reasons:

1. The course is not in furtherance of the student's graduation or certification requirements.

2. The student's enrollment in the iCAP course would exceed the normal full course load for a student.

Students who are denied approval of an iCAP course may appeal the denial to the IDOE. The iCAP Point of Contact will provide the students and parents the IDOE appeal procedures.

If a parent agrees to pay the course fees, the student will be allowed to enroll in the iCAP course. The building administrator and superintendent will be responsible for making arrangements with the parent for payment of the iCAP course.

Each student who is enrolled in an iCAP course will be assigned an iCAP mentor to help the student have a successful and positive experience in completing the course.

Orientation concerning iCAP courses will be provided to enrolled iCAP students prior to starting the course. The iCAP courses should be taken during a scheduled class period when possible. Arrangements for taking the course during non-schools hours will be the responsibility of the iCAP Support Team [iCAP Point of Contact] [administrative position] including where and when the course will be taken, the equipment provided by the school corporation, and supervision of the students enrolled in the iCAP courses.

The superintendent is responsible for the development of administrative procedures to implement this policy and the Indiana Course Access Program for the school corporation.

Legal Reference: IC 20-30-16

5120: POST-SECONDARY ENROLLMENT PROGRAM

Last Revised: November 2, 2023
Prior Revision Dates: October 21, 1993, June 2, 2016

The district believes that students who are capable of and wish to pursue college level work while in high school should be permitted to do so.

Information about post-secondary enrollment opportunities will be made available to students in grades 8, 9, 10 and 11, and their parents/guardians upon the student's request or if school officials believe such information would benefit the student.

Any student who wishes to participate in postsecondary enrollment opportunities must inform his/her counselor at least two months in advance.

Any student in grades 9 through 12 may apply to any institution of higher education through the post-secondary enrollment opportunity. Academic credit granted for course work successfully completed by a student under this opportunity may qualify as high school credit or credit at the institution of higher education in accordance with the contract for dual credit with the eligible institution. A student participating in this opportunity will still be considered as enrolled in the district and eligible for all high school activities.

LEGAL REFERENCE: I.C. 21-43-4

5200: TITLE 1 PARENT INVOLVEMENT

Last Revised: November 2, 2023
Prior Revision Dates:

The Board of School Trustees endorses the parent involvement goals of Title I and encourages the regular participation by parents of Title I eligible children in all aspects of the program. The education of children is viewed as a cooperative effort among the parents, school and community. In this policy, the word "parent" also includes guardians and other family members involved in supervising the child's schooling.

Pursuant to federal law, the corporation will develop jointly with, agree on with and distribute to parents of children participating in the Title I program a written parent involvement policy.

At the required annual meeting of Title I parents, parents will have opportunities to participate in the design, development, operation and evaluation of the program for the next school year. Proposed activities shall be presented to fulfill the requirements necessary to address the requirements of parental involvement.

In addition to the required annual meeting, at least three additional meetings shall be held, at various times of the day and/or evenings, for parents of children participating in the Title I program. These meetings shall be used to provide parents with:

1. Information about programs provided under Title I;
2. A description and explanation of the curriculum in use, the forms of academic assessment used to measure student progress, and the proficiency levels students are expected to meet;
3. Opportunities to formulate suggestions and to participate, as appropriate, in decisions relating to the education of their children; and
4. The opportunity to bring parent comments, if they are dissatisfied with the school's Title I program, to the district level.

The parents of children identified to participate in Title I programs shall receive from the school principal and Title I staff an explanation of the reasons supporting each child's selection for the program, a set of objectives to be addressed, and a description of the services to be provided. Opportunities will be provided for the parents to meet with the classroom and Title I teachers to discuss their child's progress. Parents will also receive guidance as to how they can assist in the education of their children at home.

Each school in the corporation receiving Title I funds shall jointly develop with parents of children served in the program a "School-Parent Compact" outlining the manner in which

parents, school staff and students share the responsibility for improved student academic achievement in meeting State standards.

The "School-Parent Compact" shall:

1. Describe the school's responsibility to provide high-quality curriculum and instruction in a supportive and effective learning environment enabling children in the Title I program to meet the State's academic achievement standards;

2. Indicate the ways in which each parent will be responsible for supporting their children's learning, such as monitoring attendance, homework completion, monitoring television watching, volunteering in the classroom, and participating, as appropriate, in decisions related to their child's education and positive use of extra-curricular time; and

3. Address the importance of parent-teacher communication on an on-going basis, with at a minimum, parent-teacher conferences, frequent reports to parents, and reasonable access to staff.

Legal Reference: 20 U.S.C. 6318

In order to achieve the desired level of Title I parent involvement desired by the Board of School Trustees policy on this topic, these regulations guide the development of each school's annual plan designed to foster a cooperative effort among the parents, school and community.

A. Guidelines

Parent involvement activities developed at each school will include opportunities for:

- volunteering;
- parent education;
- home support for child's education;
- parent participation in school decision-making.

The school corporation will provide opportunities for professional development and resources for staff and parents/community regarding effective parent involvement practices.

B. Roles and Responsibilities

1. Parents

It is the responsibility of the parent to:

- actively communicate with school staff;
- be aware of rules and regulations of school;
- take an active role in the child's education by reinforcing, at home, the skills and knowledge the student has learned in school;
- utilize opportunities for participation in school activities.

2. Staff

It is the responsibility of the staff to:

- develop and implement a school plan for parent involvement;
- promote and encourage parent involvement activities;
- effectively and actively communicate with all parents about skills, knowledge and attributes student is learning in school and suggestions for reinforcement;
- send information to parents of Title I children in a format and, to the extent practicable, in a language the parents can understand.

3. Community

Community members who volunteer in the schools have the responsibility to:

- be aware of rules and regulations of the school;
- utilize opportunities for participation in school activities.

4. Administration

It is the responsibility of the administration to:

- facilitate and implement the Title I parent involvement policy and plan;
- provide training and space for parent involvement activities;
- provide resources to support successful parent involvement practices;
- provide in-service education to staff regarding the value and use of contributions of parents and how to communicate with and work with parents as equal partners;
- send information to parents of Title I children in a format and, to the extent practicable, in a language the parents can understand.

5210: EDUCATIONAL SURROGATE PARENT

Last Revised: November 2, 2023
Prior Revision Dates:

The school corporation shall ensure that a pool of educational surrogate parents is available so that an educational surrogate parent may be appointed, when necessary, to protect the rights of students with disabilities. An educational surrogate parent shall be appointed when the student's parent(s) are unknown; when, after reasonable efforts, the student's parent(s) cannot be located; when the student is a ward of the State of Indiana; or when the student is homeless and not in the physical custody of a parent. The educational surrogate parent may represent the student in all matters relating to the identification, evaluation, eligibility, educational placement, and provision of a free appropriate public education.

Any person assigned as an educational surrogate parent shall not be an employee of a public or private agency involved in the education or care of the student, or have any interest that conflicts with the student. The educational surrogate parent shall match the student's cultural and linguistic background to the extent possible and shall possess the knowledge and skills necessary to adequately represent the student.

5220: HATCH AMENDMENT-SURVEY OF CHILDREN/PARENT CONSENT

Last Revised: November 2, 2023
Prior Revision Dates:

In addition to any other rights with respect to the inspection of instructional materials, the parent or guardian of a child enrolled in a school within the West Central School Corporation which receives funds from the United States Department of Education either directly or indirectly, shall be entitled to inspect those instructional materials which will be used in connection with any survey, analysis, or evaluation as part of any school program or curriculum.

Any complaints arising under this policy may be submitted in accordance with the policy for public complaints.

LEGAL REFERENCE: 20 U.S.C. 1232h(a)

STUDENT SUBMISSION TO REQUIRED SURVEYS, ANALYSIS, OR EVALUATIONS OF SCHOOL PROGRAMS

No student shall be required without prior written consent of the student's parent or guardian, as part of any school program or curriculum which receives funds from the United States Department of Education, to submit to a survey, analysis, or evaluation which reveals information concerning:

(1) political affiliations or beliefs of the student or the student’s parent;

(2) mental or psychological problems of the student or the student’s family;

(3) sex behavior or attitudes;

(4) illegal, anti-social, self-incriminating or demeaning behavior;

(5) critical appraisals of other individuals with whom respondents have close family relationships;

(6) legally recognized privileged relationships, such as those of lawyers, physicians, or ministers;

(7) religious practices, affiliations or beliefs of the student or the student’s parents; or

(8) income other than that required by law to determine eligibility for participation in a program.

LEGAL REFERENCE: 20 U.S.C. 1232h(b)

WRITTEN CONSENT OF STUDENT SUBMISSION TO SURVEYS, PERSONAL ANALYSIS, OR EVALUATIONS (HATCH AMENDMENT)

(This form is to be used to provide as required by federal law written consent of a student's parent or guardian to the student's participation in a survey, a personal analysis, or an evaluation.)

NAME OF STUDENT:
_____

ADDRESS:
_____

GRADE/SCHOOL YEAR:
_____

BIRTHDAY OF STUDENT:
_____

NAME OF STUDENT'S PARENT OR GUARDIAN:
_____

ADDRESS OF PARENT OR GUARDIAN:
_____

_____

The survey, personal analysis, or evaluation reveals the following information: (check all those applicable)

___ political affiliations or beliefs of the student or the student's parent.

___ religious beliefs, practices, or affiliations of the student or the student's parent.

___ mental or psychological conditions that may embarrass the student or his/her family.

___ sexual behavior and attitudes.

___ illegal, anti-social, self-incriminating or demeaning behavior.

___ critical appraisals of other individuals with whom the student has a close family relationship.

___ legally recognized privileged or confidential relationships, including a relationship with a lawyer, physician, or minister.

___ income except as required by law to determine eligibility for participation in a program.

A copy of the personal analysis, survey, or evaluation is attached for your review.

I, _____ (name of parent or guardian of student) , consent to the participation of _____(name of student) in the attached survey, personal analysis, or evaluation.

_____
(Date)

_____
(Signature of Parent/Guardian)

5221: Parental Rights to Inspect Materials/Consent to Non-Curriculum Analysis, Surveys or Evaluations

Last Revised: November 2, 2023
Prior Revision Dates:

Right to Inspect Certain Non-Academic Materials

The parent or guardian of a child enrolled in a school within the West Central School Corporation shall be entitled to inspect any instructional materials which will be used in connection with a survey, a personal analysis, or an evaluation which is not a direct part of the academic instruction. Instructional materials include teachers' manuals, student texts, films, other video materials, or tapes or in connection with instruction on human sexuality.

Any complaints arising under this policy may be submitted in accordance with the policy for parental [public] complaints.

5320: Educating Minors-CIPA

Last Revised: November 2, 2023
Prior Revision Dates:

The Corporation recognizes its responsibility to educate students regarding appropriate behavior on social networking and chat room sites about cyberbullying. Therefore, students shall be provided instruction about appropriate online behavior, including interacting with other individuals on social networking sites and in chat rooms and cyberbullying awareness and response.

LEGAL REFERENCE: 47 U.S.C. Section 254(h)(5)(b)
I.C. 20-30-5.5

5335: USE OF GENERATIVE ARTIFICIAL INTELLIGENCE PROGRAMS

Last Revised: April 4, 2024
Prior Revision Dates:

The Board is committed to providing students with the most innovative and effective educational experiences to foster high levels of learning and opportunities for self-expression. As our schools prepare students for a future that demands adaptability, critical thinking, and digital literacy, we recognize the potential of generative Artificial Intelligence (AI) and other related technology tools.

As with all technologies, users must be mindful of and adhere to all considerations ensuring responsible and ethical use, especially as it relates to mitigating bias, promoting transparency, and ensuring the benefits of AI are accessible to all students. Appropriate training on the use of AI for instruction and in the classroom should be provided to teachers so that proper instruction on the use of AI may be provided to students.

While ensuring the responsible use for all of those interacting with and creating content from generative AI technologies, the Board is dedicated to fostering a dynamic and engaging learning environment that leverages the advances in AI to enhance student learning outcomes and equip students with the skills needed for success in the digital age. Use of AI by both teachers and students will be subject to school policy and rules relating to academic integrity.

5340: LEAST RESTRICTIVE ENVIRONMENT

Last Revised: November 2, 2023
Prior Revision Dates:

Students with disabilities, including those in public or private residential institutions and other care facilities located in the attendance area of the school corporation, shall be educated and participate in academic, nonacademic, and extracurricular activities with nondisabled students to the maximum extent appropriate. The educational placement of students with disabilities shall be determined annually by a case conference committee and shall be based on the student's individualized education program. The case conference committee shall also take into consideration any potentially harmful effect of a suggested placement on the student or on the quality of the services needed.

Unless the individualized education program requires some other arrangement, a student with disabilities shall be educated with the student's chronological peers in the school the student would attend if not disabled. Placement of students with disabilities in special classes or separate facilities shall occur only when it is documented by the case conference committee that education in general education classes, with the use of supplementary aids and services, cannot be satisfactorily achieved. If necessary, a continuum of alternative educational placements shall be available to meet the individual needs of students with disabilities.

Legal References: 511 I.A.C. 7-42-10

5360: SUPERVISION OF STUDENTS

Last Revised: 1-4-24
Prior Revision Dates:

Students shall be supervised by school personnel when they are under the jurisdiction of the school corporation.

Students are to be under supervision of the professional staff at all times during school hours and at school sponsored activities.

It is the responsibility of the principal or designee to arrange for adequate supervision. It is the duty of teachers, coaches, directors, and sponsors to perform the assigned supervision. Students are not to be left unsupervised during the school day or at school activities whether in instructional/athletic areas or on the playground.

Staff members are not to leave their rooms during class time or when supervising students. In an emergency, staff members must make arrangements for another staff member to cover the class or call the office.

Principals are responsible for ensuring adequate supervision. In addition to responsibility for specifically assigned supervision, all employees have the authority and are expected to assist with maintaining appropriate behavior at any time that the safety, welfare, or misbehavior of students requires their assistance. Such assistance includes but is not limited to correcting inappropriate behavior in any school setting, seeking assistance of other staff members if needed, and reporting unacceptable student behavior to administrators in charge.

Each building principal shall coordinate and assign teachers, aides, or paraprofessionals to supervise students engaged in school sponsored activities. All school-sponsored activities shall be supervised by an adult approved by the administration. Supervision duties end when all students have been picked up or received a ride home after the completion of the school activity.

5370: PLEDGE AND DISPLAY OF US FLAG

Last Revised: November 2, 2023
Prior Revision Dates:August 4, 2005

Display of the United States Flag
The United States flag shall be displayed in each classroom of every school in the school corporation.

Pledge of Allegiance
Each building principal shall ensure that a daily opportunity is provided for students of the school corporation to voluntarily recite the Pledge of Allegiance in each classroom or on school grounds. The building principal shall determine the appropriate time when school is in session for the recitation of the Pledge.

A student is exempt from participation in the Pledge of Allegiance and may not be required to participate in the Pledge of Allegiance if:
1. The student chooses not to participate; or
2. The student's parent chooses to have the student not participate.

Students who are exempt from reciting the Pledge shall remain quietly standing or sitting while others recite the Pledge and shall make no display that disrupts or distracts other students who are reciting the Pledge.
During the Pledge of Allegiance, students who participate shall stand and recite the Pledge while facing the United States flag with their right hands over their hearts or in an appropriate salute if in uniform.
The student code of conduct applies to disruptive behavior during the recitation of the Pledge in the same manner as provided for in other circumstances of such behavior.
The superintendent (building principals) may establish procedures to implement this policy.

Legal Reference: IC 20-30-5-0.5

5371: MOMENT OF SILENCE

Last Revised: November 2, 2023
Prior Revision Dates:August 4, 2005

In order that the right of each student to the free exercise of religion is guaranteed and the freedom of each student is subject to the least possible coercion from the state either to engage in or refrain from religious observation on school grounds, there shall be a daily observance of a moment of silence in each classroom or on school grounds of each school in the school corporation.

During the moment of silence, the teacher responsible for a classroom shall ensure that all students remain seated or standing and silent during the moment of silence and the students make no distracting display so that each student may, in the exercise of the student's individual choice, mediate, pray, or engage in any other silent activity that does not interfere with, distract, or impede another student in the exercise of the student's individual choice.

This "moment of silence" is not intended to be and shall not be conducted as a religious exercise. This policy precludes students from using the occasion to pray audibly or otherwise speak, singly or in unison. Building principals and teachers must not allow or tolerate any coercion or overbearing by anyone to force other students to engage in or refrain from prayer or any other permitted activity under this policy.

The student code of conduct applies to disruptive behavior during a moment of silence in the same manner as provided for in other circumstances of such behavior.
The superintendent (building principals) may establish procedures to implement this policy.

Legal Reference: IC 20-30-5-4.5

5372: ANIMALS IN CLASSROOMS

Last Revised: November 2, 2023
Prior Revision Dates:December 15, 2011

Live animals with the exception of fish in aquariums are only to be in the school for educational purposes. No live animal will be allowed to stay in a classroom longer than a grading period or during an extended school break of more than two (2) days.

Live animals are viewed as instructional tools for the classroom. A part of the instruction shall be “Air Quality” and the maintenance of the cage, aquariums or any such container where the animal is housed in order to prevent offensive odors and pests.

Service dogs are permitted on school buses and in classrooms to perform the functions for which they are trained. A dog’s laminate identification card shall be requested for verification.

The teacher prior to an animal entering the classroom will notify parents. Parents are to notify the teacher or principal if their student is allergic to the animal. At no time will animals considered dangerous be brought into the classrooms.

When an animal is to be brought into a classroom a note will be sent home with the students of that class notifying the parents that an animal will be present. If known in advance this will be done at the beginning of the school year. Parents are to notify the teacher or principal if their student is allergic to the animal. Upon such notice, the principal will confer with the teacher and determine what options are available which may include changing to a different species with no allergy problems or not having an animal in the classroom. The school will not reveal the name of the student with allergy issues to students or parents. If after an animal is brought into the classroom, the parent finds their student is allergic to the animal, the school will work with the parent and teacher to resolve the issue. If necessary, housekeeping will clean all surfaces in the classroom to remove any animal dander that may still cause an allergic reaction by the student.

Examples of educational purposes where animals would be in the classroom are:

1) Animals used in health class to demonstrate effects of different diets.
2) Animals used in biology to show developmental changes or diversity.
3) Eggs incubated to show development.

Examples of educational purposes where animals are in the classroom for one day or less:

1) Pets/animals brought into the classroom to allow students exposure to a variety of species.
2) Pets/animals used to demonstrate obedience training.

The principal has the authority to determine if it is appropriate to bring an animal into the classroom and if air quality is being maintained.

Cleaning: Cages shall be cleaned by the teacher in charge of the animal and not any student on a routine basis to avoid offensive odors or pest issues. Aquariums with fish are to be maintained by the teacher in charge of the aquarium including cleaning as needed.

When appropriate, teachers may allow students to handle and/or feed the animals.

Procedures may be found in the School Safety Plan.

Legal Reference: 410 I.A.C. 33-4-7

5380: HOMEWORK

Last Revised: November 2, 2023
Prior Revision Dates:November 7, 1985

The Board supports teachers and administrators who are continually concerned that the purposes of homework lessons assigned for completion by students be carefully explained. Homework can be a meaningful and positive activity with purposes related to anyone or more of four major categories:

1. Enrichment
2. Reinforcement
3. Preparatory
4. Skill Development

Enrichment assignments are normally those lessons in which all students may realistically enhance their personal growth and development. Students are usually given great latitude regarding the topic and the scope of their reading and research. Except for general teacher guidelines, the student's efforts may result in an original and creative lesson for that student.

Reinforcement lessons are not generally assigned to all class members since individual students have a varying need for this type of homework. In contrast to enrichment assignments, reinforcement lessons are generally on a daily basis and are also on a one to one basis with the teacher.

Preparatory homework is normally intended to familiarize the student with a content or topic and to serve as a basis for subsequent activity.

Skill development lessons are usually assigned to all students and are closely related to the regular current classwork. Analysis of weaknesses and strengths is noted regularly by the teachers and is used to assist the student through supervision by the teacher of the initial practice by the student before independent work is assigned.

The Board expects that great care must continually be exercised by the teacher to permit students adequate personal time and time for physical and cultural development. A lengthy day of serious study followed by demands and pressures of excessive outside assignments may cause negative student attitudes to develop. Therefore, homework assignments should be approached from a positive viewpoint so that they will enhance student success in school. The age, capability, normal growth pattern of children and other demands on student time should be taken into consideration when assignments are administered.

Homework builds a bridge between children's lives in school and out of school. It is a tool that reinforces newly learned skills and encourages self-discipline.

Homework is an out-of-school assignment that is an extension of classroom instruction. There are three types: Practice (applying recently acquired learning in a direct and personal way), Preparation (obtaining sufficient background information for future discussion or lecture, usually reading of material on a specified subject), and Extension (aims at individual application, research, and study-might be an in-depth extension of classroom activities or independent project related to subject).

Statement of Purposes

1. To review, reinforce, or extend classroom learning by providing practice and application of knowledge gained.
2. To enhance responsibility, organizational skills, and orderly use of time.
3. To foster initiative and independence.
4. To link school activities and leisure interests and career goals.
5. To strengthen the relationship between school and home.

A cooperative effort among teachers, students, and parents must be maintained for homework to be a learning experience. The following role suggestions may be helpful:

Teachers' Role

1. Homework assignments should be specific, clear and concise.
2. Homework should include activities that have direct application to classroom studies.
3. Teachers should develop procedures for monitoring the completion of assignments.
4. Care and good judgment should be exercised by teachers to instill a positive attitude towards all homework.
5. At the recommendation of the teacher, parents should be notified if a student consistently fails to do homework assignments.

Students' Role

1. Students should clarify with the teacher any questions pertaining to the instruction before leaving class – its purpose, when it is due, and how it should be done.
2. Students should take home any materials and information needed to complete the assignment.
3. Students should learn to budget time.
4. With parental support and encouragement students should:
    a. Set aside a special time in which to do the assignment.
    b. Find a special place free from excessive noise and distractions in which to work.
        c. Organize time so that assignments can be completed in a reasonable length of Time.
    d. Check carefully the completed assignments.

Parents' Role

1. Parents should provide a quiet, well-lighted place for their children to study and establish a regular “homework time”.
2. Parents should encourage and support their children’s efforts.
3. Parents should communicate with the teacher whenever their children have consistent difficulty with homework assignments.
4. Parents should encourage their children to seek help and ask questions of the teacher, when in doubt, about an assignment.

Legal Reference: 511 IAC 6.1-5-9

5400: TEST SECURITY-ASSESSMENT

Last Revised: April 4, 2024
Prior Revision Dates:

The West Central School Board of School Trustees intends for all staff members to comply with the requirements of the Indiana Department of Education (IDOE) regarding test security of the statewide assessments. The school corporation administration will ensure a testing schedule is established within the testing window approved by the state board of education or seek a waiver to test outside of the established testing window if necessary to accommodate the corporation calendar.

A system wide testing program under the direction of the building principals and guidance personnel shall be conducted according to the schedule devised by the guidance department, administration, and the department of education.

1. Results of all tests shall be recorded on cumulative records and should also be reported to the Superintendent's Office.

2. The testing program shall be revised as needed by approval of the Guidance Department, Administration, and the Department of Education.

Security and Access to Test Materials

Upon receipt, the Superintendent or designee shall ensure all test materials are stored at a central location in a secured manner. Secure test materials should be delivered to school buildings no more than one week (preferably less) in advance of the test administration dates. Teachers and other staff members shall not access secure materials more than four (4) hours in advance of the test administration.

The Superintendent or designee shall establish procedures to ensure all assessment materials are secure before, during and after being administered. Such procedures shall also ensure only appropriate staff members have access to test administration materials. No staff member shall review any secure test questions before, during, or after the assessment administration.

Staff Training

All appropriate staff members shall receive test administration and test security training prior to testing. Such training shall include knowledge of the IDOE *Code of Ethical Practices and Procedures,* security, administration, and handling of assessments while in staff members' possession.

On an annual basis, prior to the assessment testing period, all staff members shall receive training on test security.

Staff members providing students with testing accommodations as per a student's Individual Education Plan (IEP), Individual Learning Plan (ILP), Section 504 Plan, and/or nonpublic school Service Plan shall receive focused training on providing such accommodations prior to testing. Steps shall be taken to ensure such staff members are familiar with each student's individual needs as provided in their IEPs, ILPs, Section 504 Plans, and/or Service Plans.

Monitoring

All assessment testing sessions will be monitored to ensure assessments are being administered by staff members in accordance with the test security protocol and procedures and appropriate accommodations are being provided to students with an IEP, an ILP, a Section 504 plan and/or a service plan in accordance with their plans.

Reports and Investigations

Teachers, administrators, students, parents, and other community members may report concerns about testing practices they consider inappropriate to the Corporation Testing Coordinator. The Corporation Testing Coordinator shall investigate any complaint, allegation, or concern about inappropriate testing practices, and ensure the protection of both the rights of the individuals and the integrity of the assessment. The investigation will include, but not be limited to, the following.

A. Reports of potential inappropriate testing practices or testing irregularities shall be immediately made to the IDOE Office of Student Assessment.

B. Corporation Testing Coordinator shall work with the IDOE Office of Student Assessment to take appropriate next steps consistent with the IDOE's Protocol for Reporting and investigation Alleged Assessment Breaches.

Annual Communication

At least annually, the Corporation shall communicate the following to staff members:

A. The standards for determining ethical and appropriate practices contained in the *Code of Ethical Practices and Procedures* and local standards;

B. The method of school administration monitoring of staff members implementation of test administration and security standards;

C. All security procedures established for each assessment; and

D. The procedures for reviewing practices and materials used to prepare students for testing.

Review of Procedures

The Superintendent or his/her designee shall establish an annual process for reviewing the Corporation's practices and materials related to:

A. Preparing students for assessments;

B. Administering assessments;

C. Securing assessments; and

D. Interpreting results from assessments.

The Corporation's review shall take into consideration the appropriateness of any materials and compliance with test security protocols that ensure staff members have knowledge and skills to make ethical decisions related to the above items.

5510: FIELD TRIPS-OVERNIGHT; OUT OF STATE

Last Revised: January 2, 2025
Prior Revision Dates: April 25, 1996

The Board of School Trustees of the West Central School Corporation encourage field trips and tours when they can significantly augment and enrich classroom instruction and make classroom centered learning more relevant to life.

Field trips taken on school time shall be limited to those specifically related to classroom instruction and regularly scheduled co-curricular or extra-curricular activities.

The Board supports educationally sound field trips. All school-sponsored trips, including community service projects, are to be properly supervised and require written permission from a student's parent or guardian before a student is permitted to participate.

School- sponsored trips are curricular, co-curricular, and extra-curricular trips. Staff-sponsored trips are trips not sponsored by the school or district. These two categories of trips are defined as follows:

I. SCHOOL-SPONSORED:

A. Curricular Trips - Curricular trips are school-sponsored trips that are a part of the curriculum for all students in a given class or course.

1. Time - Curricular trips, since they are part of the curriculum, are taken during the regular school day.

2. Participation - All students will participate in curricular trips unless the parent denies participation for their student.

3. Cost - Curricular trips may be offered at minimal or no cost to students.

4. Grading implications - As part of the curriculum, curricular trips may be included in graded projects or assessments as planned by the teacher. When parents deny permission for a curricular trip, students will be given an alternative assignment for grading purposes.

5. Student expectations: All district and school policies, procedures, and rules are in effect.

B. <u>Co-Curricular Trips</u> - Co-curricular trips are school-sponsored trips related to curricular courses, including music and journalism, which occur outside the regularly scheduled school day.

1. Time - Co-curricular trips, although related to a class, extend to after-school or weekend hours.

2. Participation - All students are expected to participate in co- curricular trips. Co-curricular trips are linked to electives in the curriculum. Electing such courses implies that parents and guardians will grant permission for co-curricular trips for performances or activities directly related to the course.

3. Cost - Co-curricular trips will be offered at minimal or no cost to students.

4. Grading implications - Participation in co-curricular trips may be factored into grades at the discretion of the teacher.

5. Student expectations: All district and school policies, procedures, and rules are in effect, as well as, any rules, guidelines, or other codes of conduct from the co-curricular sponsoring group.

C. <u>Extra-Curricular Trips</u> - Extra-curricular trips are school-sponsored trips taken by school groups, including athletic teams and clubs. Extra-curricular trips are not directly related to curricular classes or courses.

1. Time - Extra-curricular trips, since they are not part of the curriculum, are planned for after-school hours, weekends, vacations, and summer.

2. Participation - Students may voluntarily participate in extra-curricular trips for which their parents or guardians grant written permission.

3. Cost - Fees for extra-curricular trips will be paid by the group sponsoring the trip, by the student interested in participating, or jointly by both the group and the individual students participating.

4. Grading implications - Since extra-curricular trips are not related to any specific curriculum or course, such trips may not be linked to grades or to extra credit points in any manner.

5. Student expectations: All district and school policies, procedures, and rules are in effect, as well as, any rules, guidelines, or other codes of conduct from the extra-curricular sponsoring group.

All school-sponsored trips must have the approval of the principal. Each principal will maintain a record describing all school-sponsored trips and community service projects. For curricular trips, the record will include the curriculum standard addressed by the activity.

The Board, within existing financial limitations, may budget funds to assist with school-sponsored trip costs. Schools are permitted to raise additional funds to support such activities. Student fees must never be used as a reason to deny a curricular or co-curricular trip to any student.

In developing school-sponsored trip procedures, attention must be given to the need for:

- aligning with State curriculum standards

- safety and liability coverage;

- parental permission;

- adequate advance planning; and

- learning needs of students who remain at school.

The Superintendent will inform the Board of all school-sponsored multiple-day or out-of-state field trips. Multiple-day trips and major out-of-state trips that are school-sponsored require the approval of the Board and must be requested early enough for adequate preparation under procedures and timelines determined by the Superintendent. The Board recognizes that there could be some extenuating circumstances that could prohibit the sponsoring group/activity from meeting the timelines established for multiple-day and out-of-state trips.

The superintendent retains the sole discretion to cancel or postpone curricular, co-curricular and extra-curricular trips if the superintendent believes that cancellation or postponement is in the best interest of the school district taking into account factors such as participants' safety and the state of local, national or international affairs. Although efforts will be made to minimize the costs associated with such cancellation or postponement, if participants were responsible for all or a portion of the trip's cost, they will also be responsible for cancellation fees incurred as a result of the trip's cancellation.

II. STAFF-SPONSORED TRIPS:

A. Staff-Sponsored Trips - Staff-sponsored trips are not school sponsored and are undertaken as activities independent of the Board and the District. The Board

recognizes that parents and guardians should determine what trips their children will participate in that are not school-sponsored. The District has no role in deciding whether it will permit or prohibit students from undertaking travel that the District does not sponsor. The Board also recognizes that employees, as individuals, have the right to organize or promote trips that are not school-sponsored and are independent of the District.

1. Time - It is assumed that staff members organizing staff-sponsored trips will plan such trips during non-school time, including evenings, weekends, vacations, and summer. Staff-sponsored trips that occur during regular school time would be marked as unexcused absences.

2. Participation - The Board does not support, endorse, or assume liability or responsibility in any way for any staff-sponsored trip organized or promoted by an employee of the District.

No staff member may advertise or solicit District students for such trips without approval of the Superintendent. Permission to solicit neither grants nor implies approval of the trip. Permission to solicit will be granted if the Superintendent is satisfied that:

a) the solicitation of students on school premises, if any, is appropriately limited and will not interfere with class instruction;

b) the solicitation will not state or imply that participation in the trip is necessary for the improvement in a grade in any course, or is a condition for participating in any school-sponsored trip;

c) the solicitation materials will not use the names, logos, or symbols of the District or the District's schools to claim, directly or indirectly, any District approval or sponsorship of the trip;

d) the solicitation materials will include statements clearly and conspicuously informing students and parents that the trip is not a school-sponsored or school-approved trip; and

e) the request for permission to solicit satisfies any other requirements the Superintendent may establish by procedure.

3. Cost - Fee agreements are entirely between staff organizers and trip participants. No school money may be used to supplement or subsidize such privately arranged trips.

4. Grading implications - Since staff-sponsored trips are not related or endorsed by the District, such trips may not be linked by the sponsoring staff to grades or to extra credit points in any manner.

5. Student expectations: Because staff-sponsored trips are not school-sponsored activities, the staff sponsor will establish any behavior expectations and consequences that apply to students participating in the trip.

FIELD TRIP PROCEDURES

SCHOOL-SPONSORED CURRICULAR TRIPS

School-sponsored trips are curricular, so-curricular, and extra-curricular trips. Each of these trips is further defined below.

A. Curricular Trips Curricular trips are school-sponsored trips that are a part of the curriculum for all students in a given class or course.

6. Time - Curricular trips, since they are part of the curriculum, are taken during the regular school day.

7. Participation - All students will participate in curricular trips unless the parent denies participation for their student.

8. Cost - Curricular trips may be offered at minimal or no cost to students.

9. Grading implications - As part of the curriculum, curricular trips may be included in graded projects or assessments as planned by the teacher. When parents deny permission for a curricular trip, students will be given an alternative assignment for grading purposes.

10. Student expectations - All district and school policies, procedures and rules are in effect.

PROCEDURES FOR CURRICULAR TRIPS

Curricular trips must correlate with the curriculum and address standards with enriching experiences that utilize the excellent resources of the community.

Teachers should prepare lesson plans for curricular trips that include standards, objectives, method of assessment, questions to be answered, as well as appropriate follow-up activities.

Curricular trips should end in time so that no disruption occurs in the regular transportation schedule at the end of the school day.

Requests for trips must be submitted to the principal on the form provided. The request must clarify the timetable and the itinerary.

Trip requests may be denied due to lack of financial resources, available transportation, excessive time out of class, other events scheduled in the building, inappropriate dates/time of year, or failure to comply with pre-trip requirements. If the principal approves the trip, the principal must sign the trip request form and the bus request form.

Requests for transportation will be submitted to the Superintendent at least two weeks prior to the request date in order to try to secure a driver and the appropriate approvals.

Permission from a parent or guardian is required for each student to participate. An informational letter to parents describing the trip will accompany parent permission slips. A blanket permission may be granted for a series of trips as specified in the informational letter.

All trips must be chaperoned by at least one staff employee and a sufficient number of other adult chaperones. All chaperones must be at least 21 years of age and be affiliated with the Corporation as a parent, school volunteer, employee, or Board member. The list of chaperones must be submitted with the trip request. Chaperones should report student behavior problems to the trip leader as soon as possible. Volunteer chaperones are not to invoke discipline on a student except in cases of an imminent threat to safety or well-being.

Problems occurring during the trip should be brought to the attention of the principal immediately upon return. The principal in turn will inform parents or other appropriate administrators as needed.

At no time are students to be left on their own during the course of the trip.

Trips may be canceled due to inclement weather. The Superintendent will work collaboratively with the building principal to determine if cancellation is necessary.

All special education students are eligible for the same field trips as those in general education.

Anyone who transports students in a private vehicle is financially liable while those students are in the vehicle. Transporting students in private vehicles is discouraged.

Limited discussion with students regarding a trip is recommended until the trip request has been approved.

Students should be encouraged to send appropriate thank you letters to those in charge of the site visited and to bus drivers and other adults who helped make the trip possible.

SCHOOL-SPONSORED CO-CURRICULAR TRIPS

B. Co-Curricular Trips - Co-curricular trips are school-sponsored trips related to curricular courses, including music and journalism, which occur outside the regularly scheduled school day.

1. Time - Co-curricular trips, although related to a class, extend to after school or weekend hours.

2. Participation - All students are expected to participate in co- curricular trips. Co-curricular trips are linked in most cases to electives in the curriculum. Electing such courses implies that parents and guardians will grant permission for co-curricular trips for performances or activities directly related to the course.

3. Cost - Co-curricular trips will be offered at minimal or no cost to students.

4. Grading implications - Participation in co-curricular trips may be factored into grades at the discretion of the teacher.

5. Student expectations - All district and school policies, procedures and rules are in effect, as well as rules, guidelines, or other codes of conduct from the co-curricular sponsoring group.

PROCEDURES FOR CO-CURRICULAR TRIPS

1. Requests for multiple-day co-curricular trips within Indiana must be approved by the superintendent as well as the principal and must be submitted to the superintendent at least two months in advance of the trip. Overnight trips require school board approval.

2. Requests for multiple-day co-curricular trips out of Indiana, including international trips, must be approved by the superintendent as well as the principal and must be submitted to the superintendent at least five months in advance of the trip. These out of state trips must be approved by the school board.

3. At least one staff member is to remain at the school after returning until all students have been picked up.

4. If the trip involves use of a travel company to arrange transportation, rooms, or any other aspect of the trip, the request must include written confirmation from the company that it is (1) licensed to operate in Indiana; (2) registered and bonded; (3) properly insured for the proposed trip and the policy covers the Corporation, the staff members and chaperones, and all phases of the trip from the beginning to the end of the companies involvement; and (4) in compliance with Federal laws regarding accessibility for and rights of those with disabilities.

5. Once multiple-day trips are approved, staff members are expected to conduct the trip as described in the approved request. Necessary changes must be brought to the attention of the principal and/or superintendent for subsequent approval.

6. Requests for trips must be submitted to the principal on the form provided. The request must clarify the timetable and the itinerary.

7. Trip requests may be denied due to lack of financial resources or available transportation, excessive time out of class, other events scheduled in the building, inappropriate dates/time of year or failure to comply with pre-trip requirements. If the principal approves the trip, the principal must sign the trip request form and the bus request form.

8. Requests for transportation will be submitted to the Superintendent at least two weeks prior to the request date.

9. Permission from a parent or guardian is required for each student to participate. An informational letter to parents describing the trip will accompany parent permission slips. A blanket permission may be granted for a series of trips as specified in the informational letter.

10. All trips must be chaperoned by at least one staff employee and a sufficient number of other adult chaperones. All chaperones must be at least 21 years of age and be affiliated with the Corporation as a parent, school volunteer, employee, or Board member. The list of chaperones must be submitted with the trip request. Chaperones should report student behavior problems to the trip leader as soon as possible. Volunteer chaperones are not to invoke discipline on a student except in cases of an imminent threat to safety or well-being.

11. Problems occurring during the trip should be brought to the attention of the principal immediately upon return. The principal in turn will inform parents or other appropriate administrators as needed.

12. At no time are students to be left on their own during the course of the trip.

13. Trips may be canceled due to inclement weather. The Superintendent will work collaboratively with the building principal to determine if cancellation is necessary.

14. All special education students are eligible for the same field trips as those in general education.

15. Anyone who transports students in a private vehicle is financially liable while those students are in the vehicle. Transportation in private vehicles is discouraged.

16. Limited discussion with students regarding a trip is recommended until the trip request has been approved.

17. Students should be encouraged to send appropriate thank you letters to those in charge of the site visited and to bus drivers and other adults who helped make the trip possible.

SCHOOL-SPONSORED EXTRA-CURRICULAR TRIPS

PROCEDURES

C. Extra-Curricular Trips - Extra-curricular trips are school-sponsored trips taken by school groups, including athletic teams and clubs. Extra-curricular trips are not directly related to curricular classes or courses.

1. Time - Extra-curricular trips, since they are not part of the curriculum, are planned for after-school hours, weekends, vacations, and summer.

2. Participation - Students may voluntarily participate in extra-curricular trips which their parents or guardians grant written permission.

3. Costs - Fees for extra-curricular trips will be paid by the school group sponsoring the trip, by the student interested in participating, or jointly by both the group and the individual students participating.

4. Grading implications - Since extra-curricular trips are not related to any specific curriculum or course, such trips may not be linked to grades or to extra credit points in any manner.

5. Student expectations - All district and school policies, procedures and rules are in effect, as well as any rules, guidelines, or other codes of conduct from the extra-curricular sponsoring group.

PROCEDURES FOR EXTRA-CURRICULAR TRIPS

1. Requests for multiple-day extra-curricular trips within Indiana must be approved by the superintendent as well as the principal and must be submitted to the superintendent at least two months in advance of the trip. Overnight trips require school board approval.

2. Requests for multiple-day extra-curricular trips out of Indiana, including international trips, must be approved by the superintendent as well as the principal and must be submitted to the superintendent at least five months in advance of the trip. Out of state trips require school board approval.

3. Financial arrangements for extra-curricular trips must be clearly explained in the trip request since the District is not responsible for fees.

4. Charges for use of school owned equipment by groups sponsoring extra-curricular trips will be determined by the Superintendent.

5. At least one staff member is to remain at the school after returning until all students have been picked up.

6. If the trip involves use of a travel company to arrange transportation, rooms, or any other aspect of the trip, the request must include written confirmation from the company that it is (1) licensed to operate in Indiana; (2) registered and bonded; (3) properly insured for the proposed trip and the policy covers the Corporation, the staff members and chaperones, and all phases of the trip from the beginning to the end of the companies involvement; and (4) in compliance with Federal laws regarding accessibility for and rights of those with disabilities.

7. Once multiple-day trips are approved, staff members are expected to conduct the trip as described in the approved request. Necessary changes must be brought to the attention of the principal and/or superintendent for subsequent approval.

8. Requests for trips must be submitted to the principal on the form provided. The request must clarify the timetable and the itinerary.

9. Trip requests may be denied due to lack of financial resources or available transportation, excessive time out of class, other events scheduled in the building, inappropriate dates/time of year or failure to comply with pre-trip requirements. If

the principal approves the trip, the principal must sign the trip request form and the bus request form.

10. Requests for transportation will be submitted to the Superintendent at least two weeks prior to the request date.

11. Permission from a parent or guardian is required for each student to participate. An informational letter to parents describing the trip will accompany parent permission slips. A blanket permission may be granted for a series of trips as specified in the informational letter.

12. All trips must be chaperoned by at least one staff employee and a sufficient number of other adult chaperones. All chaperones must be at least 21 years of age and be affiliated with the Corporation as a parent, school volunteer, employee, or Board member. The list of chaperones must be submitted with the trip request. Chaperones should report student behavior problems to the trip leader as soon as possible. Volunteer chaperones are not to invoke discipline on a student except in cases of an imminent threat to safety or well-being.

13. Problems occurring during the trip should be brought to the attention of the principal immediately upon return. The principal in turn will inform parents or other appropriate administrators as needed.

14. At no time are students to be left on their own during the course of the trip.

Trips may be canceled due to inclement weather. The Superintendent will work collaboratively with the building principal to determine if cancellation is necessary.

All special education students are eligible for the same field trips as those in general education.

Anyone who transports students in a private vehicle is financially liable while those students are in the vehicle. Transportation by private vehicle is discouraged.

Limited discussion with students regarding a trip is recommended until the trip request has been approved.

Students should be encouraged to send appropriate thank you letters to those in charge of the site visited and to bus drivers and other adults who helped make the trip possible.

STAFF-SPONSORED TRIPS

PROCEDURES

STAFF-SPONSORED TRIPS ARE DEFINED AS FOLLOWS IN BOARD POLICY 6.210:

A. Staff-Sponsored Trips - Staff-sponsored trips are not school sponsored and are undertaken as activities independent of the Board and the District. The Board recognizes that parents and guardians should determine what trips their children will participate in that are not school-sponsored. The District has no role in deciding whether it will permit or prohibit students from undertaking travel that the District does not sponsor. The Board also recognizes that employees, as individuals, have the right to organize or promote trips that are not school-sponsored and are independent of the District.

1. Time - It is assumed that staff members organizing staff-sponsored trips will plan such trips during non-school time, including evenings, weekends, vacations, and summer. Staff-sponsored trips that occur during regular school time would be marked as unexcused absences.

2. Participation - The Board does not support, endorse, or assume liability or

responsibility in any way for any staff-sponsored trip organized or promoted by an employee of the District. No staff member may advertise or solicit District students for such trips without approval of the Superintendent. Permission to solicit neither grants nor implies approval of the trip. Permission to solicit will be granted if the Superintendent is satisfied that:

a) the solicitation of students on school premises, if any, is appropriately

limited and will not interfere with class instruction;

b) the solicitation will not state or imply that participation in the trip is necessary for the improvement in a grade in any course, or is a condition for participating in any school-sponsored trip;

c) the solicitation materials will not use the names, logos, or symbols of the District or the District's schools to claim, directly or indirectly, any District approval or sponsorship of the trip;

d) the solicitation materials will include statements clearly and conspicuously informing students and parents that the trip is not a school-sponsored or school-approved trip; and

e) the request for permission to solicit satisfies any other requirements the Superintendent may establish by procedure.

3. Cost - Fee agreements are entirely between staff organizers and trip participants. No school money may be used to supplement or subsidize such privately arranged trips.

4. Grading implications - Since staff-sponsored trips are not related or endorsed by the District, such trips may not be linked by the sponsoring staff to grades or to extra credit points in any manner.

5. Student expectations - Because staff-sponsored trips are not school-sponsored activities, the staff sponsor will establish any behavior expectations and consequences that apply to students participating in the trip.

PROCEDURES FOR STAFF-SPONSORED TRIPS

1. As defined in policy, staff-sponsored trips are independent of the Board and the District and occur during non-school time.

2. Only after staff members have received permission from the superintendent in accordance with policy may they advertise or solicit student participation in the trip.

3. Principals will monitor that advertising on school premises is appropriately limited, that it does not interfere with instruction, and that all promises made to the Superintendent to keep the staff-sponsored trip independent of the Corporation are adhered to.

5520: RED-SHIRTING/RETENTION

Last Revised: November 2, 2023
Prior Revision Dates:January 26, 1984,October 27, 1988, June 14, 1990

Retention of students is something that must not be taken lightly. Some steps must be instituted to make sure that retention of students is in the best interest of that student. These guidelines must be followed to ensure that the retention will benefit the child.

1. The child must benefit from another year in the same grade.
2. Grades on the report card must show the need.
3. Parents are to be notified in writing if the child's promotion is in danger at the close of the second term and a conference is held.
4. At the discretion of the principal, students that have not performed adequately in the area of academics during the school year may be required to attend summer school or risk the chance of being retained.

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In general, children shall be placed at the grade level to which they are best adjusted academically, socially, and emotionally. The educational program shall provide for the continuous progress of children from grade to grade, with children spending one year in each grade. Some children, however, may benefit from staying another year in the same grade. Such retention may be considered when:

1. The child is in grades K-3, or, on very rare occasions, when the child is in grades 4-8. The year of retention should usually come in grades kindergarten to three.
2. The child is achieving significantly below ability and grade level.
3. Retention would not cause an undue social and emotional adjustment.
4. Retention would have a reasonable chance of benefiting the child totally.
5. If a student does not pass the IREAD-3 in the spring administration, they will be required to attend remediation and retest in the summer. After receiving those results, parents will be contacted again for final determination of retention.

Retention will not be done for athletic reasons in any circumstance.

Whenever such retention is being considered, but no later than the end of the first semester, the teacher shall confer with the principal and other staff members involved with the child, such as the child's special teachers and counselor. The parents shall be invited to a meeting with the teacher, principal, and other staff members no later than February 1 for discussion of the matter. This discussion shall consist of an explanation to the parents of their child's current academic standing in relation to the group and his/her own individual ability. Goals will be set for the second semester. During the last

two (2) weeks of the school year, another meeting will be held to review the goals and the student's progress. At this time, the final decision of retention shall be made. The final decision shall be made jointly by the principal and the parents.

As a general guideline, students should not be retained longer than one year in grades one to eight inclusive. There may be exceptions to this rule.

Prior to retaining a child sufficient conferences must be held between the teacher, the principal, and the parent. Each case should be treated individually in order that the best possible solution can be devised for the child. Individual learning plans including IEP's and specific goals should be developed and followed to ensure proper home-school coordination.

In high school students shall have completed the following numbers of credits for placement at the grade levels given: (1) Sophomores, four units; (2) Junior, nine units; and (3) Senior, fifteen units.

The principal has the final decision on the grade placement of the child.

Legal Reference: 511 IAC 6.1-5-10

5530: EXIT INTERVIEW DESIGNEE

Last Revised: November 2, 2023
Prior Revision Dates:

Under Indiana law, any student who is at least sixteen (16) years of age but is not yet eighteen (18) years of age, may withdraw from school prior to graduation after an exit interview with the student's parent or guardian and the student's principal is conducted with the appropriate school employee. Consent of the withdrawal by all three parties is required.

A student may not withdraw from school unless the withdrawal is due to 1) financial hardship and the student must be employed in order to support the family; 2) the student's illness; or 3) an order of a court with jurisdiction over the student.

The Board of School Trustees for the West Central School Corporation designates the following school personnel to conduct the exit interview of a student enrolled at the specified school who wishes to withdraw from school: West Central Middle/High School Principal.

Legal Reference: I.C. 20-33-2-9

WRITTEN CONSENT OF STUDENT WITHDRAWAL

This form is to be used to provide, as required by law, written consent of the student, his/her parent or guardian, and his/her principal to the student's withdrawal from school prior to the student's graduation or turning eighteen (18) years of age.

NAME OF STUDENT:

_____

ADDRESS:

_____

_____

GRADE/SCHOOL YEAR:

_____

BIRTH DATE OF STUDENT:

_____

DATE OF EXIT INTERVIEW:

_____

NAME OF STUDENT'S PARENT OR GUARDIAN:

_____

ADDRESS OF PARENT OR GUARDIAN:

_____

_____

_____

I, _____(name of student), request and acknowledge that I wish to withdraw from West Central High School, on _____(day, month, and year), and have completed all the required steps to withdraw from school. I understand that withdrawing from school is likely to reduce my future earnings and increases my likelihood of being unemployed in the future.

_____ _____

(Date) (Signature of Student)

_____ _____

(Date) (Signature of Witness)

I _____(name of parent or guardian of student), consent to the withdrawal of _____(name of student) from school on _____(day, month and year). I understand that withdrawing from school is likely to reduce (name of student) future earnings and increases (his/her) likelihood of being unemployed in the future.

_____ _____

(Date) (Signature of Parent/Guardian)

_____ _____

(Date) (Signature of Witness)

I, _____(name of School Principal), consent to the withdrawal of _____(name of student), from school on _____(day, month and year). I have determined that he/she is at least sixteen (16) years of age and the reasons for the student's withdrawal comply with state law.

_____ _____

(Date) (Signature of Principal)

Right to Appeal: If the principal did not consent to the student's withdrawal from school, the student's parent has the right to appeal the denial to the school board of the school corporation the student last attended. If the parent wants to appeal the denial, the parent should contact the Superintendent within 5 (five) days of the exit interview.

5541: CREDIT FOR RELIGIOUS INSTRUCTION/RELEASE TIME

Last Revised: January 2, 2025
Prior Revision Dates:

Students will be excused from school for religious instruction not to exceed two hours in any school week upon the written notice of the parent to attend religious instruction and said notice is valid only during the school year it is received.

Upon receipt of the written notice of the parent, the principal of the student's school and the entity providing the religious instruction shall work collaboratively to determine the periods the student will receive instruction, not to exceed two hours in a week, and to ensure the periods during which the student receives religious instruction are the least disruptive to the student's requires instructional time.

In the event an entity may be providing religious instruction to more than one student enrolled in the school corporation, the superintendent or a designated principal may arrange in advance with the entity the time periods the students will receive religious instruction per week not exceeding two hours in a week and least disruptive to the students' required instructional time.

The entity providing religious instructions shall keep attendance records on the public school students and such records shall be available for inspection by the public school attendance officer.

A student who is released for religious instruction under this policy shall receive the same amount of attendance credit that the student would receive for attending the public school instruction.

A secondary school student may not receive academic credits for the religious instruction the student receives under this policy.

LEGAL REFERENCE: I.C. 20-33-2-19

6011: RAINY DAY FUND

Last Revised: 1-4-24
Prior Revision Dates: March 15, 2007

The Board of School Trustees of the West Central School Corporation has established a Rainy Day Fund. The Rainy Day Fund may receive transfers of unused and unencumbered monies from other funds raised by a general or special tax levy. Such transfer cannot exceed ten percent (10%) of the total budget of the School Corporation for the fiscal year in which the transfer occurs. Transfers to the Rainy Day Fund may be made at any time during the fiscal year.
The intent of the Board of School Trustees is to use the monies in the Rainy Day Fund only for any one of the following purposes:

a. Source of funding for cash flow.
b. Purchase of supplies.
c. Purchase of Capital Outlay items.
d. Payment of fixed cost.
e. Payment of salaries and benefits.

The Rainy Day Fund is subject to the same appropriation process as are the other school corporation funds. Prior to the appropriation, the Board will make a determination that the use of the appropriation is consistent with the intent of the Rainy Day fund as set out in this policy. The purpose for the appropriation will be stated at the time it is made.

Transfers from the Rainy Day fund to the Education Fund or the Operations Fund may be made at any time by resolution adopted by the school board.

Date Adopted: March 15, 2007
Legal Reference: I.C. 36-1-8-5
I.C. 36-1-8.5-1

6012: EXTRA-CURRICULAR FUND

Last Revised: January 2, 2025
Prior Revision Dates:

Purchases from School Corporation Funds

All West Central School Corporation employees shall comply with the regulations of the State Board of Accounts, which require that all purchases of materials or services constituting a claim against budgeted funds, must be initiated on a written purchase order indicating the estimated cost of materials or services, approved in advance by the Business Manager.

A list of claims shall be made available to each member of the Board of School Trustees at each regular meeting. After action has been taken by the Board approving payment of claims, the claims shall be processed for payment. If any claim is not approved for payment, a notation shall be made on the claims list.

Any claim for purchases of materials or services which has not been authorized on a properly prepared purchase order may become the personal obligation and liability of the individual ordering the materials or services.

Extracurricular Accounting

The building principal shall be responsible for establishing procedures and keeping an accurate record of all financial transactions pertaining to the receipt of money, fees, or expenditures for all extracurricular funds. A treasurer shall be appointed in each school, shall be bonded, and shall maintain an accurate record in the manner prescribed by the State Board of Accounts. Any interest earned on extracurricular funds shall be allocated to such extracurricular funds.

No student, teacher, or other employee shall be permitted to purchase or order any item to be paid from the extracurricular accounts without first having the approval of the building principal. The building principal may also use the interest income of the extra-curricular accounts.

Claims for extracurricular purchases which have not been authorized on properly prepared purchase orders may become the personal obligation and liability of the individual ordering the materials or services.

Extracurricular Interest Income Use

The establishment of a school extracurricular interest account is permitted in each school building where extracurricular fund accounts are used. This account shall be the responsibility of

and administered by the school building principal as all other extracurricular fund. Interest earned on these funds shall be allocated to the extracurricular fund earning such interest.

This established account may be spent for any purpose for which school corporation general fund or transportation fund monies may be used, upon approval of the principal in charge of the school building and accounted for by the building treasurer. These expenditures may include, but are not limited to, the purchase of instructional or audio visual supplies or equipment, office supplies or equipment, school building repairs, and those expenditures classified as promotion of the school corporation such as appropriate meals and/or awards for students, staff, and visitors, as well as costs for the transportation of students. Equipment and materials and supplies purchased with interest income become the property of the school corporation.

In no case shall total expenditures during a fiscal period for school promotion from this account exceed $3,000.

6020: INVESTMENTS AND INVESTMENT INCOME

Last Revised: January 2, 2025
Prior Revision Dates: January 23, 1997

INVESTMENT OF CORPORATION FUNDS

The Board of School Trustees for West Central School Corporation supports and authorizes a safe and sound investment program. Such a program is viewed as an important ingredient of sound fiscal management, the purpose of which is to secure a maximum yield of interest revenues to supplement other corporation revenues for the support of the educational program of the corporation.

The treasurer for the West Central School Corporation manages the various funds of the school corporation. This includes the funds to which local and state tax dollars are received, as well as federal and community grant funds.

The objectives, in priority order, of the investment program are:

1. the safety of principal and funds,

2. the liquidity of the portfolio sufficient to enable the corporation to meet all cash flow and other operational requirements, and

3. the attainment of the highest rate of return through fiscal and economic cycles, within the boundaries of statutory constraints, cash flow requirements, and the primary objects of safety and liquidity.

Whenever there occurs a cash balance in any active fund which, though allocated to a specific use, is temporarily not needed, the balance will be invested temporarily to the best advantage of the corporation in such securities as are permitted by law.

Investment Guidelines

1. The local board of finance is to meet in January each year. A president and secretary are to be elected. The board will determine the local institutions to be designated as depositories for the year.

2. The designated treasurer(s) shall serve as the investing officer(s). Deposits in any account shall be made according to the following guidelines:

a. Make the deposit in a manner consistent with standard accounting procedures described in a protocol filed with and approved by the state board of accounts; or

b. Obtain quotes of the specific rate of interest each designated depository will pay on that account for the period contemplated for that investment.

Quotes may be solicited and taken by telephone. A memorandum of all quotes solicited and taken shall be retained by the investing officer as a public record of the political subdivision under IC 5-14-3.

3. Any deposit in a deposit account of a designated depository under this section shall be placed in the depository quoting the highest rate of interest. In addition, that investment in any designated depository or depositories shall not be counted in the amount of public funds to be prorated under subsection (a). If more than one (1) depository submits a quote of the highest interest rate quoted for the investment, it shall be prorated in accordance with the respective portions to which each is entitled to receive in accordance with their respective assets or deposits as determined by the methods set out in IC 5-13-8-10. That prorating shall be determined by the respective deposits of only those depositories submitting the highest quote. However, if more than one (1) designated depository bids the same highest rate but payment of the rate is conditioned on receiving the entire investment, choice of the designated depository to receive the investment shall be made by the investing officer in the following priority:

a. To the designated depository determined by the investment officer with regard to amounts received in other situations by the respective designated depositories, if any.

b. By lot.

4. Subsections (b) and (c) do not apply to deposits made in accounts that pay interest and that are subject to withdrawal by check or negotiable orders of withdrawal without limitations as to amount or number and without penalty.
5. If all of the designated depositories of a political subdivision decline to issue or receive any deposit account, or to issue or receive the account at a rate of interest equal to the highest rate being offered other investors, investments may be made in the deposit accounts of any financial institution designated as a depository by the state board of finance.
6. Funds may be deposited in a checking, savings, or NOW account. Funds may also be invested in overnight investments or CD's.
7. Investments must have a stated maturity of not more than two (2) years.

LEGAL REFERENCE: I.C. 5-13-8-1 et seq.
I.C. 5-13-9-1 et seq.

6100: Internal Controls/Fiscal Management

Last Revised: November 2, 2023
Prior Revision Dates: June 2, 2016

All employees, board members, consultants, vendors, contractors and other parties maintaining a business relationship with the school corporation shall act with due diligence in duties involving the school corporation's fiscal resources.

Per state law, the Board adopts the *Uniform Internal Control Standards for Indiana Political Subdivisions* in order to aid the prevention and detection of fraud, financial impropriety, or irregularity.

The Superintendent and/or Corporation Treasurer shall be responsible to implement the internal control standards designed to prevent and detect fraud, financial impropriety, or fiscal irregularities within the school corporation and to recommend to the Board any policies or procedures required to carry out the standards.

Training shall be provided on the internal control standards and procedures to all school employees and newly hired employees whose duties include receiving, processing, depositing, disbursing, or having access to school and extracurricular funds. Such training should be given periodically to these employees whenever the standards have been changed or updated, including new school corporation policies and procedures relating to the internal control standards and training to refresh the employees on the standards requirements.

Legal Reference: IC 5-11-1-27

6110: UNIFORM GUIDANCE-FEDERAL GRANTS AND AWARDS

Last Revised: November 2, 2023
Prior Revision Dates:December 2, 2016

The Board of School Trustees of the West Central School Corporation intends to administer federal grant awards efficiently and to comply with all requirements imposed by law, the awarding agency, the Indiana Department of Education, and/ or other applicable pass-through entities, and all requirements applicable to the use of federal funds. To the extent that any provision of a board policy is contrary to a federal law, regulation, term, or condition applicable to a federal award, the applicable federal requirement must be followed.

A. Internal Controls

The superintendent or designee shall be responsible to develop, monitor, and enforce effective internal controls over federal awards and grants that provide reasonable assurance that the school corporation is managing the funds in compliance with all requirements for federal grants and awards. Internal controls must meet all requirements of federal law and regulation, including the Uniform Guidance issued by the U.S. Office of Budget and Management, and shall be based on best practices.

The internal controls must provide for the following:

a. Identification of all federal funds received and expended and their program source;

b. Accurate, current, and complete disclosure of financial data in accordance with federal requirements;

c. Records sufficient to track the receipt and use of funds;

d. Effective control and accountability over assets to assure they are used only for authorized purposes;

e. Comparison of expenditures against budget; and

f. Written procedures for cash management and determining the allowability of costs.

At a minimum, the internal controls shall address the following areas.

1. Allowability

Costs charged by the school corporation to a federal grant must be allowed under the individual program and be in accordance with the cost principles established in the Uniform Guidance. Costs will be charged to a federal grant only when the cost is reasonable and necessary for the program;

a. In compliance with applicable laws, regulations, and grant or award terms;

b. Allocable to the grant;

c. Adequately documented; and

d. Consistent with school board policies and administrative regulations that apply to both federally-funded and non-federally funded activities.

Prior written approval for certain cost charges must be obtained as required by the awarding agency in order to avoid subsequent disallowances.

2. Cash Management and Fund Control

Payment methods must be established in writing that minimizes the time elapsed between the draw of federal funds and the disbursement of those funds. Standards for funds control and accountability must be met as required by the Uniform Guidance for advance payments.

3. Procurement

All purchases for property and services made using federal funds must be conducted in accordance with all applicable federal and state laws and regulations. Individuals or organizations that develop or draft specifications, requirements, statements of work, and/or invitations for bids, requests for proposals, or invitations to negotiate, must be excluded from competing for such purchases.

Contracts are to be awarded only to responsible contractors possessing the ability to perform successfully under the terms and conditions of a proposed purchase or service. No contract shall be awarded to a contractor who is suspended or debarred from eligibility for participation in federal assistance programs or activities.

Purchasing records must include at least the rationale for the method of procurement, selection of contract type, and contractor selection or rejection; the basis for the contract price; and verification that the contractor is not suspended or debarred.

4. Conflict of Interest

The requirements for conflicts of interest are applicable to all purchases or services.

Each employee, board member, or agent of the school corporation who is engaged in the selection, award, or administration of a contract supported by a federal grant or

award and who has a potential conflict of interest shall disclose that conflict in writing to the superintendent. The superintendent shall disclose in writing any potential conflict of interest to the federal awarding agency.

For purposes of this paragraph, a conflict of interest would arise when the employee, board member, or agent of the school corporation, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of these parties has a financial interest in or receives a tangible personal benefit from a firm considered for a contract. An individual who is required to disclose a conflict of interest shall not participate in the selection, award, or administration of a contract supported by a federal grant or award.

The employee, board member, or agent with a conflict of interest shall not solicit or accept any gratuities, favors, or items from a contractor or a party to a subcontract for a federal grant or award but they may accept a single unsolicited item with a value of $50 or less or multiple unsolicited items from a single contractor or subcontractor having an aggregate monetary value of $100 or less in a 12-month period. Violations of this provision are subject to disciplinary action.

5. Mandatory Disclosures

The superintendent shall disclose in writing to the federal awarding agency in a timely manner all violations of federal criminal law involving fraud, bribery, or gratuities potentially affecting any federal award. The superintendent shall fully address any such violations promptly and shall notify the board accordingly. The board may request the superintendent to develop a plan of correction for board approval in appropriate situations as determined by the board.

6. Equipment and Supplies Purchased with Federal Funds

Equipment and supplies acquired with federal funds will be used, managed, and disposed of in accordance with applicable state and federal requirements. Property records and inventory systems shall be sufficiently maintained to account for and track equipment that has been acquired with federal funds.

7. Accountability and Certifications

All fiscal transactions must be approved by the superintendent or designee and by the person managing the federal program who can attest that the expenditure is allowable and approved under the federal program. The superintendent or designee shall submit all required certifications and is authorized to sign them on behalf of the board.

8. Monitoring and Reporting Performance

The superintendent shall establish sufficient oversight of the operations of federally supported activities to assure compliance with federal requirements and to ensure that program objectives established by the awarding agency are being achieved. Performance reports, including reports of significant developments that arise between scheduled performance reporting dates, must be submitted as required by federal or state authorities.

B. Audits and Corrective Action

1. An annual independent audit will be conducted and the superintendent or designee will prepare all financial statements, schedules of expenditures, and other documents required for the audit.

2. At the completion of the audit, the superintendent or designee shall prepare a corrective action plan to address any audit findings. The plan must identify the responsible party and the anticipated completion date for each corrective action to be taken. The superintendent shall present the plan to the board for approval.

3. Compliance deficiencies discovered internally through administrative supervision must be addressed promptly with the goal of improving processes to encourage future compliance and reduce audit findings.

C. Training

All individuals responsible for the administration of a federal grant or award shall be provided sufficient training to carry out their duties in accordance with all applicable requirements for the federal grant or award.

D. Reporting Mismanagement of Federal Funds

Any employee who reasonably believes that federal funds have been misused or that the school corporation is otherwise in violation of any requirement applicable to the receipt and use of federal funds should report the matter to the superintendent or designee.

Legal References: 2. C.F.R. Part 200

6120: THRESHOLD OF MATERIAL LOSS, SHORTAGE, AND THEFT

Last Revised: January 2, 2025
Prior Revision Dates: February 4, 2016

Threshold for Material Loss, Shortage or Theft of School Fund and Property

The Board of School Trustees of the West Central School Corporation recognizes that losses, shortages, and theft of school corporation funds and other assets may occur from time to time. State law requires the school corporation to report to the Indiana State Board of Accounts all erroneous or irregular material losses, shortages or theft of school corporation funds or property. The Indiana State Board of Accounts requires school corporations to determine their own material threshold for the purposes of reporting the loss, shortage, or theft to the Indiana State Board of Accounts as required by state law.

The threshold for material losses, shortages, or theft for the West Central School Corporation which must be reported to the Indiana State Board of Accounts by the superintendent or the superintendent's designee, is as follows:

Cash Losses, Shortage, or Theft
A loss, shortage, or theft of cash from any school corporation fund is an amount over $2,500.

Other Assets, Loss, Shortage or Theft
A loss, shortage, or theft of a school corporation asset other than cash exceeding a value of $5,000.

Whenever a loss, shortage or theft of school funds or property occurs, no matter the amount or value, or the requirement to report such to the Indiana State Board of Accounts, the administration should investigate any and all losses, shortages, or thefts of school corporation funds or assets. The investigation and the resolution of the investigation must be documented by the administrator who conducts the investigation. Such documentation should be maintained in the school corporation central office. State law requires public employees who have actual knowledge of, or reasonable cause to believe, a misappropriation of school funds has occurred to report such misappropriation to the Indiana State Board of Accounts and the county prosecuting attorney.

Legal Reference: IC 5-11-1-27(j)
Legal Reference: IC 5-11-1-27(l)

6130: Bad Debt/Collection and Forgiveness of Debt

Status: Reaffirmation of Current Policy
Last Revised: April 4, 2024
Prior Revision Dates: July 11, 2019, May 5, 2022

The Board understands it is required to collect all monies owed to it by patrons, employees, parents and students, including money owed through student lunch accounts and other extracurricular accounts. Every effort should be made by the school administration to collect the monies owed to the school corporation. If the uncollectable debt is a student lunch account, it cannot be an expense to the school food service account and must be covered by non-Federal Funds.

The school corporation may forgive, waive, or write-off all of a portion of the debt if one of the following conditions is met:

1. The school administration determines that the student or parent or guardian of the student is unable to pay the debt;

2. The payment of the debt could impact the health or safety of the student;

3. The cost to pursue and collect the debt from the student and his/her parents would cost more than the potential total debt collected; or

4. There are mitigating circumstances as determined by the superintendent that preclude the collection of the debt.

Every decision to forgive, waive, or write-off a debt must be documented and include the specific facts for the decision relating to one of the above stated reasons. If the uncollected debt is from a school lunch account, the documentation must also include how the expense was covered by non-Federal Funds.

In the cases where a positive balance exists in the accounts, every effort must be made by the school administration to return the positive balance to the account holder when the person is no longer in the school corporation. If attempts made to refund the balance have been unsuccessful, the balance should be transferred to the corresponding school fund or if such transfer is not appropriate, to the school corporation general fund.

The Superintendent may develop regulations addressing specific situations relating to the above conditions.

6210: SMALL PURCHASES (UNDER $50,000)

Last Revised: November 2, 2023
Prior Revision Dates:

The superintendent will serve as the purchasing agent for the school corporation.

For purchases of supplies and/or materials under $50,000, the purchasing agent may purchase such supplies or materials on the open market for the best value and price without soliciting bids, proposals, or quotes. Purchases of food from a youth agricultural education program may be made up to $10,000 annually without soliciting bids, proposals, or quotes, or following federal procurement procedures for purchases of food.

For purchases of supplies and/or materials of at least $50,000 and not more than $150,000, the purchasing agent must invite quotes from at least three suppliers known to deal in the supplies to be purchased. Such invitations shall be made at least seven days before the fixed date for receiving the quotes. If a satisfactory quote is received, the purchasing agent shall award the contract to the lowest responsible and responsive offer. The purchasing agent may reject all quotes received if none are responsive and/or responsible. If the purchasing agent does not receive a responsive and/or responsible quote, the purchase may be made by following the process for purchases under $50,000.

6240: USE OF SCHOOL CORPORATION CREDIT CARDS

Last Revised: 1-4-24
Prior Revision Dates: January 23, 1992

The purpose of the credit card usage is to facilitate the acquisition of goods or services in a manner when purchase orders are not either feasible or practical.

The Board authorizes the Superintendent to hold a bank credit card in the name of the district and to issue such cards to designated employees. Approved card holders will be responsible for maintaining sole possession and security of issued cards at all times. If the card holder allows a purchase on the corporation credit card from another employee, the individual making the purchase is responsible for securing a receipt or reimbursing the corporation for the expense. The absence of a receipt will require the reimbursement of the purchase. The Superintendent shall establish a limit for each card holder.

Administrative Guideline 6423-Use of Credit Cards outlines the procedures for credit card use.

Purchase slips and receipts must be turned into the business office within five (5) days of the transaction. The business office shall pay in full the credit card balance no later than the due date so that finance charges will not be incurred.

District-issued credit cards shall be subject to the following:

1. Personal items shall not be charged on district-issued credit cards. If a personal item is inadvertently purchased on a district-issued credit card in violation of this policy, repayment by the employee must be made immediately;
2. The purchase of alcoholic beverages or tobacco products is strictly prohibited. Any expenditure over five hundred dollars ($500) or the purchase of gasoline for a privately owned vehicle is also prohibited without prior superintendent approval.
3. Leaving a gratuity that exceeds fifteen (15%) is prohibited;
4. Airline tickets may be purchased with a district-issued credit card only with prior Superintendent approval.

Violation of the provisions of this policy and accompanying administrative guidelines may result in revocation of the credit card and/or discipline up to and including dismissal.

The Treasurer of the West Central School Corporation is the authorized school employee to oversee the safe keeping of the corporation credit card.

1. Issuance of the credit card will be by the designated custodian.
2. The corporation treasurer shall maintain a log which will include the names of individuals requesting usage of the card, their position, estimated amounts to be charged, fund and account number to be charged, date the card is issued and the date the card is returned.
3. Once the purpose for which the card was issued the card shall be returned to the corporation treasurer.

Administrative Guideline

6423-Use of Credit Cards

To: Administrators, Directors, Principals

From: Cathy Rowe

RE: Credit Card Acceptable Use and Expectations

Date: October 12, 2022

This is the current West Central School Corporation School Board Policy relating to the use of credit cards (page 29):

Credit Card

The Treasurer of the West Central School Corporation is the authorized school employee to oversee the safe keeping of the corporation credit card.

1. *Issuance of the credit card will be by the designated custodian.*
2. *The corporation treasurer shall maintain a log which will include the names of individuals requesting usage of the card, their position, estimated amounts to be charged, fund and account number to be charged, date the card is issued and the date the card is returned.*
3. *Once the purpose for which the card was issued the card shall be returned to the corporation treasurer.*

January 23, 1992

The Indiana State Board of Accounts does not take exception to the use of credit cards by a unit provided the following:

1. The governing body must authorize credit card use through an ordinance which has been approved in a meeting and documented in the minutes.
2. Issuance must be handled by an official or employee designated by the governing body.
3. The purpose for which the credit card may be used must be specifically stated in the ordinance.
4. When the purpose for which the credit card has been issued has been accomplished, the card must be returned to the custody of the responsible person.
5. The designated, responsible official or employee must maintain an accounting system or log which would include the names of the individuals requesting use of the cards, their position, estimated amounts to be charged, fund and account numbers to be charged, date the card is issued and returned.
6. Credit cards must not be used to bypass the accounting system. PO's should be issued to track appropriations and ensure accurate accounting.

7. Payments cannot be made on the basis of a statement or credit card slip only. Procedures for payments must be no different than that for any other claims. Supporting documents such as paid bills and receipts must be available. Any interest or penalty incurred due to late filing or furnishing of documentation by an officer or employee may be the personal obligation of the responsible officer or employee.

Since the corporation treasurer is the authorized school employee tasked with oversight related to all corporation credit cards, this individual should be the only individual to communicate directly with the bank and/or credit card company in the event of fraudulent charges, missing cards, compromised credit card numbers, etc. Administrators should refrain from contacting the company.

Credit cards are not be used for personal expenses not related to Corporation or school related activities.

Under no circumstances should a credit card number be copied or otherwise retained by any staff member. The administrator signing out the assigned card is ultimately responsible for any erroneous charges. Credit cards are to be surrendered when a card holder leaves the organization.

If credit card use is needed for example, on a school sponsored trip or field trip, the card may be retained by the employee for the duration of the trip. Upon return to school, the card should be checked back in to the treasurer along with the appropriate documentation and receipts.

6401: Cafeteria Policy

Last Revised: 1-4-24
Prior Revision Dates: April 6, 2023

West Central School Corporation follows the National School Lunch Program guidelines and operates an "offer vs. serve" service. Menus can be found on the corporation website and at the entry points of each serving line. Students are required to remain on campus for lunch but can choose to bring their lunch from home. Microwaves are available to students in the middle/high school cafeteria only. The food services department ensures its compliance with the school district's Wellness Policy for food and beverages sold outside of the reimbursable meal and students are expected to comply with the policy. Caffeinated beverages, energy drinks and soft drinks are not permitted in the cafeteria during school hours (12am-3:38pm).

Share tables are available for student use in each cafeteria for unwanted food purchased through the cafeteria to share with other students. Food or beverage items placed on the share table must be consumed in the cafeteria and are not permitted in student lockers or classrooms.

Student lunch accounts are maintained through LINQ Connect and operates on a pre-deposit basis. Deposits can be made online through https://linqconnect.com/; or by supplying cash or checks through the main office. Cash or check deposits must be placed in an envelope with the student's first and last name, lunch number and the dollar amount clearly written on the outside of the envelope. Deposits will be collected by 9:50am to ensure funds are credited to the student account before lunch service. Otherwise, student lunch deposits may be credited the next school day. Students are notified of low or negative balances at the point of sale and may inquire about their account balance at any time. Purchasing additional items other than a reimbursable meal are not allowed unless the student's account has enough funds for the additional item(s). Assigned lunch identification numbers are used for all student purchases. The cafeteria does not make change. Visitors must bring exact change when purchasing a meal or deposit the difference in a student account or the angel account. Parent meals cannot be charged to a student account. Account balances that have accumulated will be carried over to the next school year with the exception of graduating seniors. Graduating seniors will visit the Director of Food Services to determine what is needed to close their account through their end of year checklist.

This institution is an equal opportunity provider.

Meal Charge Policy

West Central School Corporation makes every effort to ensure that students are provided a nutritious breakfast and lunch on a daily basis during the school year. The school corporation, Child Nutrition Program and National School Lunch Program will provide free and reduced-price meals to all qualifying students. State and school corporation officials review and approve free or reduced-price meals to qualifying students based on income standards, regulations and procedures as determined by the United States Department of Agriculture.
A Free and Reduced Application for Meals can be submitted by parents at any time during the school year. Applications can be resubmitted at any time if home or financial situations change. Applications are made available on the corporation website at https://www.wcsc.k12.in.us/wcsc/info/food-servicesnew. Paper copies of the application are also available at each of the school offices and the office of the Director of Food Services.

West Central School Corporation utilizes LINQ Connect for student meal accounts and payments can be made online at https://linqconnect.com/. Payments are also accepted in both the middle/high school and elementary offices. When submitting deposits to the office, payments must be placed inside an envelope with the student's first and last name clearly written on the outside, lunch number and the dollar amount being deposited. It is crucial that student meal accounts remain in a positive balance.

Meal Charges

1. All students will be provided a standard lunch regardless of their account balance. A la carte items or extra food and beverages cannot be purchased with a negative balance. Students must have enough funds in their account to cover the cost of any additional items they wish to purchase outside of a standard lunch.
2. A low balance notification will be sent out by email when a student's balance falls below $5.00. Email addresses must be current to receive these notifications.
3. Negative balance notifications will be sent out twice weekly by email when a student's account balance becomes negative until the debt is recovered. Email addresses must be current to receive these notifications.
4. Balances that fall below -$15.00 will receive a phone call from a member of the food services department. If the parent or guardian cannot be reached by phone, a letter and Free and Reduced Application for Meals will be sent home with the student.
5. If account balances (households) reach -$27.00 with no efforts from the parent or guardian to correct the deficit; or the parent or guardian is not responding to attempts of communication, the school building principal will be notified. The building principal will attempt to make contact with the family and if they are unsuccessful, the responsible parent/guardian will be sent to collections.
6. Accumulated negative balances with no corrective action will be turned over to the superintendent and debt collection proceedings will be pursued.

Applications/Status Changes

It is highly encouraged that all households complete a Free and Reduced Application for Meals. Applications are available on our website or can be picked up at the main office. Applications will be

processed once received by the food service department. Refer to the Parent Letter and Instructions for filling out the annual application on our website. Meal reimbursement claims made to Indiana Department of Education, will be completed monthly for the previous month's meals sold. Once reimbursement claims are submitted, student application status changes can only be backdated to the 1st of the current month and any meals charged prior to the status date change will be the household's financial responsibility. Parents/guardians are encouraged to review your student's application status through the online portal https://linqconnect.com/ for accuracy. Any discrepancies should be communicated to the Director of Food Services.

Student/Staff Meal Account Closing

It is best practice to zero out student and staff accounts before deactivation. In order to make this possible, the following steps will be initialized:

1. Student Withdrawal
    a. If a student has a credit in their account, the parent/guardian will be contacted to discuss the funds. At this time, a parent/guardian will have the choice of receiving a refund or donating the remaining funds to the angel account.
        i. If a refund is chosen, a Claim for Refund form will be sent home with the student or mailed to the parent/guardian. Once returned to the corporation, the treasurer will process the claim and mail a check to the address on file. ii. Funds donated to the angel account will be transferred by the Director of Food Services and validated by another individual, typically a kitchen manager, acknowledging the funds transfer.
2. Graduating Seniors
    a. Seniors will visit the Director of Food Services during lunch with their end of year checklist. At this time, seniors will have the option to request a refund, transfer the funds to a sibling's account or donate to the angel account.
    b. All senior account balance refunds and transfers will follow the same process as a student withdrawal described above.
3. Staff Members
    a. Staff members will need to contact the Director of Food Services before their departure from West Central School Corporation and fill out an Accounts Payable Voucher or donate their remaining funds to the angel account.

The term "angel account" refers to an account created to collect and disburse funds to the meal accounts of students experiencing hardship. Hardship decisions are decided by both the Director of Food Services and kitchen manager. Transfers in and out of this account are completed by the Director of Food Services and validated by the kitchen manager. All unclaimed funds (student, adult) will be deposited into the "angel account".

Collection of Debt and Balances Owed by Parent/Guardian

The West Central School Board understands it is required to collect all monies owed to it by patrons, employees, parents and students, including money owed through student lunch accounts and other extracurricular accounts. Every effort will be made by the school administration to collect the monies owed to the school corporation including collection procedures.

The school corporation is willing to work with parents to ensure that their child is properly fed. Parents have the option to send a lunch or breakfast from home. However, if there is no attempt made by the

responsible parent/guardian to deposit funds to cover the charged meals or provide a lunch for a child, the school administrator and/or superintendent may begin debt collection proceedings or a referral to the Department of Child Services may be initiated.

In the cases where a positive balance exists in the accounts, every effort must be made by the school administration to return the positive balance to the account holder when the person is no longer in the school corporation. If attempts made to refund the balance have been unsuccessful, the balance should be transferred to the corresponding school fund or if such transfer is not appropriate, to the school corporation general fund.

The superintendent may develop regulations addressing specific situations relating to the above conditions.

This institution is an equal opportunity provider.

Angel Account Policy

West Central Food Services Department maintains an angel account funded by donations. These funds are used to cover temporary shortfalls in student meal accounts. Donations to this account come from individuals, groups, businesses and graduating students. Individual schools do not maintain separate funds and all donated funds are held in one account. Distributions from this account are done on a case-by-case basis.

The following controls have been put in place to ensure proper deposit into the angel account are ethically executed:

1. Any donations made to the angel account will be verified by two individuals prior to deposit and documented on the Monthly Received Deposit Verification form.
2. Deposits, whether cash/check or student/staff transfers made to the angel account will be completed by the Director of Food Services and verified by a second food service individual, normally a kitchen manager.
3. Tracking of donations will be maintained in the angel account notes through TITAN: A LINQ SOLUTION.

The following controls have been put in place to ensure proper transfers to student accounts are ethically executed:

1. Transfers out of the angel account to student accounts will be decided between the Director of Food Services and another knowledgeable individual familiar with the student's circumstance. These individuals include but are not limited to: Kitchen Staff, Counselor, Principal or Superintendent.
2. Upon agreement of the student's need for financial assistance, the Director of Food Services will transfer funds from the angel account to the student in need bringing their account balance to zero or other predetermined amount.
3. Transfers will be documented and verified in the student's account notes indicating the reason for the transfer and who the deciding parties were. Once funds are transferred, verification of the transfer will be completed by a second food service individual, normally a kitchen manager.
4. Tracking of all angel account fund transfers to student accounts will be maintained in the student's account notes through TITAN: A LINQ SOLUTION.

In all cases, parents/guardians will be requested to complete a Free and Reduced Meal application prior to angel fund transfers to their student(s) if they have not done so for the current school year. West Central School Corporation reserves the right to request parent/guardian financial data prior to angel account transfer determinations if desired. Neglecting or refusing to supply meal funds to student accounts by the parent/guardian is not an acceptable reason for angel account fund transfers and if it is determined that a parent/guardian is neglecting their child, Department of Child Services may be contacted.

This institution is an equal opportunity provider.

Discontinuation of Special Dietary Accommodations Form

If you wish to discontinue your child's special dietary accommodations or your child no longer needs an accommodation, please complete this form. Return this form to .

Student Name	**Date of Birth**	**Grade Level/Classroom**	**Name of School/Site**
Name of Parent/Guardian	**Phone Number of Parent/Guardian**		

By signing this form, I certify that the student listed above no longer needs the previously prescribed meal modification. I understand that the student will now choose their meals, including all food and beverage items from the standard school food and beverage options once this accommodation has been discontinued.

_____	_____	_____	_____
Signature of Parent	Date	Signature of Medical Authority (Optional)	Date

School Staff/Faculty Use Only:

Form Received on
Accommodations discontinued on

Nurse Contacted on
504 Coordinator Contacted on

Requesting an Accommodation for Special Dietary Needs Procedure and Process

West Central School Corporation adheres to specific United States Department of Agriculture (USDA) guidelines in providing special dietary accommodations for students. A "reasonable modification" is a change or alteration in practices or procedures to accommodate a disability that ensures that all students have equal opportunity to participate in or benefit from the program. In accordance with the criteria set forth in 7 CFR Part 15b, those students who are unable to eat the school meal as is due to a disability, medical need, and/or impairment are accommodated at no additional charge. Meal modifications must be related to the disability or limitations caused by the disability. The USDA regulations for school nutrition programs does not require meal modifications for children whose special dietary needs do not constitute a disability, including those related to religious or moral convictions, general health concerns, and personal food preferences.

Per Section 504 of the Rehabilitation Act of 1973, parents/ guardians have a right to an evaluation of their student if the district has reason to believe that the student has a mental and/or physical impairment that substantially limits a major life activity, which can involve eating/digestion. Students have the right to this evaluation before any plan for accommodation. Parents/guardians should ensure that they contact the school if they feel as though an evaluation would be appropriate.

Parents/guardians should complete the necessary information on the medical statement form to request an accommodation for their student. The school may contact the student and parents/guardians for additional information as needed. For example, if the substitutions needed for accommodations fall outside of the USDA meal pattern, the form must be signed by an authorized medical authority with prescriptive privileges in the state of Indiana.

Procedural Safeguards

If the household feels that reasonable accommodations are not being met, they have the right to contact the school's 504 Coordinator and:

- File a grievance if they believe a violation has occurred regarding the request for a reasonable modification;
- Receive a prompt and equitable resolution of the grievance;
- Request and participate in an impartial hearing to resolve their grievances;
- Be represented by counsel at the hearing;
- Examine the record; and
- Receive notice of the final decision and a procedure for review, i.e., right to appeal the hearing's decision.

Accommodations Coordinator

The safety of your child comes first. If you have a child with a disability, medical need, or impairment, please submit your request for accommodation by completing this form and submitting it to: student's main school office or acampbell@wcsc.k12.in.us

For more information about accommodations for meals and the meal service for students with disabilities, please contact Director of Food Services (219) 567-9119 x1542

USDA Nondiscrimination Statement

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), disability, age, or reprisal or retaliation for prior civil rights activity.

Persons with disabilities who require alternative means of communication for program information (e.g. Braille, large print, audiotape, American Sign Language, etc.), should contact the Agency (State or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English.

To file a program complaint of discrimination, complete the USDA Program Discrimination Complaint Form, (AD-3027) found online at: http://www.ascr.usda.gov/complaint_filing_cust.html, and at any USDA office, or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by:

(1) mail: U.S. Department of Agriculture Office of the Assistant Secretary for Civil Rights 1400 Independence Avenue, SW Washington, D.C. 20250-9410; (2) fax: (202) 690-7442; or (3) email: program.intake@usda.gov.

This institution is an equal opportunity provider.

Special Dietary Needs Medical Statement Form

This school/facility participates in a federally funded Child Nutrition Program and any meals, milk, and snacks served must meet program requirements. Reasonable meal accommodations must be made when the accommodation requested is due to a disability or impairment. If you are requesting a meal accommodation or substitution, please complete and sign this form. A note from a medical authority may be required. Please obtain a doctor (DO or MD), nurse practitioner (NP), or physician assistant (PA) signature if your student requires a special menu or meal modification.

If you have any questions, please contact Food Services at (219) 567-9119 x1542 .

Parent/Guardian:

Student's Name	Date of Birth	Grade Level/Classroom	Name of School/Site

Name of Parent/Guardian	Phone Number of Parent/Guardian

Disability/Medical Need of Student:

☐ Allergy ☐ Texture Modification

☐ Intolerance ☐ Other

Allergies and Intolerances

What food(s)/type(s) of foods should be omitted? Please be as specific as possible.

List foods to be substituted.

Texture Modifications

Food should be:	Liquids should be:
☐ Pureed	☐ Pudding Thick
☐ Diced/Finely Ground	☐ Honey/Nectar Thick
☐ Chopped/cut into bite-size pieces	☐ Thinned
☐ Other (please specify):	☐ Other (please specify):

Additional Information

Provide an explanation of how the student's physical or mental impairment restricts the student's diet

Describe any additional details for clarification such as required special adaptive equipment, reactions to allergies, etc.:

Signature of Parent/Guardian	Date
Name of Medical Authority & Title (please PRINT)	**Provider Phone Number**
Signature of Medical Authority	**Date**

Signing the following section is optional but may prevent delays by allowing school personnel to speak with the medical authority.

Health Insurance Portability and Accountability Act Waiver (HIPPA)

In accordance with the provisions of the Health Insurance Portability and Accountability Act of 1996 and Family Educational Rights and Privacy Act (FERPA), I hereby authorize_____(medical authority) to release such protected health information of my child as is necessary for the specific purpose of special diet information to_____(school/program), and I consent to allow the medical authority to freely exchange the information listed on this form and in their records concerning my child, with the school program, as necessary. I understand that I may refuse to sign this authorization without impact on the eligibility of my request for a special diet for my child. I understand that permission to release this information may be rescinded at any time except when the information has already been released. This information is to be released for the specific purpose of special diet information. The undersigned certifies that he/she is the parent, guardian, or representative of the child listed on this document and has the legal authority to sign on behalf of that child.

Parent/Guardian Signature:_____**Date**:_____

School/Faculty Use Only:

☐ Form Received on_____. ☐ Accommodation will begin on_____.

☐ Accommodations within meal pattern. ☐ Accommodations not within meal pattern.

☐ Form incomplete. Parent contacted on_____.

☐ Form complete. Accommodation will not be made. ☐ Request not reasonable. ☐ 504 coordinator contacted.

_____ _____

Date Signature of Food Service Director/Contact

6410: FOOD SERVICES PERSONNEL CODE OF CONDUCT

Last Revised: November 2, 2023
Prior Revision Dates:

All employees shall perform their duties in a manner free from conflict of interest to ensure that the school corporation's business transactions are made in compliance with applicable laws and regulations and in a manner that maintains public confidence in the schools.

No employee shall participate in the selection, award or administration of a contract supported by federal funds or in any other transaction in which the school corporation is a party if he/she has a real or apparent conflict of interest in the transaction.

A conflict of interest would arise when the employee or any member of his/her immediate family, his/her (business) partner, or an organization that employs or is about to employ any of these parties has a financial or other interest in the entity selected for the award. For the purpose of this policy, "immediate family" is defined as spouse, brother, sister, parent, son or daughter.

Staff Gifts and Solicitations

All employees are prohibited from accepting money or things of material value from persons or entities doing business with, or desiring to do business with, the school corporation. Employees may accept unsolicited items of nominal value such as those that are generally distributed by a company or organization through its public relations program.

Violations

Employees who violate this code of conduct may be subject to discipline, up to and including termination of employment.

LEGAL REFERENCE: 7 CFR 3016.36(b)
7 CFR 3019.42

6420: FREE AND REDUCED LUNCH SECOND AUDITS

Last Revised: January 2, 2024
Prior Revision Dates: February 4, 2016

Review and Second Audit of Free and Reduced Lunch Applications

All schools should process Free and Reduced Lunch applications following the most current USDA and State rules and regulations. The employees processing the applications are to be trained and to understand the requirements of the program and the application process. More than one employee must be involved in the approval process of Free and Reduced Lunch applications. An additional employee should be reviewing the Free and Reduced Lunch applications approval to verify the original approver is correctly and accurately processing the free and reduced applications.

Electronically Logging to Determining Eligibility
Since West Central School Corporation manually inputs the Free and Reduced Lunch applications into a computer program, a second audit will be performed of Free and Reduced Lunch applications on a yearly basis. The second audit will be completed by a school employee other than the original approver. The auditor will review 25% of the applications that are received by the school.

7020: CHEMICAL USE IN SCHOOL BUILDINGS

Last Revised: November 2, 2023
Prior Revision Dates:December 15, 2011

This policy applies to all chemicals purchased for use in child occupied school buildings.

The purpose of this policy is to reduce student and staff exposure to chemical hazards from hazardous chemicals used or kept at the school. By selecting products with lesser hazards, and by properly using these products, there will be a reduced risk of exposure to these products.

The superintendent will be responsible for the implementation and enforcement of this policy.

Inventory

Each year, school corporation personnel as assigned by the superintendent or designee shall conduct a corporation-wide chemical inventory. During the inventory, expired and unwanted chemicals are to be identified for proper disposal.

Purchasing

Chemical purchases shall adhere to the following protocol.

1. This school has identified the following procedures and guidelines for purchasing chemicals in an effort to minimize student and staff exposure to chemical hazards:

    a. The principal, Director of Maintenance and Superintendent shall determine the appropriateness of chemical purchases. The superintendent shall authorize all chemical purchases.

    b. Donated items such as hand sanitizers and any products employees want to bring into the school must be approved by school administration.

2. First in first out method will be followed. Over purchasing and stock piling are not permitted.

3. The least toxic chemical that is still effective for the job is to be selected. Material Safety Data Sheets should be reviewed to make this determination. This includes selection of cleaning supplies as well as teaching tools for classrooms. Micro and green chemistry are encouraged.

4. Chemicals listed on the Banned Chemical List shall not be purchased.

Material Safety Data Sheets (MSDS) will be available at the West Central School Corporation Office and in the office of the Director of Maintenance. The MSDS books are to be updated annually and as new chemicals are purchased.

Use

1. Chemicals will be mixed and used according to manufacturer's directions. Measuring devices or direct mixing systems are to be used. Any warnings, especially requirements for ventilation are to be followed.

2. When possible, use of cleaning products should be performed when students are not present.

3. Areas where chemicals are being used will be properly ventilated, including classrooms and laboratories.

4. Only properly trained staff may use hazardous chemicals. Staff will receive annual training and when required, certification (i.e. pesticide applicators).

5. Required notification procedures will be followed (i.e. pesticide notifications)

Storage

1. Secondary containers will not be used to store chemicals unless they are properly labeled and approved for such use.

2. Storage areas will be properly ventilated.

3. Storage areas will be compatible with the chemicals being stored in them.

4. Reactive chemicals will not be stored near each other.

5. Hazardous chemicals will be stored in locked areas at all times.

6. All original containers will be labeled with the date received

Disposal

1. Unwanted, unused, and outdated chemicals should be identified on a regular basis but at least annually. These identified chemicals should be marked for disposal.

2. Disposal will follow state regulations. Pouring down the drain or throwing in the trash is not acceptable or proper disposal in most instances.

Spills, Explosions, and Accidents (including inhalation, ingestion, or direct contact)

1. Employees should immediately notify first responders via 911 or local officials and the building principal including the superintendent.

2. Call 911

3. Call Indiana Poison Center at 1-800-222-1222

LEGAL REFERENCE: 410 I.A.C. 33-4-8

7021: PEST CONTROL/PESTICIDE USE/INTEGRATED PEST MANAGEMENT

Last Revised: January 2, 2025
Prior Revision Dates: November 9, 2000

Pest Control Policy

The School Corporation is committed to providing students & staff a safe environment. It seeks to prevent children from being exposed to pests and pesticides. While pesticides protect children from pests that may be found in the school and its surrounding grounds, under some circumstances they may pose a hazard to children. Therefore, pest control practices may involve a variety of chemical and non-chemical methods that are designed to control pests effectively while minimizing potential pesticide exposure to children.

This policy does not apply to the use of the following pesticides: 1) When used in normal cleaning activities: germ killers, disinfectants, sanitizing agents, water purifiers, and swimming pool chemicals; 2) personal insect repellents when self-applied; and 3) gel baits or manufactured enclosed insecticides when used where students and staff members do not have access to the insecticides.

Pesticides will be applied by certified pesticide applicators and when students and staff members are not present, such as during non-instructional time or school vacation periods.

The corporation will:
1. Inform parents annually and staff members of the corporation's pest control policy at the beginning of the school year by a separate memorandum or as a provision in the student & staff handbooks.
2. Provide the name and phone number of the person to contact for information regarding pest control.
3. Establish a registry of parents and staff members who want to receive advance notice of all pesticide use and provide such notice.
4. Provide notice of planned pesticide applications to parents and employees who have requested advanced notice.
5. Provide notice of all pesticide applications to school nurse.
6. Maintain written record for at least 90 days of any pesticide application.

The corporation will provide notice at least two school days prior to the date and time the pesticide application is to occur. The notice will include the date and time of the pesticide application, the general area where the pesticide is to be applied and the telephone number to contact the school for more information.

In case of emergency pesticide applications because of immediate threat to the public health, the school shall give written notice as soon as possible.

The corporation may provide for training of school employees to become certified pest control applicators. Financial support for such training may be provided by the corporation subject to budgetary constraints of the corporation.

The Superintendent shall prepare and disseminate regulations for the implementation of this policy.

7100: VEHICLE IDLING ON SCHOOL GROUNDS

Last Revised: November 2, 2023
Prior Revision Dates:December 15, 2011

The purpose of this policy is to eliminate all unnecessary idling by corporation school buses such that idling time is minimized in all aspects of school bus operation and to reduce vehicle exhaust that has the potential to be drawn into the building.

Vehicle exhaust from idling school buses can accumulate in and around the bus and pose a health risk to children, drivers and the community at large. Exposure to vehicle exhaust can cause lung damage and respiratory problems. Vehicle exhaust also exacerbates asthma and existing allergies, and long-term exposure may increase the risk of lung cancer. Idling buses waste fuel and financial resources of the school corporation.

This policy applies to the operation of every corporation-owned and contracted school bus, and public and private vehicles on school grounds.

The school corporation shall post signs in areas where idling is prohibited.

Public and Private Vehicles Idling Time

1. Drivers of all public and private vehicles are to turn off the engine if the vehicle is to be stopped more than 5 minutes in locations where vehicle exhaust may be drawn into the building or while on school grounds.

Corporation Vehicle Idling Time

1. When school bus drivers arrive at loading or unloading areas to drop off or pick up passengers, they should turn off their buses as soon as possible to eliminate idling time and reduce harmful emissions. The school bus should not be restarted until it is ready to depart and there is a clear path to exit the pick-up area.

2. School buses will not idle (on school grounds or off school grounds) for longer than five (5) minutes unless:

A. There are extreme weather conditions (meaning 30 degrees Fahrenheit or less) and the purpose is to warm the interior of the bus,

B. Longer idling time is necessary to facilitate the loading and unloading of students of special needs,

C. There are safety or emergency situations,

D. There are maintenance or mechanical inspection/repair issues requiring a longer time to facilitate the inspection/repair process, or

E. The bus is idling in traffic.

3. Buses should not idle while waiting for students during field trips, extracurricular activities or other events where students are transported off school grounds.

4. In colder weather, schools are directed to provide a space inside the school where bus drivers who arrive early can wait.

5. Bus schedules should be revised so that school bus caravanning can be avoided and the cleanest buses assigned to the longest routes.

LEGAL REFERENCE: 410 IAC 33-4-3

8002: TOBACCO FREE CAMPUS

Last Revised: April 4, 2024
Prior Revision Dates: April 9, 2009, August 2, 2018

The Board of School Trustees for West Central School Corporation intends to provide a healthy, comfortable, and productive environment for students, staff, and citizens. The Board remains committed to reducing involuntary exposure to tobacco smoke among students and staff. The Board believes that the use of tobacco products in a school building denies students, staff, and visitors access to clean air, introduces a health hazard to those persons, and interferes with the learning and teaching environment. It is the intent of the Board to create a "tobacco-free" school environment in its buildings and on its grounds.

"Tobacco" includes any lighted or unlighted cigarette, cigar, pipe, bidi, clove cigarette, and any other smoking product; spit tobacco, such as smokeless, dip, chew, and snuff, in any form; and all electronic nicotine delivery systems (ENDS) such as e-cigarettes, vaping devices, and hookah pens.

Tobacco promotional items, including clothing, bags, lighters, and other personal articles, are not permitted on school grounds, in school vehicles, or at school-sponsored events.

Tobacco advertising is prohibited in all school-sponsored publications and at all school-sponsored events.

All persons, including students, employees, and visitors, shall not be permitted to possess or use tobacco products of any kind or in any form while:

1. Inside school corporation-owned buildings.

2. Being transported to or from school events in school corporation-owned, contracted, or other authorized vehicles.

3. On school corporation-owned property outside school corporation-owned buildings.

Any individual who observes a violation of this policy is encouraged to report it under Section B of this policy.

A. Students

Any violation of this policy by students shall be referred to the building principal or assistant principal. Students who violate provisions of this policy shall be subject to the provisions of school board policies and student handbooks regarding student progressive discipline.

B. Visitors

A visitor who is observed using tobacco products inside school corporation-owned buildings shall be asked to refrain from such use.

If a visitor fails to comply with a request to refrain from using tobacco products, he/she shall be referred to a building principal or other school corporation supervisory staff member who is responsible for the building in which the violation occurred. The principal or supervisor shall decide on further action to be taken, which may include a directive to leave school property. Repeated violations may result in a recommendation to the Superintendent to prohibit the violator from entering school corporation property for a specified period of time. If deemed necessary by a school official, an appropriate local law enforcement agency may be contacted to assist with enforcement of this policy.

C. Employees

Any violation of this Policy by an employee will be referred to his/her immediate supervisor for appropriate disciplinary action.

The superintendent and school principals shall notify students, families, school employees, and visitors of this policy in handbooks and newsletters, on posted notices or signs at every school entrance and other appropriate locations, including the school corporation website.

Legal Reference: 20 U.S.C. 7973(a)

IC 7.1-5-12

8200: PUBLIC COMPLAINTS

Last Revised: April 4, 2024
Prior Revision Dates:

The Board recognizes that situations may arise in the operation of the school corporation which are of concern to parents or the public. The Board believes all concerns should be resolved at the lowest level of decision making by the individuals closest to the concern. The concerns are best dealt with through communication with appropriate staff members and the Board.

Complaints should be addressed as close to the concern or source of complaint possible. Problems relating to an individual classroom should first be brought to the attention of the teacher involved. Problems relating to a particular school should be brought to the attention of the building principal. Problems involving specific areas such as special education, transportation, or food service, should be called to the attention of the administrator who has responsibility for that program. The Superintendent or designee can direct persons to the appropriate person to respond to a specific complaint.

Complaints about individual school personnel should first be brought to the attention of that individual and then to that person's immediate supervisor.

If a complaint is not addressed in a timely manner or if the complainant is not satisfied with the disposition of the complaint, the complainant may appeal to the next higher level.

Any complaints or concerns which any person desires to make to the Board may be presented or referred in writing to the Superintendent, who may bring them before the Board.

<u>Complaints/Concerns Made to School Board Members</u>

Whenever a complaint is made directly to the Board as a whole or to a Board member as an individual the complainant should be referred to the appropriate school administrator for resolution. Board members should direct patrons to the person best able to resolve the complaint.

Procedures for Parental Complaints:

- A complaint should first be discussed with the teacher and principal of the school with the object of resolving the matter.

- Should the matter remain unresolved, the parent should communicate with the Superintendent who will, if requested, meet with the person lodging the complaint. The Superintendent will as soon as possible communicate with the person lodging the complaint in order to discuss the disposition of the matter.

- An appeal from the decision of the Superintendent may be made in writing to the Board of Education.

If necessary, the administration, the person who made the complaint, or the employee involved will meet with the Board for the purposes of appeal and a decision by the Board. All parties involved will be asked to attend such a meeting for the purpose of presenting additional facts, providing further explanations, and clarifying the issues. The Board will conduct such meetings in a fair and just manner and may request a disinterested third party to function as moderator to help reach a satisfactory solution.

8300: GIFTS AND CONTRIBUTIONS

Last Revised: January 2, 2025
Prior Revision Dates:

Students and parents shall be discouraged from presenting gifts to District teachers.

Where a student feels a spontaneous desire to present a gift to a teacher, the gift shall not be elaborate or unduly expensive.

The Board of Education shall consider a letter expressing gratitude and appreciation as more appropriate than the giving of gifts.

GIFTS TO SCHOOL PERSONNEL

The acceptance of gifts or favors to some persons under some circumstances can place the person accepting such gift or favor in a position where a return gift or favor might be indicated. Further, the tendering of gifts to teachers or to other school personnel might place an undue hardship on one group of individuals as opposed to another and create problems of embarrassment.

Therefore, the giving of personal gifts from pupils to teachers or other school personnel or from teachers or other school personnel to supervisors in the administrative hierarchy of the school corporation shall be discouraged.

In accordance with the intent of this policy, gifts of an especially sentimental value, of little or no monetary value, such as valentines made by pupils, cookies or other tokens of this nature, may be encouraged.

The soliciting of money, gifts or donations from pupils or groups of pupils such as classes, athletic groups, musical groups, etc. is prohibited and the acceptance of money or donations from these individuals or groups, other than for school purposes, is prohibited. Further, no employee may solicit or accept, either directly or indirectly, any gift, donation, emolument, gratuity or favor with any substantial economic value which might reasonably be interpreted by normal community standards as being of such a nature that it could affect his impartiality of judgment.

GIFTS AND FAVORS

The Board does not condone the acceptance of gifts or favors by staff members from patrons, salespersons or other persons interested in the affairs of the corporation.

School employees shall not accept gifts or special favors from agents or firms selling books, supplies, equipment or rendering services to the schools.

Monetary reimbursements for any duties performed for an outside group during the regular working day shall not be accepted by that employee except in the case of a classroom teacher performing a specific approved duty such as a critic teacher for a college or university.

GIFTS TO BOARD MEMBERS

Board members will not solicit, accept, or receive any gift which has a value in excess of $50, except for gifts unrelated to Board functions.

A school Board member who receives or whose immediate family receives a gift in any one occurrence which has a value in excess of fifteen dollars ($15) will file a written report of the gift with the secretary of the school Board. The report will show the nature, amount, donee, and donor of the gift.

If a gift is made to a school Board member or an immediate family member which cannot be precisely attributed to that recipient, the report will list the pro rata value of the gift attributable to the donee if that value exceeds fifteen dollars. The fact of apportionment will be disclosed. A gift may not be apportioned between multiple donors to reduce its "value" unless it qualifies as a separate occurrence.

This report will be filed with the secretary of the school Board by the fifteenth day of the month following the month in which a gift is provided.

All reports filed will be maintained by the secretary and be available for public inspection as provided by State law.

The secretary will also maintain any report filed by the Board members of the school district who desire to report a gift made to them or their immediate family members that did not exceed fifteen dollars in value. This report is strictly optional with each Board member.

GIFTS TO AND SOLICITATIONS BY STAFF

An employee will not accept or solicit any gift, favor, service, or other benefit that could reasonably be construed to influence the employee's discharge of assigned duties and responsibilities.

An employee will not have a personal financial interest, a business interest, or any other obligation that in any way creates a substantial conflict with the proper discharge of assigned duties and responsibilities or that creates a conflict with the best interest of the district.

An employee who believes he or she has or may have a conflict of interest will disclose the interest to the superintendent or designee, who will take whatever action is necessary, if any, to ensure that the district's best interests are protected.

Endorsements

Employees will not recommend, endorse, or require students to purchase any product, material, or service in which they have a financial interest or that is sold by a company that employs the district employee during nonschool hours. Professional employees will not recommend or require students to purchase a specific brand of school supplies if there are other brands that are equal and suitable for the intended instructional purpose.

Sales

Employees will not use their positions with the district to gain entrance to a home within the district or to obtain an audience with any district resident for the purpose of attempting to sell products or services.

The acceptance of a token of appreciation is not to be considered a violation of this policy.

8500: VISITORS TO SCHOOL BUILDINGS

Last Revised: 1-4-24
Prior Revision Dates:

The Board of Trustees welcomes the active interest of parents and citizens in their public schools and invites the community to visit at any time. However, since schools are places of work and learning, certain limits must be set on visits. In addition, the building principal is responsible for all persons in the building and on the grounds. For these reasons, the following policy applies to visitors to the school:

• Anyone who is not a regular staff member or student of the school will be deemed a "visitor."

• To assure that no unauthorized persons enter the school with wrongful intent, all visitors will report immediately to the school office and provide their driver's license/state-issued ID card to sign in upon request. In addition, authorized visitors will be given a visitor's badge, which is to be worn at all times. Visitors must sign out in the office before exiting the building. (This policy does not apply when parents have been invited to an assembly or school program.)

• Parents or citizens who wish to observe a classroom while school is in session must arrange such visits in advance with the teacher so that class disruption may be minimized.

• Teachers should not take class time to discuss individual matters with visitors.

Administrator's Authority

The superintendent, principals, or their designees are authorized to refuse entry onto school grounds to persons who do not have legitimate business at the school and to request any unauthorized person or person engaging in unacceptable conduct to leave the school grounds.

Law Enforcement

The superintendent or designee is authorized to request the assistance of law enforcement officers when they deem it necessary. In addition, the superintendent or designee may seek prosecution to the full extent of the law when persons violate the provisions of the district policy regarding trespassing on school grounds, damage to school property, loitering, and disruptive activity.

8513: POLITICAL ACTIVITIES ON SCHOOL PROPERTY

Last Revised: April 4, 2024
Prior Revision Dates:

The Board recognizes school property, paid for by all the people of the school corporation, should not be used for partisan political purposes except as provided for in policies pertaining to the use of school buildings by civic and political organizations.

Political Activities

Also, one of the primary purposes of the school corporation is to create an environment that will permit students to grow and develop; and this environment includes the formal academic program and extends to the many extra-curricular activities sponsored by the school corporation. Political activities do not always contribute to a positive learning climate and can be disruptive, divisive, and distracting. Therefore, the following political activities are prohibited at school activities on all corporation property, within all school buildings, and at all school-sponsored activities:

1. Literature supporting or opposing one or more candidates, issues, or a particular point of view shall not be distributed on or in corporation buildings or grounds, inside of school buildings, or on school buses immediately before or after school or while school is in session.

2. Literature supporting or opposing one or more candidates, issues, or a particular point of view shall not be distributed at school-sponsored extra-curricular activities wherever they may occur. This regulation shall not prohibit the distribution of literature outside of the entrances and exits of athletic events providing such distribution does not interfere with the ability of individuals to freely enter or leave the facility, is not disruptive, and does not take place when school is in session.

3. Political literature or campaign posters supporting one or more candidates, issues, or a particular point of view shall not be displayed within the schools or on school property.

Political Advertising

Advertisements for political offices or other political purposes shall not be permitted in any publications sponsored by the school corporation nor shall any political advertisements be distributed on any school premises except as prescribed by state statutes. Exceptions shall be allowed when such advertisements are used for instructional purposes in classroom activities.

When the school facilities are used as a polling place, state regulations will be followed with respect to political activities, the display of political posters, and the distribution of political literature on school property.

8540: COMMUNITY USE OF SCHOOL FACILITIES (RATES, FEES, APPLICATIONS, ACCESS)

Last Revised: November 7, 2025
Prior Revision Dates: October 21, 1993

The Board supports the community education concept, which encourages the use of district facilities by community members for recreation, education and service activities. The following categories have been determined in order of priority for building and grounds usage:

1. Activities directly related to the required K-12 school program, including graduation;
2. Activities related to the extracurricular K-12 school program such as sports and seasonal programs;
3. Community school-sponsored programs such as classes and workshops;
4. Youth-related nonschool activities;
5. Adult-related nonschool activities.

The Board expects the users to treat the facilities with respect. A Facility Usage Contract form must be submitted by the responsible person or group to the school corporation office for approval. The users must agree to all guidelines on the Facility Usage Contract form. The original copy of the agreement will remain in the corporation office, with copies distributed to the appropriate building administrator, building custodial staff and facility user.

Approval for using the facilities will be granted for a period not to exceed three months. Requests must be resubmitted if the user desires to continue usage.

The superintendent will encourage the involvement of staff, parents and the community in the development of specific building-use regulations.

Community Use of School Facilities: It shall be the policy of the school authorities to encourage the proper use of school properties by organizations and individuals of the community under the following regulations:

a. The time and nature of such use shall not interfere with the scheduled school activities.

b. School facilities shall not be rented to individuals or organizations for non-benevolent profit making through charged admission, sale of program advertising, or required donation. Under no circumstances shall school facilities be rented for repeated or multiple occasions for private profit or for club room purposes.

c. The organization or individual using the building shall be responsible to the Superintendent or his/her representative as designated by him/her in writing, for the care of school property and for the conduct of participants and spectators. The use of liquor, profane or indecent language, or of any vulgar act or move, and for the practice of gambling in any form shall not be permitted on the school premises.

d. A separate application form shall be required for each date requested except for school sponsored organizations and parent-teacher groups, which may use one application for a series of meeting dates. Applications shall be directed to the Superintendent of Schools. Requests for

use of building facilities are to be made at the office of the Superintendent,1850 S US 421 or the building principal's office.
e. Building rental for adult parties is discouraged, however are permissible with proper permissions.
f. Regular rubber soled gym shoes are required for play on a gym or activity room floor.
g. Appropriate supervision must be provided whenever the school building is in use. A cook must be present whenever a kitchen is used.
h. Any individual or organization that has failed to meet all obligations growing out of previous rental is to be denied further renting privileges until settlement has been made in full.
i. In each case, a written contract is to be entered into between the Superintendent and the individual or organization renting the facility, setting forth the date, the nature of the program, the rental charges and other conditions. The person signing the rental contract should be a resident of the West Central School Corporation, and if not a resident, will pay the according fee on the fee schedule; and if representing an organization must be an established, recognized and generally accepted group.
j. The Board of Education reserves the right to revoke any applications for use of school facilities, and refund any payment made by the applicant if it is found that such applicant has misrepresented the facts as to the character of his organization, purpose of the program contemplated or use of proceeds therefrom. The Board of Education reserves the right to refuse privileges to any and all organizations.

Attachment: West Central School Corporation Facility Usage Contract

8550: SERVICE ANIMALS-PUBLIC EVENTS

Last Revised: 1-4-24

The Board adopts this policy to ensure that individuals with disabilities are permitted to participate in and benefit from school corporation programs, activities, and services, provided to the public and to ensure that the school corporation does not discriminate on the basis of disability.

Definition

Service animal means a dog or a miniature horse individually trained to do work or perform tasks for the benefit of an individual with a disability. The work or tasks performed by a service animal shall be directly related to the handler's disability.

The provision of emotional support, well-being, comfort, or companionship does not constitute work or tasks for the purpose of this policy.

A miniature horse may be allowed as a service animal if:

1. The miniature horse is house broken.
2. The facility can accommodate the type, size, and weight of the miniature horse.
3. The presence of the miniature horse does not compromise the safe operation of the facility.
4. The handler has sufficient control of the miniature horse.

Admission of Service Animals to Public Events

Individuals with disabilities may be accompanied by their service animals while on school corporation property for events that are open to the general public. This right of access does not extend to the schools generally or to other activities that are not open to the general public.

School administrators may inquire of the owner or handler of an animal whether the animal is required because of a disability and the specific tasks that the animal has been trained to perform but shall not ask questions about an individual's disability.

The school corporation shall not require an owner or handler of a service animal to pay an extra charge for the animal to attend events for which a fee is charged.

The owner or handler of a service animal shall be solely responsible for:

1. Supervision and care of the animal, including any feeding, exercising, clean up and

stain removal.

2. Control of the animal at all times through the use of a harness, leash, tether or by other effective means.
3. Damages to school corporation buildings, property and vehicles caused by the Animal.
4. Injuries to students, employees, volunteers, and visitors caused by the animal.

School corporation administrators may exclude a service animal from school corporation buildings and property under the following circumstances:

1. Presence of the animal poses a direct threat to the health and safety of others.
2. Owner or handler is unable to control the animal.
3. Animal is not housebroken.

The Board shall permit individuals with disabilities to use service animals in school corporation buildings and on school corporation property in accordance with this policy and applicable state and federal laws and regulations.

Legal References: 29 U.S.C. Sec. 793
42 U.S.C. Sec. 12181 et seq.
IC 16-32-3-1.5
IC 16-32-3.5

8600: COMMUNITY USE OF SCHOOL EQUIPMENT

Last Revised: January 2, 2025
Prior Revision Dates:

LENDING OF CORPORATION-OWNED EQUIPMENT

The School Board believes that Corporation owned equipment is a valuable resource which may be loaned for community use under certain conditions only, provided that such use does not infringe on the original and necessary purpose of the equipment or interfere with the educational program of the Corporation.

The Board may lend specific items of equipment on the written request of the user and approval granted by the Superintendent.

The user of Corporation owned equipment shall be fully liable for any damage or loss occurring to the equipment during the period of its use, and shall be responsible for its safe return.

Corporation owned equipment may be removed from Corporation property by community members, students or staff only when such equipment is necessary to accomplish tasks arising from their school or job responsibilities or to another non-profit organization in the community. The consent of the Superintendent is required for such removal.

Community members, staff members or students using Corporation owned equipment shall be liable for any damage or loss to the equipment.

Removal of Corporation owned equipment by community, staff or students from school property for personal use is prohibited.

PERSONAL USE OF CORPORATION EQUIPMENT/FACILITIES

Board policy requires that limits be placed on staff use of Corporation equipment and facilities. The following guidelines describe the nature and extent of use:

TELEPHONES

Staff members may use the telephones to make brief, local (non toll) calls provided such calls are made during free time and are not for conducting private business.

Except in emergencies, local calls should be limited to two (2) to three (3) minutes.

No long distance calls are to be made without permission of the building administrator. If such calls are made, time and charges are to be recorded by the caller and submitted together with the payment to the building administrator.

Telephone connections made through a computer must follow the same guidelines.

COPY MACHINES

Staff members may use a Corporation copier to make single copies of personal documents providing such copying is done on free time.

With the permission of the building administrator, a staff member may make multiple copies of one or more documents for a fee of $.05 per page which includes the cost of paper.

The number of copies is to be recorded and submitted, together with the fee payment to the building administrator.

FAX MACHINES

Staff members may use a Corporation fax machine to send a single copy of personal documents for a fee based upon the cost of the call.

With the permission of the building administrator where the FAX machines are located, a staff member may send faxes of one or more documents for a fee based upon the cost of the call.

A staff member may also receive faxes of one or more documents for a fee of $.05 per page which includes the cost of paper.

The number of copies is to be recorded and submitted, together with the fee payment, to the building administrator.

COMPUTERS

Corporation computers and printers may be used for personal reasons providing such use has been approved by the building administrator and takes place during a staff member's free time.

Staff members are to provide their own computer disks and/or external drives.

FACILITIES/EQUIPMENT/SUPPLIES

Staff members may use Corporation facilities providing they follow the guidelines established by the superintendent.

Staff members shall be exempt from rental fees established for the facilities they wish to use for professional purposes. Rental fees for personal use will be assessed.

Staff members may use Corporation equipment only with the written approval of the person responsible for the equipment.

USE OF CORPORATION COMPUTERS

Corporation personnel authorized to operate a computer on either a building level or district wide computer network and related terminals shall be assigned a user code/password by the building/district technology coordinator. Each user's password shall be changed periodically by the user for security reasons.

No authorized staff member is to use a user code/password other than the one assigned nor is s/he to allow anyone else to use his/her code/password without permission.

No person, employee, student, or visitor is to use any computer and/or related equipment without proper authorization.

In order to become authorized to use the Corporation's building level or district wide computer network, a person must qualify in at least one (1) of the following categories:

be an employee of the Corporation with an assigned user code/password;

be a student in the Corporation with an assigned user code/password;

be an employee or student with a qualified user code/password from another school Corporation or nonprofit organization for which the Corporation processes data;

be a maintenance person from the computer manufacturer providing the Corporation with a maintenance contract.

Where investigation confirms any or all of such allegations stated in the above, prompt corrective actions shall be taken, including in the case of Corporation employees and/or students, dismissal.

TRANSMISSION OF RECORDS AND OTHER COMMUNICATIONS

With the increasing use of FAX machines and electronic mail to transmit records and other information, it is imperative that all staff members keep in mind that protection of confidentiality is very unlikely. Therefore, any information that is considered to be confidential should not be transmitted by such means.

Whenever other parties indicate that they will send information of a confidential nature by FAX or electronic mail, they should be reminded that the Corporation will be unable to protect confidentiality of any such information.